BY ORDER OF THE
SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE
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Personnel

EQUAL EMPLOYMENT OPPORTUNITY: AFFIRMATIVE EMPLOYMENT AND DISABILITY PROGRAMS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Department of the Air Force Policy Directive (DAFPD) 36-27, *Equal Opportunity,* DAFPD 36-1, *Appropriated Funds Civilian Management and Administration,* and is consistent with Department of Defense Directive (DODD) 1020.02E, *Civil Rights and Equal Opportunity in the DoD* This instruction provides directive guidance and procedures in implementing the Department of the Air Force's (DAF) civilian affirmative employment program (AEP), disability program (DP); reasonable accommodation for persons with disabilities; personal assistance services; and accessibility of facilities for persons with disabilities. This instruction applies to all DAF civilian employees and applicants for civilian employment, including appropriated and non-appropriated fund (NAF) positions, except for non-U.S. citizens employed outside the U.S. This instruction does not extend to contractor employees, nor does it cover employees or applicants of the Army and Air Force Exchange Service. For specific applicability of protections and procedures, see "applicability" or "eligibility" statements within each chapter of this instruction, where applicable. This instruction requires the collection and/or maintenance of information protected by the Privacy Act of 1974 authorized by DoDI 5400.11, *DoD Privacy and Civil Liberties Programs*. The applicable system of records notices OPM GOVT-7, *Applicant Race, Sex, National Origin, and Disability Status Records* (June 19, 2006, 71 FR 35342), OPM/GOVT-10, *Employee Medical File System Records* (June 21,2010, 75 FR 35099), DoD-0007, *Defense Reasonable Accommodations and Assistive Technology Records* (August 31, 2023, 88 FR 60188), DoD-0008, *Freedom of Information Act and Privacy Act Records* (December 22, 2021, 86 FR 72586) are available at **https://dpcld.defense.gov/Privacy/SORNs.aspx**. This instruction contains reporting requirements subject to the Freedom of Information Act (5 USC §

552) and includes requirements which must comply with the Health Insurance Portability and Accountability Act's standards for information transactions and data elements (42 USC § 1320d) and privacy and security rules. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. Refer recommended changes and questions about this publication to the office of primary responsibility (OPR) using DAF Form 847, *Recommendation for Change of Product*; route a DAF Form 847 from the field through the appropriate functional chain of command to **SAF.MRQ.workflow@us.af.mil**. Compliance is mandatory for this instruction. This instruction may be supplemented at any level, but all supplements that directly implement this instruction must be routed to the Director, DAF Equal Opportunity Program (SAF/MRQ) as the OPR for coordination prior to certification and approval. The authorities to waive wing, unit, delta, or garrison level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, and T-3") number following the compliance statement. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority or alternately to the publication OPR for non-tiered compliance items. See DAF Manual (DAFMAN) 90-161, *Publishing Processes and Procedures*, for a description of the authorities associated with the tier numbers.

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Chapter 1

THE DEPARTMENT OF THE AIR FORCE AFFIRMATIVE EMPLOYMENT AND DISABILITY PROGRAMS OVERVIEW

1.1. Program Overview. This publication establishes guidance for the Department of the Air Force's (DAF) civilian affirmative employment program (AEP) and disability program (DP) policy and activities in accordance with governing laws, regulations, executive orders, and Department of Defense (DoD) policies. The DAF Equal Opportunity (EO) Program at the higher headquarters (HAF) level provides oversight and implements both the DAF AEP and DP to foster an environment of equal opportunity and nondiscrimination. The DAF EO Program prohibits unlawful discrimination and discriminatory harassment (including sexual harassment) against DAF civilian employees, former employees, and applicants for employment as described in DAF Instruction (DAFI) 36-2710, *Equal Opportunity Program*, and this publication to support civilian Airmen and Guardians' abilities to rise to their highest potential. The DAF AEP and DP support continuous efforts to be a model employer and a lethal force.

1.1.1. While the DAF EO Program (SAF/MRQ) at the HAF level oversees the DAF AEP and DP, major command (MAJCOM), field command (FLDCOM), and installation EO offices do not house or execute AEP or DP functions that may subsequently disqualify EO functional managers, directors, or practitioners from or may cause a conflict of interest in conducting unbiased execution of their duties and functions outlined in DAFI 36-2710. MAJCOM/FLDCOM and installation AEP managers (AEPM) and DP managers (DPM) can be functionally aligned with respective civilian personnel policy offices and civilian personnel sections (CPS)/human resource offices (HRO) as described in this publication. For guidance on AEP and DP responsibilities and organization construct, refer to **Chapter 2**, **Chapter 3**, and **Chapter 5** of this publication.

1.1.2. While the DAF EO Program at HAF level provides policy oversight and implements the DAF AEP, it requires commitment, collaboration, and coordination with HAF stakeholders with equities in the DAF talent management cycle to execute and report on AEP strategies, policies, practices, procedures, and other human resource functions and activities across DAF functional communities at all levels to ensure mission readiness and success.

1.2. Program Purpose. The DAF AEP and DP seek to maintain a continuing affirmative program to promote equal employment opportunity (EEO), and employment practices based on merit and qualifications and to identify and eliminate barriers discriminatory practices and policies as well as provide reasonable accommodations and personal assistance services to qualified individuals with disabilities consistent with laws, regulations, executive orders, and DoD and DAF policies. This includes ensuring that DAF civilians and applicants for employment, where applicable, are equipped with knowledge about and have access to available resources such as AEPMs and DPMs.

1.3. Program Applicability and Scope. The publication implements the AEP and DP as a function of leadership and command at all levels, including civilian equivalents, and all aspects of the DAF talent management and employment lifecycle. Leaders and commanders, including civilian equivalents, will promote and maintain a workplace of EO and nondiscrimination and ensure unlawful discrimination and discriminatory harassment (including sexual harassment) against DAF civilian employees, former employees, and applicants for employment are stopped,

and behavior(s) are corrected as soon as possible when made aware. This publication supersedes all policy guidance within the DAF that is not expressly mandated by law or is inconsistent with this publication. MAJCOM/FLDCOM, direct reporting units, field operating agencies, installations, or wing/delta policy supplements will be provided to and approved by SAF/MRQ in accordance with DAFMAN 90-161, *Publishing Processes and Procedures*.

1.3.1. The DAF AEP implements federal laws (Title VII of the Civil Rights Act [Title 42 United States Code (USC) § 2000e *et seq*.], the Equal Pay Act [29 USC § 206(d)], the Rehabilitation Act of 1973 [29 USC § 791 *et seq*.] as amended by the Americans with Disabilities Act (ADA) of 1990), federal regulations (5 CFR Part 720, *Affirmative Employment Programs*, 29 CFR Part 1614, *Federal Sector Equal Employment Opportunity*, 32 CFR Part 191, *The DoD Civilian Equal Employment Opportunity (EEO) Program*), Equal Employment Opportunity Commission (EEOC) regulations (Management Directive [MD] 110, *Federal Sector Complaints Processing Manual*, EEOC MD 715, *Model Agency Title VII and Rehabilitation Act Programs*), DoD Directive (DoDD) 1440.1 *The DoD Civilian Equal Employment Opportunity (EEO) Program*), and DoD policies on establishing affirmative programs of EEO and identifying and eliminating discriminatory policies, practices, and procedures. For additional guidance, refer to **Chapter 3**.

1.3.2. The DAF DP implements federal laws and regulations, EEOC regulations, and DoD policies outlined in **paragraph 1.3.1** establishing affirmative programs of EEO and to identifying and eliminating discriminatory policies, practices, and procedures as well as additional federal laws (the Pregnant Workers Fairness Act [42 USC § 2000gg *et seq*.]), federal regulations (5 CFR Part 720, Subpart C, *Disabled Veterans Affirmative Action Program (DVAAP)*, 29 CFR Part 1630, *Regulations to Implement the Equal Employment Provisions of the Americans with Disabilities Act*), and DoD policies making available reasonable accommodations and personal assistance services.

1.3.3. The DAF civilian EEO complaint program and military equal opportunity (MEO) program are handled in accordance with DAFI 36-2710. Refer to DAFI 36-147, *Civilian Conduct and Responsibility*, for information and processes for harassment allegations (i.e., Anti-Harassment Program) that are not based on an EEO protected class, as described in DoD Instruction (DoDI) 1020.04, *Harassment Prevention and Responses for DoD Civilian Employees*.

1.4. The Department of the Air Force Equal Opportunity (EO) and Nondiscrimination Policy. Civilian employment in the Air Force and Space Force should be open to all individuals who can meet the high standards to support military readiness. The DAF's mission success depends on Airmen and Guardians (military and civilian) at all levels having trust and confidence in themselves, in one another, and in their leadership to promote EO and nondiscrimination where all Airmen and Guardians (military and civilian) are treated with dignity and respect. This helps ensure that the Air Force and Space Force can recruit and retain top talent to support force lethality and mission readiness. As such, the DAF will:

1.4.1. Strive to incorporate and implement the essential elements and best practices of the EEOC's Model EEO Program, consistent with 29 CFR Part 1614, to enhance the DAF's ability to promote EEO and nondiscrimination for all civilian Airmen and Guardians to the greatest extent possible consistent with merit system principles (5 USC § 2301). **(T-0)**

1.4.2. Provide EEO in employment for all employees and applicants for employment by recognizing EEO as an essential element of readiness that is vital to the accomplishment of the DoD mission. **(T-0)**

1.4.3. Foster and maintain a command climate that promotes EEO and nondiscrimination for all their civilian Airmen and Guardians. **(T-0)**

1.4.4. Prohibit, not tolerate or condone, and eliminate unlawful discrimination and discriminatory harassment (including sexual harassment) against DAF civilian employees, former employees, and applicants for employment to include retaliation against someone who engaged in protected activity described in DAFI 36-2710 and this publication. **(T-0)**

1.4.5. Maintain a continuing affirmative program to promote EEO and to identify and eliminate discrimination from personnel policies and practices. This includes addressing the full talent management and employment lifecycle of recruitment, hiring, advancement, and retention of individuals consistent with federal laws, regulations, executive orders, and DoD and DAF policies. **(T-0)**

1.4.6. Ensure all employees have the freedom to compete on a fair and level playing field. **(T-0)**

1.4.7. Ensure all personnel actions and employment practices are based on merit and qualifications and not on any unlawful factors. **(T-0)**

1.4.8. Ensure no individual is excluded from participation in, denied the benefits of, or subjected to discrimination on the basis(es) of a protected class pursuant to 29 CFR Part 1614 and EEOC MD 110 under any program or activity (including facilities and structures) either conducted by the DAF or receiving federal financial assistance disbursed by the DAF. **(T-0)**

1.4.9. Ensure EEO covers all personnel and employment programs, management practices, and decisions, including, but not limited to, recruitment/hiring, merit promotion, transfer, reassignments, training and career development, benefits, and separation. **(T-0)**

1.4.10. Ensure workplace harassment will not be tolerated, and the DAF will correct the harassing conduct before it becomes severe or pervasive. **(T-0)**

1.4.11. Support all employees to exercise their rights under the civil rights statutes. **(T-0)**

1.4.12. Provide sufficient resources to ensure effective and efficient operation of all DAF EEO programs and activities to include AEP and DP. **(T-0)**

1.4.13. Provide reasonable accommodation to qualified individuals with disabilities who are DAF civilians or applicants for employment, unless to do so would cause undue hardship in accordance with the Rehabilitation Act of 1973 (29 USC § 791 *et seq*.), as amended by the ADA of 1990, as amended (42 USC § 12101 *et seq*.). **(T-0)**

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. The Assistant Secretary of the Air Force, Manpower and Reserve Affairs (SAF/MR). As designated by the Secretary of the Air Force, serves as the DAF Equal Employment Opportunity (EEO) Director pursuant to 29 CFR 1614.102(b)(4) and is authorized to act for the Secretary of the Air Force to oversee policy and compliance matters that promote nondiscrimination and equal opportunity (EO) described in Headquarters Mission Directive (HAFMD) 1-24, *Assistant Secretary of The Air Force (Manpower and Reserve Affairs)*. This also includes establishing affirmative programs that promote EEO and identify and eliminate discriminatory practices and policies consistent with federal laws, regulations, and executive orders as well as ensuring EEO complaints of unlawful discrimination and discriminatory harassment (including sexual harassment) and military equal opportunity (MEO) complaints of prohibited discrimination, discriminatory harassment (including sexual harassment), and other forms of harassment (bullying and hazing) are processed and resolved. SAF/MR provides strategic, long-range personnel and manpower oversight for policies and programs that affect the wellbeing of Airmen and Guardians (military and civilian).

2.1.1. Director, Department of the DAF Equal Opportunity Program (SAF/MRQ). Under the authority and direction of SAF/MR, provides strategic-level and policy oversight over and implements the DAF's affirmative employment program (AEP), disability program (DP), reasonable accommodation, personal assistance services, EEO complaint program, and MEO program. SAF/MRQ will:

2.1.1.1. Manage programming and implementation of the DAF EO Program budget.

2.1.1.2. Communicate and coordinate with DoD, DAF, and other federal civilian agencies on behalf of the DAF EO Program and serves as the point of contact for private sector EEO programs and activities conducted or assisted by the DAF within the SAF/MR purview.

2.1.1.3. Oversee and implement policies, procedures, and activities for the DAF AEP and DP, to include reasonable accommodation and personal assistance services, in accordance with federal laws, regulations, executive orders, and DoD and DAF policies. This includes providing guidance on AEP and DP aspects and related issues that affect the readiness of all DAF civilian personnel and taking corrective action or initiating program improvements as needed.

2.1.1.4. Ensure, through oversight, all Air Force major commands (MAJCOM) and Space Force field commands (FLDCOM) and installations comply with AEP, DP, and related EEO laws, regulations, executive orders, directives, policies, and meet all training and reporting requirements.

2.1.1.5. Develop and disseminate DAF AEP and DP policies, procedures, and related education and training requirements in accordance with DAFI 90-160, *Publications and Forms Management*, and Department of the Air Force Manual (DAFMAN) 90-161, *Publishing Processes and Procedures.*

2.1.1.6. Oversee and manage the DAF AEP and DP across the DAF by providing guidance on all program aspects and related issues that affect the readiness of all DAF personnel and taking corrective action or initiating program improvements as needed.

2.1.1.7. Implement the DAF EEO complaint program and MEO program as described in DAFI 36-2710, *Equal Opportunity Program*, to ensure Airmen and Guardians (military and civilian) have access to timely, fair, and impartial EO services and are equipped with knowledge about and have access to available EO resources.

2.1.1.7.1. While the DAF EO Program (SAF/MRQ) at the HAF level oversees the DAF AEP and DP, MAJCOM/FLDCOM and installation EO offices do not house or execute AEP or DP functions that may subsequently disqualify EO functional managers, directors, or practitioners from or may cause a conflict of interest in conducting unbiased execution of their duties and functions outlined in DAFI 36-2710.

2.1.1.8. Ensure and require, through oversight, effective quality control reviews for all AEP and DP data collected and tracked is accurate, complete, thorough, up-to-date, timely, and appropriately formatted to support DAF reporting requirements, data calls, and requests for information.

2.1.1.9. Provide policy guidance, clarification, and direction for Air Force Personnel Center Civilian Force Management Branch (AFPC AEP/DP Operation Support), MAJCOM/FLDCOM AEP mangers (AEPM) and DP managers (DPM), installation AEPMs and DPMs, installation commanders, and other key stakeholders consistent with federal laws and regulations designed to identify and eliminate any policy, practice, or procedure that may result in disadvantage in employment or denial of equal opportunity in the workplace.

2.1.1.10. Advise DAF senior leaders and other higher headquarters officials who have program responsibility for, or an interest in, matters affecting the employment and advancement of all civilian Airmen and Guardians within the DAF AEP and DP purview. This includes communicating the needs of individuals with disabilities, affirmative employment and disability programs and policies, and recommendations for eliminating unlawful employment practices and procedures.

2.1.1.11. Represent the DAF at DoD, federal agency, academia, and industry meetings, conferences, trainings, working groups, and other internal and external venues to promote and advance DAF AEP and DP equities.

2.1.1.12. Support installation AEP and DP activities, ensuring all DAF civilian personnel are aware of, and have access to, DAF AEP and DP services and resources.

2.1.1.13. Provide oversight on DAF AEP and DP training and education programs to include reviewing for statutory and policy compliance. Submit all EO training and education to the Department of the Air Force Learning Committee (DAFLC) for validation in accordance with DAFMAN 36-2689, *Training Program*, before AFPC AEP/DP Operation Support implements and disseminates to the AEP and DP functional communities.

2.1.1.14. Coordinate with the Inspections Directorate (SAF/IGI) on DAF AEP and DP compliance standards in accordance with DAFI 90-302, *The Inspection System of the Department of the Air Force*.

2.1.1.15. Maintain the official DAF EO and DAF Accessibility public websites and ensure relevant and up-to-date resources, reports, and other required information are published to

the websites to align with laws, regulations, executive orders, directives, and DoD and DAF policies.

2.1.1.16. Serve as the DAF representative and liaison to the Defense Equal Opportunity Management Institute (DEOMI) on matters related to AEP and DP.

2.1.1.17. Facilitate and coordinate DAF EEO (AEP and DP) reporting requirements submitted to Congress, Office of Personnel Management (OPM), Equal Employment Opportunity Commission (EEOC), and DoD such as but not limited to the EEOC MD 715 Model Agency Title VII and Rehabilitation Act Programs (hereafter EEOC MD 715 Report), Disabled Veterans Affirmative Action Program (DVAAP) Report, and Federal Equal Opportunity Recruitment Program (FEORP) Report. **Note**: While SAF/MRQ serves as the office of primary responsibility (OPR) in coordinating and consolidating these reports, it is the responsibly of the relevant DAF stakeholders to provide data highlighting their activities and efforts to align with and support EEO and nondiscrimination.

2.1.1.18. Facilitates and forwards, in coordination with SAF/IE, Architectural Barriers Act (ABA) and Section 504 of the Rehabilitation Act complaints against DAF to the DAF responsible department official (RDO) for prompt resolution.

2.1.2. Director, Air Force Review Boards Agency (SAF/MRB). As designated by the Secretary of the Air Force, is responsible for matters pertaining to providing various military and civilian appellate personnel processes, to include rendering final agency decisions and final orders on individual EEO complaints of unlawful discrimination and harassment pursuant to 29 CFR § 1614.110 and serves as the final appeal authority for formal MEO complaints.

2.1.2.1. Air Force Civilian Appellate Review Office (AFCARO) (SAF/MRBA). As a subordinate to Director, Air Force Review Board Agency, serves as the OPR and official authority for all phases of the formal EEO complaint process subsequent to issuance of a report of investigation as described in DAFI 36-2710. Provides data to support and coordinates on DAF EEO (AEP and DP) reporting requirements submitted to Congress, Office of Personnel Management (OPM), EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on activities and efforts on civilian formal EEO complaints and process improvements to support EEO and nondiscrimination.

2.1.3. Director, Senior Executive Management (SAF/MRL). Advises on civilian senior personnel matters and serves as the focal point in management and development of the Senior Executive Service (SES) and Civilian Strategic Leader Program. Develops policies and plans and administers a wide range of programs to access, train, support, develop, and utilize senior leaders to include the SES, Senior Level, and Scientific and Professional, and highly qualified experts.

2.1.3.1. Promotes and ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities to ensure mission readiness and success. This includes coordinating with the DAF AEP and DP to provide input on talent management, the employment lifecycle and other human resources strategies, plans, policies, and activities.

2.1.3.2. Provides data to support and coordinates on DAF (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on SAF/MRL activities and efforts on civilian recruitment and improvements to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.1.4. Deputy Assistant Secretary for Force Management Integration (SAF/MRM). Responsible for matters pertaining to DAF manpower, civilian personnel policy, compensation, military personnel appropriation and end strength management, military Force management programs (accessions, education, training and development), and the United States Air Force Academy. Responsible for the Human Resource Management Executive Secretariat.

2.1.4.1. Promotes and ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing talent management and other human resources strategies, plans, policies, and activities to ensure mission readiness and success. This includes coordinating with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities strategies, plans, policies, and activities.

2.1.4.2. Provides data to support and coordinates on DAF EEO (AEP and DP) reporting submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on SAF/MRM activities and efforts on civilian recruitment and improvements to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.2. Chief Information Officer (SAF/CN). Responsible for information technology, cybersecurity, enterprise data management, artificial intelligence policy and governance, information management, and information resources management for the DAF as described in HAFMD 1-26, *Chief Information Officer*. Oversees accessibility of information and communication technology, designate an individual to serve as the DAF Section 508 Coordinator, and process complaints on Section 508 of the Rehabilitation Act, as amended, for the DAF.

2.3. The General Counsel of the DAF (SAF/GC). Advises the Secretary of the Air Force and Headquarters DAF in all matters covered by this publication. The roles between SAF/GC and the Air Force Judge Advocate General (AF/JA) are delineated in HAFMD1-14, *General Counsel and The Judge Advocate General.* Through the Deputy General Counsel for Fiscal, Ethics and Administrative Law (SAF/GCA), serves as the OPR for providing SAF/GC legal support on civilian EEO (e.g., AEP and DP) policy and program matters.

2.3.1. Serves as the OPR for the Negotiation and Dispute Resolution (NDR) Program policy and program matters and executes the functions and authorities of the Dispute Resolution Specialist for the DAF. Refer to DAFI 51-1201, *Negotiation and Dispute Resolution Program*, for additional information and guidance on the NDR Program.

2.3.2. Provides data to support and coordinates on DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited

to, providing information on SAF/GC activities and efforts of the NDR Program (e.g., alternative dispute resolution [ADR] activities) to support EEO and nondiscrimination.

2.4. Assistant Secretary of the Air Force for Energy, Installations, and Environment (SAF/IE). Responsible for installations strategy and strategic basing processes; built and natural infrastructure; facility, process and operational energy; environment, safety and occupational health; and ensuring the sustainability and operational readiness of the DAF as described in HAFMD 1-18, *Assistant Secretary of the Air Force (Installations, Environment and Energy)*.

2.4.1. Reviews, determines, and provides guidance, in collaboration with AF/A4 and (or Space Force equivalent), on applicable accessibility standards concerning DAF facilities and structures and ensures compliance with Section 504 of the Rehabilitation Act, ABA, and DoDD 1020.1. Facilitates, in coordination with SAF/MR through SAF/MRQ, ABA and Section 504 of the Rehabilitation Act complaints against DAF to the DAF RDO for prompt resolution. This will include SAF/IE, or delegated representative, participating in in U.S. Access Board hosted meetings concerning DAF ABA complaints with SAF/MRQ and DAF RDO.

2.5. Department of the Air Force Inspector General (SAF/IG). Independently assesses and reports on the overall readiness, economy, efficiency, and discipline of the DAF to the Secretary of the Air Force through specified inquiries, investigations and inspections as described in HAFMD 1-20, *Office of the Inspector General*. Through the Inspections Directorate (SAF/IGI), establishes inspection policy, guidance, and oversight for Air Force and Space Force IG and functional inspections, assessments, and evaluations in accordance with DAFI 90-302, *The Inspection System of the Department of the Air Force*.

2.6. Director of Public Affairs (SAF/PA). Provides direction, guidance, and oversight for public affairs operations across the DAF in accordance with HAFMD 1-28, *Director of Public Affairs*. SAF/PA is responsible for enhancing the resiliency, morale, and readiness of DAF personnel by communicating the DAF's key themes and messages. This includes providing guidance on public affairs matters affecting the DAF AEP and DP as well as promoting nondiscrimination and EEO policies and programs consistent with this publication.

2.7. Deputy Chief of Staff, Manpower, Personnel, and Services (AF/A1). Develops and implements personnel policies, guidance, programs, and legislative initiatives as well as providing coordination on departmental publications to meet strategic objectives for civilian accessions, recruiting, assignments, benefits, career development, joint talent development, compensation, development (education, training, and experience), performance management, mentoring, recognition, retention, separation, retirement, and workforce shaping as described in HAFMD 1-32, *Deputy Chief of Staff of The Air Force Manpower, Personnel, and Services*. This includes implementing human resource programs and activities such as, but not limited to, Schedule A and Disabled Veteran Hiring. Promotes and ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing talent management and other human resources strategies, plans, policies, and activities to ensure mission readiness and success. This includes coordinating with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities strategies, plans, policies, and activities.

2.7.1. Promotes and implements nondiscrimination and EEO policies for DAF programs and activities within the AF/A1 purview conducted or assisted by the DAF or receiving federal

financial assistance as described in DoDD 5500.11, *Nondiscrimination in Federally Assisted Programs*, and DoDD 1020.1, *Nondiscrimination on the Basis of Handicap in Programs and Activities Conducted by the Department of Defense*. This includes schools operated by the DAF in the United States.

2.7.2. Supports AEPMs and DPMs and provides adequate resources to execute the DAF AEP and DP at all levels of the DAF in accordance with federal laws, regulations, executive orders, directives, and DoD and DAF policies.

2.7.3. Directorate of Civilian Force Management (AF/A1C). Under the authority and direction of AF/A1, develops force management policies for DAF civilian personnel throughout the talent management cycle to include: recruitment, hiring, placement, management, workforce shaping, evaluation, performance management, readiness, skills, separation and retirement of the Air Force's human capital. Oversees expeditionary civilian workforce, work-year management, strategic workforce planning, and implementation and sustainment of all civilian personnel systems; demonstration projects; and civilian initiatives. Implements OPM and DoD policies relating to classification; compensation; benefits; entitlements; leave management; official travel; performance management; work/life; labor relations; employee relations; deployment of civilians; interns; mass transit; suitability; priority placement; awards and recognition; human resources internal evaluation and assessment; Air Reserve Technician policy; and non-appropriated fund employee management.

2.7.3.1. Coordinates with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities.

2.7.3.2. Provides data to support and coordinates on DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on AF/A1 activities and efforts on civilian recruitment, Anti-Harassment Program, and improvements to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.7.3.3. Regularly assess whether personnel programs, policies, and procedures conform to EEOC laws, instructions, and management directives. Conducts and supports workforce barrier analysis that supports the improvement to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.7.3.4. Coordinates with SAF/MRQ on civilian personnel matters related to or affecting the DAF AEP and DP and ensures appropriate coordination with civilian personnel section (CPS)/human resources office (HRO) personnel.

2.7.3.5. Implements civilian standards of conduct that address civilian harassment allegations not based on an EEO protected class (i.e., Anti-Harassment Program) as described in DoDI 1020.04, *Harassment Prevention and Responses for DoD Civilian Employees*, and DAFI 36-147, *Civilian Conduct and Responsibility*.

2.7.3.6. Ensures CPS/HRO at all levels provide support or complete civilian personnel actions (e.g., reassignments, separations) where necessary to support reasonable accommodations and personal assistance services.

2.7.4. Directorate of Plans and Integration (AF/A1X). Under the authority and direction of AF/A1, is responsible for AF/A1 information technology planning, programming, and development to include the Personnel Delivery Services Transformation (Program Integration, Total Force Process Design/Redesign, Organizational Transformation, and Total Force Service Centers); System Requirements; development of Personnel Strategic Plans, Doctrine, and Legislation; Performance Management; facilitating the integration and implementation of Headquarters Air Force Policy and Chief Information Officer Support Division initiatives; Base Realignment and Closure Commission data collection and analysis.

2.7.4.1. Develops and maintains the information technology infrastructure of DAF Reasonable Accommodations Request Electronic System to collect, manage, track, and report reasonable accommodations and personal assistance services consistent with the Privacy Act of 1974 and other applicable laws and policies.

2.8. Deputy Chief of Staff for Logistics, Engineering, and Force Protection (AF/A4). Assists the Secretary of the Air Force, other Secretariat offices, and the Chief of Staff of the Air Force in carrying out the organizing, training, and equipping of personnel for all facets of Logistics, Engineering and Force Protection programs for the Department of the Air Force as described in HAFMD 1-38, *Deputy Chief of Staff, Logistics, Engineering and Force Protection*.

2.8.1. Promotes and implements nondiscrimination and EEO policies for DAF programs and activities within the AF/A4 purview conducted or assisted by the DAF or receiving federal financial assistance as described in DoDD 5500.11 and DoDD 1020.1. This includes but is not limited to loans, contracts, transfers, leases, or other disposition activities impacting installed equipment, facilities, structures, properties, museums, and historic buildings maintained by DAF.

2.8.2. Through Directorate of Civil Engineers (AF/A4C), in coordination or conjunction with AF/A4, provides strategic-level planning guidance for DAF infrastructure to installation development planning, and facility space planning as outlined in DAFI 32-1015, *Integrated Installation Planning*.

2.8.3. Serves as the DAF RDO to ensure and facilitate the resolution of ABA and Section 504 of the Rehabilitation Act complaints against DAF concerning accessibility that involves DAF facilities and structures. This will include supporting and responding to ABA and Section 504 of the Rehabilitation Act complaints data calls and congressional reporting requirements and participating in meetings with the U.S. Access Board for ABA complaints.

2.8.4. Provides guidance when requests for reasonable modification cannot be accomplished timely and facilitates conversations with appropriate offices to obtain appropriate plan and timeline for remedy. Provides oversight on funding needed to complete reasonable modification and structural compliance complaints.

2.9. The Judge Advocate General (AF/JA). Advises the Secretary of the Air Force, Chief of Staff of the Air Force, Chief of Space Operations, and Headquarters DAF on all matters covered by this publication and provides legal oversight through the AF/JA functional chain. In accordance with 10 USC § 9037, AF/JA provides independent legal advice to all levels of command.

2.9.1. Through the Air Force Civil Law and Litigation Directorate (AF/JAC), provides legal advice and reviews on matters related to personal assistance services and reasonable accommodations.

2.9.2. Collaborate, as appropriate, with leaders and SAF/GCA to establish NDR policy and procedures to promote and expand the use of ADR and conflict management practices, including elimination of barriers to their use.

2.10. Chief, Air Force Reserve (AF/RE). Implements and integrates personnel, operations, and maintenance policies and programs affecting civilian personnel for the Air Force Reserve (AFR) and provides oversight in support of DAF policies as described in HAFMD 1-42, *Chief of Air Force Reserve*. Promotes and implements nondiscrimination and EEO policies and programs, to include proactive prevention to identify barriers in accordance with this publication.

2.11. Deputy Chief of Space Operations for Operations, Cyber and Nuclear (SF/COO). Assists the Secretary of the Air Force, other Secretariat offices, and the Chief of Space Operations in carrying out space operations, logistics, cyberspace, force generation and readiness, and nuclear deterrence missions by establishing and developing policies to organize, train, and equip those forces for the USSF and the DAF as described in HAFMD 2-5, *Deputy Chief of Space Operations for Operations, Cyber, And Nuclear*.

2.11.1. Promotes and implements nondiscrimination and EEO policies for DAF programs and activities within the SF/COO purview conducted or assisted by the DAF or receiving federal financial assistance as described in DoDD 5500.11 and DoDD 1020.1. This includes but is not limited to loans, contracts, transfers, leases, or other disposition activities impacting installed equipment, facilities, structures, properties, museums, and historic buildings maintained by DAF.

2.11.2. Provides guidance when requests for reasonable modification cannot be accomplished timely and facilitates conversations with appropriate offices to obtain appropriate plan and timeline for remedy. Provides oversight on funding needed to complete reasonable modification and structural compliance complaints.

2.12. Deputy Chief of Space Operations for Personnel (SF/S1). Develops Space Force personnel policies, guidance, programs, and legislative initiatives as well as provides coordination on departmental publications to meet Space Force strategic objectives force sustainment to include: family matters, resilience programs, quality of work/life initiatives, commanders' programs, and military and civilian personnel as described in HAFMD 2-3, *Deputy Chief of Space Operations for Human Capital*. This also includes promoting nondiscrimination and equal opportunity policies and programs, to include coordinating and collaborating with the DAF AEP and DP. This includes implementing human resource programs and activities such as, but not limited to, Schedule A and Disabled Veteran Hiring. Ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing talent management and other human resources strategies, plans, policies, and activities to ensure mission readiness and success. This includes coordinating with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities strategies, plans, policies, and activities.

2.12.1. Promotes and implements nondiscrimination and EEO policies for DAF programs and activities within the SF/S1 purview conducted or assisted by the DAF or receiving federal financial assistance as described in DoDD 5500.11 and DoDD 1020.1.

2.12.2. Coordinates with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities.

2.12.3. Provides data to support and coordinates on DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on SF/S1 activities and efforts on civilian recruitment and improvements to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.12.4. Regularly assess whether personnel programs, policies, and procedures conform to EEOC laws, instructions, and management directives. Conducts and supports workforce barrier analysis that supports the improvement to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.12.5. Coordinates with SAF/MRQ on matters related to or affecting the DAF AEP and DP with CPS/HRO personnel.

2.12.6. Ensures CPS/HRO at all levels provide support or complete civilian personnel actions (e.g., reassignments, separations) where necessary to support reasonable accommodations and personal assistance services.

2.13. Air Force Personnel Center Commander (AFPC/CC). Responsible for executing personnel policy by developing, coordinating, and implementing standards, systems, programs and procedures for military and civilian personnel operations in accordance with AFMD 37, *Air Force Personnel Center (AFPC)*. This includes implementing human resource programs and activities such as, but not limited to, Schedule A and Disabled Veteran Hiring. Promotes and ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities to ensure mission readiness and success. This includes coordinating with the DAF AEP and DP to provide input on talent management, the employment lifecycle, and other human resources strategies, plans, policies, and activities strategies, plans, policies, and activities.

2.13.1. Air Force Personnel Center Directorate of Personnel Programs (AFPC/DPP). Under the authority and direction of the AFPC Commander, responsible for interpreting and implementing policies, executing authorities, and developing, coordinating, and implementing guidance, standards, processes, systems, programs, training, procedures, and actions for the DAF personnel programs portfolio. This includes providing overall operational guidance and execution of the DAF AEP and DP policies, programs, training, and procedures to meet laws, regulations, executive orders, directives, and DoD and DAF policies for AEP and DP. Additionally, AFPC/DPP will:

2.13.1.1. Provide operational guidance and oversight, assistance, and training to MAJCOM/FLDCOM management officials, CPS, HRO and other appropriate stakeholders regarding provisions of this publication. This includes reasonable accommodation (RA) of last resort reassignment/change to lower grade.

2.13.1.2. Ensure all AFPC/DPP offices provide data to support and coordinate on DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on AFPC activities and efforts

on civilian recruitment and improvements to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.13.1.3. Regularly assess whether personnel programs, policies, and procedures conform to EEOC laws, instructions, and management directives. Conducts and supports workforce barrier analysis that supports the improvement to employment policies, practices, and procedures that support EEO and nondiscrimination.

2.13.1.4. Ensures AFPC/DPP functions support or complete civilian personnel actions (e.g., reassignments, separations) where necessary to support RAs and personal assistance services (PAS).

2.13.2. Air Force Personnel Center Civilian Force Management Branch (AFPC/DPPCM) (here after AFPC AEP/DP Operation Support). Under the direction and oversight of AFPC/DPP, responsible for providing day-to-day operational management, functional expertise, operational guidance and procedures, technical assistance, and quality control reviews to MAJCOM/FLDCOM AEPMs and DPMs and installation AEPMs and DPMs on all matters within the DAF AEP and DP purview in this publication. AFPC AEP/DP Operation Support will:

2.13.2.1. Serve as a liaison between SAF/MRQ and MAJCOM/FLDCOM and installation AEPMs and DPMs on matters related to or affecting the DAF AEP and DP. This includes providing timely responses to and coordination with AEP and DP functional community inquiries submitted to AFPC AEP/DP Operation Support.

2.13.2.2. Participate in teleconferences with SAF/MRQ and MAJCOM/FLDCOM AEPMs and DPMs. This includes providing agenda inputs to SAF/MRQ no later than 48 hours prior to the teleconference and providing AFPC AEP/DP Operation Support meeting minutes notes on the provided agenda topics to SAF/MRQ no later than seven duty days after the teleconferences.

2.13.2.3. Ensure SAF/MRQ is included on AFPC AEP/DP Operation Support communications to MAJCOM/FLDCOM AEPMs and DPMs where AFPC AEP/DP Operation Support is providing operational guidance or disseminating information to the MAJCOM/FLDCOM and installation AEPMs and DPMs stemming from statutory and policy updates.

2.13.2.4. Monitor all DAF AEP and DP activities for compliance, to include identifying and resolving installation and MAJCOM/FLDCOM level operational needs

2.13.2.5. Review operational procedures suggestions, inspection/audit reports (e.g., DoD Inspector General, DAF IG, Government Accountability Office [GAO], etc.), and other relevant assessment and evaluation resources (e.g., EEOC MD 715, etc.) to identify trends, issues, and courses of action that affect the DAF AEP and DP.

2.13.2.6. Provide technical assistance and operational guidance to the AEPMs and DPMs in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF AEP and DP. This includes developing, implementing, and disseminating resources such as procedures, processes, guides, transmittals, templates, and training materials to equip the AEP and DP functional community with the knowledge and skills to effectively implement the DAF AEP and DP to include RA and PAS.

2.13.2.7. Respond to data calls, requests for information, and other-directed tasks to support statutory and policy reporting requirements, congressional inquiries, audits and reviews (e.g., GAO, DoD IG, DAF IG, Air Force Audit Agency), and DoD and DAF senior leader inquiries within the DAF AEP and DP purview. This includes assisting in formulating official DAF responses and ensuring official DAF data is accurate and consistently reported to DoD, Congress, and other relevant agencies.

2.13.2.8. Coordinate with SAF/MRQ to assign AEP and DP-related congressional and other high-level inquiries to appropriate MAJCOM/FLDCOM AEPM and DPM for processing in accordance with AFI 90-401, *Relations with Congress*.

2.13.2.9. Complete and submit data to support and coordinate on reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing consolidated and aggregate data concerning AEP and DP across the DAF.

2.13.2.10. Ensure current information (e.g., MAJCOM/FLDCOM and installation AEPM and DPMs contact information) is provided to SAF/MRQ and made available to the DAF civilian workforce to readily identify their respective MAJCOM/FLDCOM and installation AEPMs and/or DPMs for assistance.

2.13.2.11. Maintain repositories (e.g., SharePoint and Schedule A) for relevant and up-to-date resources needed to implement the DAF AEP and DP such as laws and regulations, DoD and DAF policies, operational guidance, operating standards, procedures, processes, templates, forms, training materials, contact rosters, and other relevant external governmental resources (e.g., EEOC and DEOMI). AEP/DP Operation Support will comply with DoDI 5200.48, *Controlled Unclassified Information*, DAFI 16-1403, *Controlled Unclassified Information*, AFI 33-332, *Air Force Privacy and Civil Liberties Program*, AFI 33-322, *Records Management and Information Governance Program*, and AFI 17-130, *Cybersecurity Program Management*, when uploading and storing information on SharePoint or other approved web-based information sharing forums.

2.13.2.12. Serve as the point of contact for AEP and DP issues or questions directed to the Air Force Civilian Careers (Schedule A), DAF EO, and DAF Accessibility public websites concerning operational matters.

2.13.2.13. Serve as selective placement program coordinator for the DAF. Manage recruitment, hiring, and accommodate individuals with disabilities. Advise management, assist individuals with disabilities about current job opportunities, work with public and private organizations, and monitor and evaluate selective placement program efforts.

2.13.2.14. Ensure any packages to be submitted to SAF/MRQ for review, approval, or coordination are first reviewed for accuracy, completeness, thoroughness, currency, timeliness, and appropriately formatted. Packages that are not complete will be returned to AEP/DP Operation Support for appropriate action.

2.13.2.15. Ensure data pulled from the Reasonable Accommodations Request (RAR) Electronic System to be used in reports, briefings, informational papers, etc. for purposes other than day-to-day operational functions (e.g., data calls for SAF/MRQ, etc.) is coordinated and approved by SAF/MRQ prior to release to external to DAF agencies (e.g., Congress, DoD, other federal agencies, etc.) and intra-agency DAF other than SAF/MR.

AFPC AEP/DP Operation Support will ensure adequate time is provided to SAF/MRQ to review data and pre-brief DAF senior leaders as warranted.

2.13.2.16. Ensure effective quality control reviews are conducted for all data collected and tracked to ensure data is accurate, complete, thorough, up-to-date, consistent, timely, and appropriately formatted to support DAF reporting requirements, data calls, and requests for information.

2.13.2.16.1. Review RA dashboards and conduct quality control reviews within the RAR Electronic System to ensure appropriate record keeping is being accomplished. Coordinate changes or enhancements to dashboard functionality to assist with compliance reviews ensuring compliance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies.

2.13.2.17. Oversee the implementation and management of the RAR Electronic System, which is the DAF system of record for centralized, collection, maintenance, and reporting of RA and PAS requests as described in this publication.

2.13.2.17.1. Grant system access, in coordination with AF/A1X, to MAJCOM/FLDCOM and installation DPMs and any personnel assigned to process reasonable accommodation requests with the need for system access as part of an official duty who have successfully completed training requirements.

2.13.2.17.2. Provide technical assistance and operational guidance to MAJCOM/FLDCOM and installation DPMs in accessing, inputting, tracking, and reporting information in the RAR Electronic System. This includes developing, implementing, and disseminating resources such as procedures, processes, and training materials.

2.13.2.17.3. Reports and tracks system errors or issues, especially issues that have a prolonged negative effect in RAR and PAS request processing, to AF/A1X for troubleshooting and resolution and ensures MAJCOM/FLDCOM and installation DPMs are provided appropriate technical support assistance as needed.

2.13.2.17.4. Provide input on system needs for sustainment and future operations capabilities to the AF/A1X and SAF/MRQ, as appropriate, and ensures the RAR Electronic System complies with all statutory and DoD requirements regarding collection and maintenance of information protected by the Privacy Act of 1974 as described in DoDD 5400.11, *DoD Privacy Program*, and AFI 33-332, *Air Force Privacy and Civil Liberties Program*.

2.13.2.18. Review MAJCOM/FLDCOM and installation RA and PAS data trends and advise MAJCOM/FLDCOM and installation DPMs on corrective and preventative courses of action to address timeliness (e.g., RA/PAS processing taking more than 30 calendar days) and other identified issues.

2.13.2.19. Develop and implement MAJCOM/FLDCOM and installation AEP and DP training (e.g., job aids, training slides, curricula, etc.) to be provided as required by laws, regulations, executive orders, GAO, and DoD and DAF policies and initiatives to effectively execute AEP and DP. AFPC AEP/DP Operation Support will ensure legal sufficiency reviews are conducted on all training products.

2.13.2.19.1. Conduct annual reviews on any AEP and DP training and education to validate currency with law and policy and as required, update learning objectives, curricula, training plans, lesson plans, evaluation plans, training assessments, and other relevant training materials and resources to effectively execute AEP and DP training and education across the DAF. Through SAF/MRQ, submit AEP and DP training and education updates to Defense Equal Opportunity Management Institute (DEOMI) for review and to the Department of the Air Force Learning Committee (DAFLC) for validation before implementation where required.

2.13.2.20. Manage DAF allocations and schedules DEOMI courses, when available, for eligible MAJCOM/FLDCOM and installation DPMs and AEPMs. Responsible for coordinating with the appropriate AFPC training requirements quota identifier (TRQI) manager fund cite. **Note:** SAF/MRQ maintains discretion on how and where AEP and DP training requirements are met to include utilizing SAF/MRQ approved alternative courses.

2.13.2.21. Provide training for MAJCOM/FLDCOM and installation AEPMs to understand their full range of responsibilities regarding AEP programming matters to include statutory and policy requirements, barrier analysis, and process improvement. Develop and provide training for MAJCOM/FLDCOM and installation DPMs to understand their full range of responsibilities regarding individuals with disabilities to include reasonable accommodation and personal assistance services. Submit to SAF/MRQ all AEPMs and DPMs training and education for statutory and policy compliance reviews before implementation.

2.13.2.22. Support DAF facilitated MAJCOM/FLDCOM and installation AEPM and DPM functional training workshops and attends AEPM and DPM-related trainings as requested.

2.13.3. **Air Force Personnel Center Systems Support (AFPC/DSY).** Provides SAF/MRQ data support for AEP and DP reporting requirements as described in this publication (e.g. DVAAP, Schedule A conversions).

2.14. Headquarters Air Education and Training Command (AETC). Develops doctrine, documents lessons learned, performs accessions, and educates military and civilian professionals through training initiatives, programs and/or services as described in AETC Mission Directive 103, *Air University (AU)*.

2.14.1. Coordinates with SAF/MRQ and AFPC on all AEP and DP related curricula, training plans, and other relevant training materials and resources to ensure statutory and policy compliance and for submission to DEOMI for review before implementation in accordance with DoDD 1440.1, *The DoD Civilian EEO Program* and DoDI 1020.04, *Harassment Prevention and Responses for DoD Civilian Employees*.

2.14.2. Provides SAF/MRQ and AFPC access to AEP and DP related curricula, training plans, and relevant training materials to support data calls, reports, and audits from Congress, GAO, DoD, and DAF senior leaders.

2.15. MAJCOM/FLDCOM Commanders. Promotes and implements nondiscrimination and EEO (i.e., AEP and DP) policies for programs and activities consistent with laws, regulations, executive orders, directives, and DoD and DAF policies. Ensures the MAJCOM/FLDCOM AEP and DP respective installation programs are implemented and supported. This includes ensuring

support and contributions at his/her respective levels to the overarching DAF initiatives to eliminate EEO barriers.

2.15.1. Fosters and maintains a workplace and environment that promotes EEO and nondiscrimination for all civilian Airmen and Guardians.

2.15.2. Ensures civilian Airmen and Guardians under his/her purview are made aware of and have access to the DAF EEO (i.e., AEP, DP, EEO complaint program) policies, informed of their rights and responsibilities, and can request RA and PAS or report violations without fear of retaliation or reprisal.

2.15.3. Ensures the DAF EEO (i.e., AEP, DP, EEO complaint program) policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations throughout the MAJCOM/FLDCOM to include prominently posting the contact information for the MAJCOM/FLDCOM and servicing AEPMs, DPMs, and EO offices.

2.15.4. Ensures the MAJCOM/FLDCOM AEPM and DPM have direct access to him/her to ensure he/she is informed of the effectiveness, efficiency, compliance, issues, and overall status and trends of the MAJCOM/FLDCOM and relevant installation AEP and DP.

2.15.5. Appoints MAJCOM/FLDCOM AEPMs and DPMs in writing. Considers appointing a full-time MAJCOM/FLDCOM AEPM and DPM to adequately support the statutory and regulatory requirements and activities (e.g., conducting barrier analysis, PAS, RA, etc.) to be implemented by MAJCOM/FLDCOM and respective installation AEP and DP.

2.15.6. Ensures all appointed MAJCOM/FLDCOM AEPMs and DPMs are available and properly trained to effectively execute the MAJCOM/FLDCOM AEP and DP. Ensures MAJCOM/FLDCOM AEPMs and DPMs complete training when directed and available as described in **Chapter 3** and **Chapter 5**.

2.15.7. Ensures adequate number of MAJCOM/FLDCOM and installation DPMs are appointed to process PAS, RA, and Pregnant Workers Fairness Act (PWFA) requests and provides assistance to installations where there are insufficient resources to ensure compliance with statutory and regulatory requirements.

2.15.8. Ensures MAJCOM/FLDCOM and installation stakeholders respond to data calls, request for information, and other-directed tasks to support statutory and policy DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on MAJCOM/FLDCOM and installation activities and efforts and improvements to talent management, employment lifecycle, and other human resources policies, practices, plans, and procedures as well as barrier analysis that support EEO and nondiscrimination.

2.15.9. Ensures barrier analysis is conducted to promote EEO and eradicate every form of unlawful discrimination from civilian personnel policies, practices, and working conditions. Removes barriers to EEO found within his/her command.

2.15.10. Ensures any programs or activities conducted or assisted by the DAF within his/her purview, including facilities and structures owned, leased, or otherwise financially, or contractually supplemented or acquired, do not discriminate against individuals with disabilities (IWD). This includes ensuring that facilities and structures are sufficiently

accessible and usable by IWD and that IWD have equal opportunity to participate in and benefit from any programs or activities conducted by the DAF in accordance with federal laws and DoDD 1020.1 and DoDD 5500.11.

2.15.11. Ensures adequate facilities, office support equipment, and financial resources are provided to the MAJCOM/FLDCOM and respective installation to effectively execute the DAF AEP and DP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies.

2.16. MAJCOM/FLDCOM A1/S1 Commanders. Promotes and ensures integration of EEO, nondiscrimination, and other related affirmative employment requirements and principles when developing and executing civilian talent management and other human resources plans, policies, and activities under his/her purview.

2.16.1. Fosters and maintains a workplace and environment that promotes EEO and nondiscrimination for all civilian Airmen and Guardians.

2.16.2. Ensures civilian Airmen and Guardians under his/her purview are made aware of and have access to the DAF EEO (i.e., AEP, DP, EEO complaint program) policies, informed of their rights and responsibilities, and can request RA and PAS or report violations without fear of retaliation or reprisal.

2.16.3. Ensures barrier analysis is conducted or supported consistent with EEOC MD 715 requirements, and where barriers are identified ensure measures are taken to eliminate them where appropriate and possible consistent with laws, regulations, executive orders, and OPM, EEOC, and DoD guidance. Refer to **Chapter 4** for additional information on barrier analysis.

2.16.4. Ensures relevant civilian personnel data under his/her purview is provided to support the DAF's EEOC MD 715 Report and other statutory and policy EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD.

2.16.5. Ensures MAJCOM/FLDCOM assistance with RA reassignment and vacancy searches for IWD as outlined in **Chapter 7**.

2.17. MAJCOM/FLDCOM Affirmative Employment Program Managers. Provides program management and administers his/her respective MAJCOM/FLDCOM AEP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. This includes serving as subject matter expert (SME) and advisor to MAJCOM/FLDCOM commander, other commanders (or civilian equivalents), managers and supervisors, and installation AEP on AEP related matters as described in this publication.

2.17.1. Has direct access to the MAJCOM/FLDCOM commander to inform the MAJCOM/FLDCOM commander of the effectiveness, efficiency, compliance, issues, and overall status and trends of the MAJCOM/FLDCOM and respective installation AEP.

2.17.2. Be appointed to execute AEPM roles and responsibilities. MAJCOM/FLDCOM AEPMs appointed full-time to execute roles and responsibilities outlined in this publication do not need a separate appointment letter. Collateral duty MAJCOM/FLDCOM AEPMs will be appointed in writing.

2.17.3. Completes SAF/MRQ approved training that supports AEPM duties when directed and available as described in **Chapter 3**.

2.17.4. Advocates for and makes available the AEP to civilian Airmen and Guardians and MAJCOM/FLDCOM military and civilian senior leaders as described in this publication. This includes ensuring the MAJCOM/FLDCOM civilian workforce receives adequate information about the AEP.

2.17.5. Collaborates with AFPC AEP/DP Operation Support between installations, MAJCOMs/FLDCOMs, and higher headquarters to ensure compliance with laws, regulations, EEOC guidelines, executive orders, directives, and DoD and DAF policies. The MAJCOM/FLDCOM AEP may supplement DAF AEP guidance, programs, and procedures for their respective MAJCOM/FLDCOM in accordance with DAFI 90-160 and DAFMAN 90-161. Supplemental guidance will be coordinated through SAF/MRQ following the DAF publication process.

2.17.6. Provides guidance and assistance to his/her respective installation AEP in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF AEP. This includes providing supplemental communication, education and training, and assessments to support program effectiveness.

2.17.7. Identifies and tracks compliance issues for assigned areas of responsibility and installations and recommends appropriate corrective actions or activities and monitors progress to achieve compliance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies.

2.17.8. Collaborates with MAJCOM/FLDCOM DPMs and other appropriate MAJCOM/FLDCOM level programs/offices to advise commanders (or civilian equivalents), managers, supervisors, and other stakeholders on taking proactive steps to ensure EEO in all personnel administration and management matters throughout talent management cycle, including recruitment, hiring, retention, training, development, promotions, awards, and separations.

2.17.9. Ensures DAF EEO policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations throughout the MAJCOM/FLDCOM to include prominently posting the contact information for the MAJCOM/FLDCOM and servicing AEPMs and EO offices.

2.17.10. Regularly assesses whether civilian personnel programs, policies, and procedures conform to EEO laws and regulations. This includes evaluating employment practices to identify and remove EEO barriers and collaboratively establishing or supporting action plans to address identified EEO barriers with stakeholders.

2.17.11. Conducts, supports, or facilitates comprehensive analysis of affirmative employment efforts in coordination and collaboration with relevant stakeholders on workforce composition, outreach recruiting, selections, promotions, performance, employee development, discipline, and awards and recognition.

2.17.12. Conducts, supports, or facilitates barrier analysis consistent with EEOC MD 715 in coordination and collaboration with organizations and functionals responsible for or have equities in various aspects of the talent management and employment lifecycle to include but not limited to, civilian personnel policy offices and CPS/HRO, EEO complaint program (e.g., EO office), DP, integrated primary prevention workforce, leaders and commanders (and civilian equivalent), supervisors/managers, and other community action team (CAT) members.

Establishes or supports development of action plans and corrective measures or activities to mitigate EEO barriers. Ensures action plans developed to mitigate EEO barriers are briefed and elevated, if appropriate, via the CAT and community action board (CAB). Refer to **Chapter 4** for additional information.

2.17.13. Collaborates with his/her respective integrated primary prevention workforce and other MAJCOM/FLDCOM CAT members to support integrated prevention plans and activities where issues and topics are within the AEP purview.

2.17.14. Maintains a collaborative working relationship with servicing CPS/HRO and other appropriate stakeholders and organizations with equities to ensure compliance with legal, regulatory, and policy requirements concerning AEP.

2.17.15. Complies with data calls, request for information, and other-directed tasks to support statutory and policy reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within the DAF AEP purview. This includes, but is not limited to, collaborating with MAJCOM/FLDCOM DPMs, installation AEPMs, and other appropriate stakeholders and compiling relevant and aggregate data to support the DAF's EEOC MD 715 Report, FEORP Report, and DVAAP Report.

2.17.16. Processes and responds to congressional and other high-level inquiries on matters within the DAF AEP purview in accordance with AFI 90-401 in coordination with AFPC AEP/DP Operation Support and SAF/MRQ. The MAJCOM/FLDCOM AEPM will include SAF/MRQ on all correspondence sent in response to congressional and other higher-level inquiries.

2.17.17. Serves as the alternate MAJCOM/FLDCOM DPM to process PAS and RA requests and execute other DP related duties in absence of a MAJCOM/FLDCOM or installation DPM. Any MAJCOM/FLDCOM AEPM appointed by the MAJCOM/FLDCOM commander as an alternate MAJCOM/FLDCOM DPM will have this documented in an appointment letter. This also requires completing SAF/MRQ approved DPM and related training when directed and available as described in **Chapter 5** and **Chapter 8**.

2.17.18. Prepares and presents briefings in both informal and formal settings to senior leadership, other management personnel, and CAT and CAB on matters related to the DAF AEP.

2.18. MAJCOM/FLDCOM Disability Program Managers. Provides program management and administers his/her respective MAJCOM/FLDCOM DP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. This includes serving as SME and advisor to MAJCOM/FLDCOM commander, other commanders (or civilian equivalents), managers and supervisors, and installation DP on DP related matters as described in this publication.

2.18.1. Has direct access to the MAJCOM/FLDCOM commander to inform the MAJCOM/FLDCOM commander of the effectiveness, efficiency, compliance, issues, and overall status and trends of the MAJCOM/FLDCOM and respective installation DP.

2.18.2. Be appointed to execute MAJCOM/FLDCOM DPM roles and responsibilities. MAJCOM/FLDCOM DPMs appointed full-time to execute roles and responsibilities outlined

in this publication do not need a separate appointment letter. Collateral duty MAJCOM/FLDCOM DPMs will be appointed in writing.

2.18.3. Completes SAF/MRQ approved DPM and related training when directed and available as described in **Chapter 5**.

2.18.4. Completes DoD or DAF approved trainings on cyber awareness, safeguarding personally identifiable information (PII), or other SAF/MRQ approved training when directed and available to gain and maintain access to the RAR Electronic System. Refer to **Chapter 8** for additional information.

2.18.5. Advocates for and makes available the DP to civilian Airmen and Guardians and MAJCOM/FLDCOM military and civilian senior leaders as described in this publication. This includes ensuring the MAJCOM/FLDCOM civilian workforce receives adequate information about the DP.

2.18.6. Collaborates with AFPC AEP/DP Operation Support between installations, MAJCOMs/FLDCOMs, and higher headquarters to ensure compliance with laws, regulations, EEOC guidelines, executive orders, directives, and DoD and DAF policies. The MAJCOM/FLDCOM DP may supplement DAF DP guidance, programs, and procedures for their respective MAJCOM/FLDCOM in accordance with DAFI 90-160 and DAFMAN 90-161. Supplemental guidance will be coordinated through SAF/MRQ following the DAF publication process.

2.18.7. Provides guidance and assistance to his/her respective installation DP in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF AEP. This includes providing supplemental communication, education and training, and assessments to support program effectiveness.

2.18.8. Identifies and tracks compliance issues for assigned areas of responsibility and installations and recommends appropriate corrective actions or activities and monitor progress to achieve compliance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies.

2.18.9. Serves as a lead and collaborates with MAJCOM/FLDCOM AEPM and other appropriate MAJCOM/FLDCOM level programs/offices to advise commanders (or civilian equivalents), managers, supervisors, and other stakeholders on taking proactive steps to ensure EEO affecting IWD in all personnel administration and management matters throughout talent management cycle, including recruitment, hiring, retention, training, development, promotions, awards, and separations.

2.18.10. Ensures DAF EEO policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations throughout the MAJCOM/FLDCOM to include prominently posting the contact information for the MAJCOM/FLDCOM and servicing DPMs and EO offices.

2.18.11. Regularly assesses whether civilian personnel programs, policies, and procedures conform to EEO laws and regulations affecting IWD to include PAS and RA. This includes evaluating employment practices to identify and remove EEO barriers and collaboratively establishing or supporting action plans to address identified EEO barriers with stakeholders affecting IWD to include PAS and RA.

2.18.12. Conducts, supports, or facilitates comprehensive analysis of affirmative employment efforts affecting IWD (to include PAS and RA) in coordination and collaboration with the MAJCOM/FLDCOM AEPM, installation DPMs, and other relevant stakeholders on workforce composition, outreach recruiting, selections, promotions, performance, employee development, discipline, and awards and recognition.

2.18.13. Conducts, supports, or facilitates barrier analysis consistent with EEOC MD 715 in coordination and collaboration with organizations and functionals responsible for or having equities in various aspects of the talent management and employment lifecycle affecting IWD (to include PAS and RA) to include, but not limited to, AEP, civilian personnel policy offices and CPS/HRO, EEO complaint program (e.g., EO office), integrated primary prevention workforce, leaders and commanders (or civilian equivalent), supervisors/managers, and other CAT members**.** Establishes or supports development of action plans and corrective measures or activities to mitigate EEO barriers affecting IWD. Ensures action plans developed to mitigate EEO barriers affecting IWD are briefed and elevated, if appropriate, via the CAT and CAB. Refer to **Chapter 4** for additional information.

2.18.14. Collaborates with his/her respective integrated primary prevention workforce and other MAJCOM/FLDCOM CAT members to support integrated prevention plans and activities where issues and topics are within the DP purview.

2.18.15. Maintains a collaborative working relationship with servicing CPS/HRO and other appropriate stakeholders and organizations with equities to ensure compliance with legal, regulatory, and policy requirements concerning DP.

2.18.16. Complies with data calls, request for information, and other-directed tasks to support statutory and policy reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within the DAF DP purview. This includes, but is not limited to, collaborating with MAJCOM/FLDCOM AEPM, installation DPMs, and other appropriate stakeholders and compiling relevant and aggregate data to support the DAF's EEOC MD 715 Report, FEORP Report, and DVAAP Report.

2.18.17. Processes and responds to congressional and other high-level inquiries on matters within the DAF DP purview in accordance with AFI 90-401 in coordination with AFPC AEP/DP Operation Support and SAF/MRQ. The MAJCOM/FLDCOM DPM will include SAF/MRQ on all correspondence sent in response to congressional and other higher-level inquiries.

2.18.18. Ensures proper and accurate documenting, tracking, and status updates are provided on all PAS, RA, and PWFA requests in the RAR Electronic System. This includes engaging with installation DPMs and/or supervisors when documentation is missing or needed in the RAR Electronic System, and timelines are being met.

2.18.19. Conducts effective quality control reviews of all data and information collected and tracked in the RAR Electronic System for his/her MAJCOM/FLDCOM and installations to ensure data integrity and enable the DAF to leverage data that is accurate, complete, thorough, up-to-date, consistent, and appropriately formatted to timely process and track RA and PAS requests.

2.18.20. Maintains and safeguards RA, PAS, and PWFA documentation as the custodian of the official record in accordance with AFI 33-322. This includes ensuring RA, PAS, and

PWFA documentation is protected in compliance with the Privacy Act of 1974, Freedom of Information Act, and other relevant laws and regulations. Ensures all records will be kept in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System. Refer to **Chapter 6**, **Chapter 7**, and **Chapter 8** for additional guidance.

2.18.21. Serves as alternate MAJCOM/FLDCOM AEPM in absence of a MAJCOM/FLDCOM AEPM and execute AEP related duties. Any MAJCOM/FLDCOM DPM appointed by the MAJCOM/FLDCOM commander as an alternate MAJCOM/FDLCOM AEPM will have this documented in an appointment letter. This also requires completing SAF/MRQ approved training that supports AEPM duties when directed and available as described in **Chapter 3**.

2.18.22. Process PAS and RA requests and execute other DP related duties in absence of installation DPMs.

2.18.23. Prepares and presents briefings in both informal and formal settings to senior leadership, other management personnel, and CAT and CAB on matters related to the DAF AEP.

2.19. MAJCOM/FLDCOM Equal Opportunity Functional Managers. Administers his/her respective MAJCOM/FLDCOM EO Program (i.e., EEO complaint program and MEO program) and serves as SME and advisor to MAJCOM/FLDCOM senior leaders on DAF EO programming matters as described in DAFI 36-2710.

2.19.1. Complies with data calls, request for information, and other-directed tasks to support statutory and policy EEO (AEP and DP) reporting requirements within his/her program purview such as collaborating with and providing relevant and aggregate EEO complaint data to the MAJCOM/FLDCOM AEPM to support the DAF's EEOC MD 715 Report.

2.19.2. Supports barrier analysis by providing aggregate EEO complaint trend data (e.g., trends related to EEO disability complaints), assisting with identifying possible triggers, and assisting, where appropriate, with developing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

2.20. Installation Commanders. Promotes and implements nondiscrimination and EEO (i.e., AEP and DP) policies for programs and activities consistent with laws, regulations, executive orders, directives, and DoD and DAF policies. Ensures the installation AEP and DP are implemented and supported. This includes ensuring support and contributions at his/her respective levels to the overarching DAF initiatives to eliminate EEO barriers.

2.20.1. Fosters and maintains a workplace and environment that promotes EEO and nondiscrimination for all civilian Airmen and Guardians.

2.20.2. Ensures civilian Airmen and Guardians under his/her purview are made aware of and have access to the DAF EEO (i.e., AEP, DP, EEO complaint program) policies, informed of their rights and responsibilities, and can request RA and PAS or report violations without fear of retaliation or reprisal.

2.20.3. Ensures the DAF EEO (i.e., AEP, DP, EEO complaint program) policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations

throughout the installation to include prominently posting the contact information for installation EO office, AEPMs, and DPMs.

2.20.4. Ensures installation AEPMs and DPMs have direct access to him/her to ensure he/she is informed of the effectiveness, efficiency, compliance, issues, and overall status and trends of the installation AEP and DP.

2.20.5. Appoints installation AEPMs and DPMs in writing to adequately support the statutory and regulatory AEP and DP requirements and activities (e.g., PAS, RA, barrier analysis, etc.). Installation commanders are encouraged to engage with his/her respective MAJCOM/FLDCOM AEPM and DPM for questions or insight on the DAF AEP and DP when appointing installation AEPMs and DPMs.

2.20.6. Ensures all appointed installation AEPMs and DPMs are available and properly trained to effectively execute the installation AEP and DP. Ensures installation AEPMs and DPMs complete training when directed and available as described in **Chapter 3** and **Chapter 5**.

2.20.7. Ensures installation AEPMs and DPMs have timely access to pertinent information and relevant data sources such as, but not limited to, workforce data, applicants for employment data, employee surveys (e.g., Federal Employee Viewpoint Survey, Defense Organizational Climate Survey, exit surveys, etc.), aggregate EEO complaint and general grievance complaint trends and outcomes, focus groups, and inspection/audit/assessment reports (e.g., EEOC reports, DoD Inspector General (IG), DAF IG, GAO, etc.) in performing their duties such as conducting or facilitating barrier analysis to monitor and track other AEP and DP related matters that may contribute to the overall installation mission readiness.

2.20.8. Ensures installation stakeholders respond to data calls, request for information, and other-directed tasks to support statutory and policy DAF EEO (AEP and DP) reporting requirements submitted to Congress, OPM, EEOC, and DoD such as but not limited to the EEOC MD 715 Report, DVAAP Report, and FEORP Report. This includes, but is not limited to, providing information on installation activities and efforts and improvements to talent management, employment lifecycle, and other human resources policies, practices, plans, and procedures as well as barrier analysis that support EEO and nondiscrimination.

2.20.9. Ensures barrier analysis is conducted to promote EEO and eradicate every form of prejudice or discrimination from personnel policies, practices, and working conditions.

2.20.10. Consults with installation DPMs to ensure he/she are informed on federal laws, regulations, and policies that protect IWD from unlawful discrimination and ensures PAS, RA, and PWFA requests are provided in accordance with laws, regulations, executive orders, directives, and DoD and DAF policies.

2.20.11. Serve as, or as delegated to a designee not below the grade of O-6 (or civilian equivalent), the final authority for PAS, RA, PWFA determination on claims of undue hardship to the DAF. Refer to **Chapter 6** and **Chapter 7** for additional information.

2.20.12. Ensures any programs or activities conducted or assisted by the DAF within his/her purview, including facilities and structures owned, leased, or otherwise financially or contractually supplemented or acquired do not discriminate against IWD. This includes ensuring that facilities and structures are sufficiently accessible and usable by IWD and that

IWD have equal opportunity to participate in and benefit from any programs or activities conducted by the DAF in accordance with federal laws and DoDD 1020.1 and DoDD 5500.11.

2.20.13. Ensures that adequate facilities, office support equipment, and financial resources are provided to the installation AEPMs and DPMs to effectively execute the AEP and DP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. This includes ensuring installation AEPMs and DPMs have access to conference space and classrooms to implement training and education requirements where applicable.

2.21. Installation Affirmative Employment Program Managers. Provides program management and administers their respective installation AEP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. This includes serving as SME and advisor to the installation commander, other commanders (or civilian equivalents), managers and supervisors, and installation stakeholders on AEP related matters as described in this publication.

2.21.1. Has direct access to the installation commander to inform the installation commander of the effectiveness, efficiency, compliance, issues, and overall status and trends of the installation AEP.

2.21.2. Be appointed to execute AEPM roles and responsibilities. Installation AEPMs appointed full-time to execute roles and responsibilities outlined in this publication do not need a separate appointment letter. Collateral duty installation AEPMs will be appointed in writing.

2.21.3. Completes SAF/MRQ approved training that supports AEPM duties when directed and available as described in **Chapter 3**.

2.21.4. Provides guidance and assistance to his/her respective installation commander, managers and supervisors, and stakeholders in implementing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the AEP.

2.21.5. Advocates for and makes available the AEP to civilian Airmen and Guardians and installation military and civilian senior leaders as described in this publication. This includes ensuring the installation civilian workforce receives adequate information about the AEP.

2.21.6. Collaborates with appropriate offices to advise commanders (or civilian equivalents), managers, supervisors, and other stakeholders on taking proactive steps to ensure EEO in all personnel administration and management matters throughout talent management cycle, including recruitment, hiring, retention, training, development, promotions, awards, and separations.

2.21.7. Ensures DAF EEO policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations throughout the installation to include prominently posting the contact information for the installation AEPMs and EO offices.

2.21.8. Regularly assesses whether civilian personnel programs, policies, and procedures conform to EEO laws and regulations. This includes evaluating employment practices to identify and remove EEO barriers and collaboratively establishing or supporting action plans to address identified EEO barriers with stakeholders.

2.21.9. Conducts, supports, or facilitates comprehensive analysis of affirmative employment efforts in coordination and collaboration with relevant stakeholders on workforce composition,

outreach recruiting, selections, promotions, performance, employee development, discipline, and awards and recognition.

2.21.10. Conducts, supports, or facilitates barrier analysis consistent with EEOC MD 715 in coordination and collaboration with organizations and functionals responsible for or have equities in various aspects of the talent management and employment lifecycle to include but not limited to, civilian personnel policy offices and CPS/HRO, EEO complaint program (e.g., EO office), DP, integrated primary prevention workforce, leaders and commanders (or civilian equivalent), supervisors/managers, and other CAT members**.** Establishes or supports development of action plans and corrective measures or activities to mitigate EEO barriers. Ensures action plans developed to mitigate EEO barriers are briefed and elevated, if appropriate, via the CAT and CAB. Refer to **Chapter 4** for additional information.

2.21.11. Collaborates with his/her respective integrated primary prevention workforce and other installation CAT members to support integrated prevention plans and activities where issues and topics are within the AEP purview.

2.21.12. Maintains a collaborative working relationship with servicing CPS/HRO and other appropriate stakeholders and organizations with equities to ensure compliance with legal, regulatory, and policy requirements concerning AEP.

2.21.13. Complies with data calls, request for information, and other-directed tasks to support statutory and policy reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within the DAF AEP purview. This includes, but is not limited to, collaborating with installation DPM and other appropriate stakeholders and compiling relevant and aggregate data to support the DAF's EEOC MD 715 Report, FEORP Report, and DVAAP Report.

2.21.14. Serves as the alternate installation DPM to process PAS and RA requests and execute other DP related duties in absence of an installation DPM as his/her installation. Any installation AEPM appointed by the installation commander as an alternate installation DPM will have this documented in an appointment letter. This also requires completing SAF/MRQ approved DPM and related training when directed and available as described in **Chapter 5** and **Chapter 8**.

2.21.15. Prepares and presents briefings in both informal and formal settings to senior leadership, other management personnel, and CAT and CAB on matters related to the DAF AEP.

2.22. Installation Disability Program Managers. Provides program management and administers their respective installation DP in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. This includes serving as SME and advisor to the installation commander, other commanders (and civilian equivalents), managers and supervisors, and installation stakeholders on DP related matters as described in this publication.

2.22.1. Has direct access to the installation commander to address RA and PAS requests as well as inform the installation commander of the effectiveness, efficiency, compliance, issues, and overall status and trends of the installation DP.

2.22.2. Be appointed to execute installation DPM roles and responsibilities. Installation DPMs appointed full-time to execute roles and responsibilities outlined in this publication do not need a separate appointment letter. Collateral duty installation DPMs will be appointed in writing.

2.22.3. Completes SAF/MRQ approved DPM and related training when directed and available as described in **Chapter 5**.

2.22.4. Completes DoD or DAF approved trainings on cyber awareness, safeguarding personally identifiable information (PII), or other SAF/MRQ approved training when directed and available to gain and maintain access to the RAR Electronic System. Refer to **Chapter 8** for additional information.

2.22.5. Provides guidance and assistance to his/her respective installation commander, managers and supervisors, and stakeholders in implementing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DP.

2.22.6. Advocates for and makes available the DP to civilian Airmen and Guardians and installation military and civilian senior leaders as described in this publication. This includes ensuring the installation civilian workforce receives adequate information on the availability of RA and PAS.

2.22.7. Serves as a lead and collaborates with the installation AEP and other appropriate programs/offices to advise commanders (or civilian equivalents), managers, supervisors, and other stakeholders on taking proactive steps to ensure EEO affecting IWD in all personnel administration and management matters throughout talent management cycle, including recruitment, hiring, retention, training, development, promotions, awards, and separations.

2.22.8. Ensures DAF EEO policies and other required materials are prominently posted in all CPS/HRO, and other high traffic locations throughout the installation to include prominently posting the contact information for the installation DPMs and EO offices.

2.22.9. Regularly assesses whether civilian personnel programs, policies, and procedures conform to EEO laws and regulations affecting IWD to include PAS and RA. This includes evaluating employment practices to identify and remove EEO barriers and collaboratively establishing or supporting action plans to address identified EEO barriers with stakeholders affecting IWD to include PAS and RA.

2.22.10. Conducts, supports, or facilitates comprehensive analysis of affirmative employment efforts affecting IWD (to include PAS and RA) in coordination and collaboration with the installation AEPM and other relevant stakeholders on workforce composition, outreach recruiting, selections, promotions, performance, employee development, discipline, and awards and recognition.

2.22.11. Conducts, supports, or facilitates barrier analysis consistent with EEOC MD 715 in coordination and collaboration with organizations and functionals responsible for or have equities in various aspects of the talent management and employment lifecycle affecting IWD (to include PAS and RA) to include but not limited to, AEP, civilian personnel policy offices and CPS/HRO, EEO complaint program (e.g., EO office), integrated primary prevention workforce, leaders and commanders (or civilian equivalent), supervisors/managers, and other CAT members**.** Establishes or supports development of action plans and corrective measures or activities to mitigate EEO barriers affecting IWD. Ensures action plans developed to

mitigate EEO barriers affecting IWD are briefed and elevated, if appropriate, via the CAT and CAB. Refer to **Chapter 4** for additional information.

2.22.12. Collaborates with his/her respective integrated primary prevention workforce and other installation CAT members to support integrated prevention plans and activities where issues and topics are within the DP purview.

2.22.13. Maintains a collaborative working relationship with servicing legal office, CPS/HRO, AEPM, and other appropriate stakeholders and organizations with equities to ensure compliance with legal, regulatory, and policy requirements concerning DP.

2.22.14. Ensures proper and accurate documenting, tracking, and status updates are provided on all PAS, RA, and PWFA requests in the RAR Electronic System. This includes engaging with supervisors when documentation is missing or needed in the RAR Electronic System, and timelines are being met.

2.22.15. Conducts effective quality control reviews of all data and information collected and tracked in the RAR Electronic System for his/her respective installation to ensure data integrity and enable the DAF to leverage data that is accurate, complete, thorough, up-to-date, consistent, and appropriately formatted to timely process and track RA and PAS requests.

2.22.16. Maintains and safeguards RA, PAS, and PWFA documentation as the custodian of the official record in accordance with AFI 33-322, *Records Management and Information Governance Program*. This includes ensuring RA, PAS, and PWFA documentation is protected in compliance with the Privacy Act of 1974, Freedom of Information Act, and other relevant laws and regulations. Ensures all records will be kept in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System. Refer to **Chapter 6**, **Chapter 7**, and **Chapter 8** for additional guidance.

2.22.17. Complies with data calls, request for information, and other-directed tasks to support statutory and policy reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within the DAF DP purview. This includes, but is not limited to, collaborating with and/or providing relevant and aggregate DP related data to the installation AEPM to support the DAF's EEOC MD 715 Report, FEORP Report, and DVAAP Report.

2.22.18. Serves as the installation AEPM in absence of an installation AEPM at his/her installation. Any installation DPM appointed by the installation commander as an alternate installation AEPM will have this documented in an appointment letter. This also requires completing SAF/MRQ approved training that supports AEPM duties when directed and available as described in **Chapter 3**.

2.22.19. Prepares and presents briefings in both informal and formal settings to senior leadership, other management personnel, and CAT and CAB on matters related to the DAF DP.

2.23. Installation Civilian Personnel Sections. Provides technical expertise on civilian personnel matters and provides personnel documents as required by supervisors and installation DPMs when processing RA and PAS requests.

2.23.1. Coordinates and assists RA and PAS requests that involve or require administrative or personnel actions (e.g., disability retirements, reassignments, separations, etc.) in coordination

with the applicable servicing operations center (e.g., AFPC, Space Force's Enterprise Talent Management Office [ETMO], Air Force Materiel Command [AFMC]).

2.23.2. Ensures installation AEPM and DPM duties and appointments are properly outlined in standard core documents and/or official personnel documents.

2.23.3. Supports AEP and DP activities in support of EEO and nondiscrimination to include, but not limited to, establishing procedures for hiring IWD including those with targeted disabilities.

2.23.4. Encourages hiring managers and supervisors to use legal hiring authorities that take disability into account in hiring actions such as Schedule A Hiring Authority (5 CFR § 213.3102(u)) for individuals with intellectual disabilities, severe physical disabilities, or psychiatric disabilities; Veterans Recruitment Appointment Authority (5 CFR Part 307); and 30% or More Disabled Veteran Authority (5 USC § 3112, 5 CFR § 316.302(b)(4), 5 CFR § 316.402(b)(4)). **Note:** On select installations, AFPC, ETMO, or AFMC, as appropriate, will work with installation CPS in executing the noted hiring authorities.

2.23.5. Manages the repository for Schedule A applicants as well as reviews applicants' eligibility under Schedule A, conducts qualification determinations, and makes referrals as appropriate. Ensures all installation level human resources specialists processing recruitment requests screen the Schedule A repository and make referrals of available applicants to the selecting officials, where appropriate, and after all mandatory placement priorities are satisfied in accordance with DAFMAN 36-203, *Staffing Civilian Positions*. Utilizes developed DAF tracking procedures to identify individuals who are sourced and hired from repository listings to successfully support the DAF's efforts on EEOC MD-715 Report and other relevant reporting requirements.

2.23.6. Complies with data calls, request for information, and other-directed tasks to support statutory and policy EEO (AEP and DP) reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within his/her program purview. This includes, but is not limited to, collaborating with and providing relevant data to the installation AEPM to support the DAF's EEOC MD 715 Report and FEORP Report.

2.23.7. Support barrier analysis by assisting with identifying possible triggers associated with various aspects of the talent management and employment lifecycle, and assisting, where appropriate, with developing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

2.23.8. Regularly assesses whether installation level civilian personnel programs, policies, and procedures conform to EEOC laws and regulations. This includes coordinating with the installation AEPM and DPM to provide input on talent management, the employment lifecycle, and other human resources plans, policies, procedures, and activities.

2.23.9. Serve as a liaison between a DAF applicant for employment and respective DPM to provide pertinent information to initiate requests for a DAF applicant requesting an accommodation.

2.24. Installation Human Resource Offices (HRO). Provides technical expertise on non-appropriated fund (NAF) civilian personnel matters and provides personnel documents as required by supervisors and installation DPMs when processing RA and PAS requests.

2.24.1. Coordinates and assists RA and PAS requests that involve or require administrative or personnel actions (e.g., disability retirements, reassignments, separations, etc.) in coordination with the applicable servicing operations center (e.g., Air Force Services Center).

2.24.2. Ensures installation AEPM and DPM duties and appointments are properly outlined in standard position descriptions/position guides and/or official personnel documents.

2.24.3. Supports AEP and DP activities in support of EEO and nondiscrimination to include, but not limited to, establishing procedures for hiring IWD including those with targeted disabilities.

2.24.4. Manages the NAF repository for NAF applicants as well as reviews applicants' eligibility, conducts qualification determinations, and makes referrals as appropriate. Ensures all installation level human resources specialists processing recruitment requests screen the NAF repository and make referrals of available applicants to the selecting officials, where appropriate, and after all mandatory placement priorities are satisfied in accordance with AFI 34-301, *Nonappropriated Funds Personnel Management and Administration.*

2.24.5. Complies with data calls, request for information, and other-directed tasks to support statutory and policy EEO (AEP and DP) reporting requirements, congressional inquiries, audits and review, and DoD and DAF senior leader inquiries within his/her program purview. This includes, but is not limited to, collaborating with and providing relevant data to the installation AEPM to support the DAF's EEOC MD 715 Report and FEORP Report.

2.24.6. Support barrier analysis by assisting with identifying possible triggers associated with various aspects of the talent management and employment lifecycle, and assisting, where appropriate, with developing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

2.24.7. Regularly assesses whether installation level NAF human resource programs, policies, and procedures conform to EEOC laws and regulations. This includes coordinating with the installation AEPM and DPM to provide input on talent management, the employment lifecycle, and other human resources plans, policies, procedures, and activities.

2.24.8. Serve as a liaison between a DAF NAF applicant for employment and respective DPM to provide pertinent information to initiate requests for a DAF applicant requesting an accommodation.

2.25. Installation Equal Opportunity Directors. Administers his/her respective installation EO Program (i.e., EEO complaint program and MEO program) in accordance with applicable laws, regulations, executive orders, directives, and DoD and DAF policies to include ensuring program impartiality. This includes serving as SME and advisor to the installation commander, other commanders (and civilian equivalents), and installation stakeholders on EO matters as described in DAFI 36-2710.

2.25.1. Complies with data calls, request for information, and other-directed tasks to support statutory and policy EEO (AEP and DP) reporting requirements within his/her program purview such as collaborating with and providing relevant and aggregate EEO complaint data to the installation AEPM to support the DAF's EEOC MD 715 Report.

2.25.2. Supports barrier analysis by providing aggregate EEO complaint trend data (e.g., trends related to EEO disability complaints), assisting with identifying possible triggers, and

assisting, where appropriate, with developing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

2.26. Installation Staff Judge Advocates. Provides legal advice to commanders at all levels and staff agencies on EEO related issues to include RA and PAS.

2.26.1. Provides legal advice and guidance on PAS and RA issues such as determining targeted disabilities or qualified individual with a disability and other legal issues that may arise regarding the coverage under the Rehabilitation Act and ADA.

2.26.2. Conducts legal sufficiency reviews on all preliminary denials to PAS or RA requests before submission to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), for endorsement before the denial is provided to the requesting employee (or applicant for DAF employment).

2.27. Commanders (Unit, Tenant, Direct Reporting Unit, Geographically Separated Units, Forward Operating Agency) and Civilian Equivalents. Promotes and implements nondiscrimination and EEO (i.e., AEP and DP) policies for programs and activities consistent with laws, regulations, executive orders, directives, and DoD and DAF policies. This includes taking proactive steps to respond, prevent, correct, eliminate, unlawful discrimination and discriminatory harassment (including sexual harassment) against DAF civilian employees, former employees, and applicants for employment are thoroughly addressed as described in DAFI 36-2710.

2.27.1. Fosters and maintains a workplace and environment that promotes EEO and nondiscrimination for all civilian Airmen and Guardians.

2.27.2. Ensures civilian Airmen and Guardians under his/her purview are made aware of and have access to the DAF EEO (i.e., AEP, DP, EEO complaint program) policies, informed of their rights and responsibilities, and can request RA and PAS or report violations without fear of retaliation or reprisal.

2.27.3. Supports barrier analysis by assisting the installation AEP and DP with identifying possible triggers associated with various aspects of the talent management and employment lifecycle and, where appropriate, assisting with developing and implementing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

2.28. Managers and Supervisors. Promotes and implements nondiscrimination and EEO (i.e., AEP and DP) policies for programs and activities consistent with laws, regulations, executive orders, directives, and DoD and DAF policies. This includes taking proactive steps to respond, prevent, correct, eliminate, and ensuring all allegations of unlawful discrimination and discriminatory harassment (including sexual harassment) against DAF civilian employees, former employees, and applicants for employment are thoroughly addressed as described in DAFI 36-2710.

2.28.1. Fosters and maintains a workplace and environment that promotes EEO and nondiscrimination for all civilian Airmen and Guardians.

2.28.2. Ensures civilian Airmen and Guardians under his/her supervision are made aware of and has access to DAF EEO (i.e., AEP, DP, EEO complaint program) policies, informed of their rights and responsibilities, and can request RA and PAS or report violations without fear of retaliation or reprisal.

2.28.3. Processes and provides decisions to his/her employee on PAS and/or RA requests as outlined in **Chapters 6** and **Chapter 7**. This includes ensuring coordination with appropriate coordinating entities to provide specific RA that falls outside the supervisory purview (e.g., approval of building modifications).

2.28.4. Notifies the employee under his/her supervision of the employee's right to file an EEO complaint when a PAS or RA request is denied as well as identifies and explains to the employee available avenues for informal dispute resolution.

2.28.5. Supports barrier analysis by assisting the installation AEP and DP with identifying possible triggers associated with various aspects of the talent management and employment lifecycle and, where appropriate, assisting with developing and implementing action plans to mitigate EEO barriers. Refer to **Chapter 4** for additional information on barrier analysis.

Chapter 3

AFFIRMATIVE EMPLOYMENT PROGRAM (AEP)

3.1. Overview. The DAF AEP implements federal laws (Title VII of the Civil Rights Act [Title 42 USC § 2000e *et seq*.], the Equal Pay Act (29 USC § 206(d)), the Rehabilitation Act of 1973 [29 USC § 791 *et seq*.] as amended by the Americans with Disabilities Act (ADA) of 1990), federal regulations (5 CFR Part 720, *Affirmative Employment Programs*, 29 CFR Part 1614, *Federal Sector Equal Employment Opportunity*, 32 CFR Part 191, *The DoD Civilian Equal Employment Opportunity (EEO) Program*), Equal Employment Opportunity Commission (EEOC) regulations (Management Directive [MD] 110, *Federal Sector Complaints Processing Manual*, EEOC MD 715, *Model Agency Title VII and Rehabilitation Act Programs)*, DoDD 1440.1 *The DoD Civilian Equal Employment Opportunity (EEO) Program*), and DoD policies on establishing affirmative programs of equal employment opportunity (EEO) and employment practices based on merit and qualifications and identifying and eliminating discriminatory policies, practices, and procedures. The DAF AEP is implemented to ensure EEO in all personnel administration and management matters throughout talent management cycle, including recruitment, hiring, retention, training, development, promotions, awards, and separations. The DAF strives to ensure affirmative employment by proactively recruiting, hiring, promoting, and retaining a resilient and ready workforce.

3.2. EEOC Model EEO Program Elements. The DAF is committed to affirmative employment and seeks to observe and implement the EEOC's Model EEO Program to the greatest extent possible as outlined in EEOC MD 715 that identifies six essential elements:

3.2.1. *Demonstrated Commitment from Agency Leadership.* Requires the agency head to communicate commitment to EEO and a discrimination-free workplace. This includes issuing an effective policy statement, communicating the agencies EEO policies and procedures to the workforce, and ensuring EEO principles are part of its culture.

3.2.2. *Integration of EEO into the Agency's Strategic Mission.* To achieve the goal of being a model workplace, all managers and employees must view EEO as an integral part of the agency's strategic mission. The success of an agency's EEO programs ultimately depends on decisions made by individual managers. The EEO office (via the EEO complaint program, AEP, and DP) serves as a resource to these managers by providing direction, guidance, and monitoring of key activities to achieve a workplace free of EEO barriers.

3.2.3. *Management and Program Accountability.* Requires the agency head to hold all managers, supervisors, and EEO officials responsible for the effective implementation of the agency's EEO programs and plans. This includes conducting internal audits to identify deficiencies and assess effectiveness of efforts to remove barriers and establishing procedures to prevent unlawful discrimination and provide reasonable accommodation and personal assistance services.

3.2.4. *Proactive Prevention of Unlawful Discrimination.* An agency must conduct a self-assessment on at least an annual basis. The self-assessment must identify areas where barriers may exist in employment policies, practices, and procedures and develop strategic plans to eliminate identified barriers. This is accomplished through the DAF's annual EEOC MD 715 Report. Refer to DAFI 90-5001, *Integrated Resilience*, for additional information on broader

primary prevention efforts of interpersonal and self-directed violence, to include workplace violence, harassment, and harmful behaviors.

3.2.5. *Efficiency.* Requires the agency head to ensure that there are effective systems for evaluating the impact and effectiveness of the agency's EEO programs and an efficient and fair dispute resolution process. This includes establishing and encouraging the widespread use of alternative dispute resolution (ADR) processes. Refer to DAFI 51-1201, *Negotiation and Dispute Resolution Program*, for additional information on the DAF's ADR processes.

3.2.6. *Responsiveness and Legal Compliance.* The agency must have processes in place to ensure timely and full compliance with EEOC orders and settlement agreements. The agency must comply with the law, including EEOC regulations, management directives, orders, and other written instructions concerning the EEO complaint program. Refer to DAFI 36-2710, *Equal Opportunity Program,* for additional information on the DAF EEO complaint program.

3.3. Affirmative Employment Program Oversight and Collaboration. While the DAF Equal Opportunity (EO) Program (SAF/MRQ) at the higher headquarters (HAF) level provides policy oversight and implements the DAF AEP, it requires the commitment, collaboration, and coordination with HAF stakeholders with equities in the DAF talent management cycle to execute and report on AEP strategies, policies, practices, procedures, and other human resource functions and activities such as but not limited to, SAF/MRM, SAF/MRL, SAF/MRB (SAF/MRBA), SAF/GC (SAF/GCA), AF/JA (AF/JAC), AF/A1 (AF/A1C), and SF/S1 as well as applicable servicing operations centers (i.e., AFPC, ETMO, and AFMC).

3.3.1. The DAF AEP is implemented across the DAF and requires commitment, collaboration, and coordination of leaders and commanders at all levels (including civilian equivalents), supervisors, managers, civilian personnel sections (CPS), human resources offices (HRO), all personnel responsible for employment decisions as well as DAF civilian employees. The DAF AEP supports the talent management cycle and is not a standalone program but assists in integrating a holistic organizational construct to realize EEO and nondiscrimination.

3.3.2. The DAF AEP requires critical integral development and execution of employment strategies, policies, practices, procedures, and other human resource functions and activities across DAF functional communities at all levels to ensure mission readiness and success. This includes assessing all career fields, grade levels (to include SES), and supervisory/non-supervisory roles for barriers to EEO in line with merit system principles (5 USC § 2301).

3.3.3. While the DAF EO Program at the HAF level oversees the DAF AEP, MAJCOM/FLDCOM and installation EO offices do not house or execute AEP functions that may subsequently disqualify EO functional managers, directors, or practitioners from or may cause a conflict of interest in conducting unbiased execution of their duties and functions outlined in DAFI 36-2710.

3.4. Below HAF Functional Execution of the Affirmative Employment Program. To ensure effective and efficient execution of the DAF AEP at respective levels, MAJCOM/FLDCOM and installation commanders (or civilian equivalents) will appoint an AEPM. Collateral duty AEPMs will be appointed in writing. AEPMs appointed full-time to execute roles and responsibilities outlined in this publication do not need a separate appointment letter. The AEPMs can be functionally aligned to the MAJCOM/FLDCOM civilian personnel policy offices and installation CPS.

3.4.1. MAJCOM/FLDCOM AEPMs will administer their respective MAJCOM/FLDCOM AEP, serve as subject matter experts (SME) and advisors to MAJCOM/FLDCOM senior leaders and stakeholders on DAF AEP programming matters, and provide guidance and assistance to their respective installation AEPMs in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF AEP as well as coordinate the activities of each installation AEPM within their program purview. **(T-1)**

3.4.2. Installation AEPMs will administer their respective installation AEP, serve as SMEs and advisors to installation senior leaders on DAF AEP programming matters, and provide guidance and assistance to installation stakeholders in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF AEP within their program purview. **(T-1)**

3.4.3. MAJCOM/FLDCOM and installation AEPM functions and activities will be separate and distinct from EEO complaint processing functions consistent with laws, regulations, and EEOC MD 110, which requires impartiality/neutrality of EO officials both in practice and appearance. EO officials (e.g., EO directors and practitioners, investigators, and Negotiation and Dispute Resolution (NDR) Program managers and practitioners) will not serve as AEPMs as it is inconsistent and presents a conflict of interest with their impartial/neutral roles. **(T-0)**

3.4.4. While execution of the AEP rests with various levels and across different offices of the organization, responsibility for accomplishing AEP objectives rests with all levels of DAF leadership. Recruitment mechanisms for achieving AEP objectives are primarily located within civilian personnel and human resources servicing organizations, including but not limited to AF/A1, SF/S1, servicing operation centers (i.e., AFPC, ETMO, and AFMC), and other MAJCOM/FLDCOM and installation civilian personnel activities.

3.4.5. In the absence of an installation DPM, the installation AEPM will serve as a DPM to process reasonable accommodations (RA) and personal assistance services (PAS) requests for his/her respective installation. MAJCOM/FLDCOM DPMs and AEPMs will process RA/PAS requests in the absence of an installation DPM or AEPM. Any AEPM appointed by the MAJCOM/FLDCOM and installation commander as an alternate DPM at the respective level will have this documented in an appointment letter. **(T-1)**

3.5. Affirmative Employment Program Training. To successfully execute respective roles and responsibilities, both collateral duty and full-time appointed MAJCOM/FLDCOM and installation AEPMs will complete SAF/MRQ approved training when directed and available. **(T-1)** Training that supports AEPM duties will be prioritized on topics such, but not limited to, statutory and policy requirements, barrier analysis, process improvement, among others. To be effective, training should be arranged as soon as possible upon appointment to the role of AEPM when training is available.

3.5.1. Any MAJCOM/FLDCOM and installation AEPM appointed as an alternate MAJCOM/FLDCOM or installation DPM will complete SAF/MRQ approved DPM and related training when directed and available. **(T-1)**

3.5.2. SAF/MRQ maintains discretion on how and where AEP or DP related training is met to include utilizing SAF/MRQ approved alternative courses. **(T-1)**

3.6. Special Emphasis Programs. As subsets of AEP, DAF special emphasis programs will be implemented consistent with 29 CFR Part 1614, 32 CFR Part 191, EEOC MD 110, EEOC MD

715, OPM guidance, and DoDD 1440.1, unless otherwise superseded by executive order or federal law, or updated guidance is provided from EEOC or OPM. **(T-0)**

3.6.1. Pursuant to OPM Memorandum, *Further Guidance Regarding Ending DEIA Offices, Programs and Initiatives,* dated 5 February 2025, and OPM Memorandum, *Merit Hiring Plan*, dated 29 May 2025, agencies should accordingly reorganize and, to the extent necessary, eliminate special emphasis programs that promote diversity, equity, and inclusion based on protected characteristics in any employment action or other term, condition, or privilege of employment, including but not limited to recruiting, interviewing, hiring, training or other professional development, internships, fellowships, promotion, retention, discipline, and separation. Consistent with the President's directives and civil rights law, including Executive Orders 11478, 14151, and 14170 and 29 CFR § 1614.101 *et seq*., agencies should focus personnel efforts on rewarding individual excellence. Accordingly, DAF special emphasis programs that do not align with the respective executive orders are discontinued at this time.

3.7. Special Observances. The DAF will not use official resources, to include man-hours, to host, co-sponsor, or participate in celebrations or events related to cultural awareness periods, including National African American/Black History Month, Women's History Month, Asian American and Pacific Islander Heritage Month, Pride Month, National Hispanic Heritage Month, National Disability Employment Awareness Month, and National American Indian Heritage Month. **(T-0)** Civilian personnel remain permitted to attend these events in an unofficial capacity, outside of duty hours, and off the installation. Installations, units, and offices are encouraged to celebrate the valor and success of military and civilian heroes of all races, sexes, and backgrounds in defense of the Nation. Celebrations should focus on the actions and the character of service of heroes and historical figures rather than their immutable characteristics.

3.7.1. This publication is not intended to prohibit or otherwise alter the DoD and DAF existing guidance on the use of DAF resources to participate in **(T-0)**:

3.7.1.1. Holiday celebrations that build camaraderie and esprit de corps;

3.7.1.2. Outreach events (e.g., recruiting engagements with all-male/all-female or minority-serving academic institutions) where doing so directly supports DoD's mission; and

3.7.1.3. Recognition of historical events and notable figures where such recognition informs strategic thinking, reinforces our unity, and promotes meritocracy and accountability.

3.7.2. Any EEO related special observance that is exclusive as to an individual or group's immutable characteristics that is not previously approved by law, regulation, executive order, OPM, DoD, or DAF will require approval from SAF/MR. **(T-1)** Requests for a new special observance will first be endorsed by the installation commander with concurrence at the MAJCOM/FLDCOM level or equivalent. **(T-1)** Requests for a new special observance will be staffed through the chain of command to SAF/MRQ to forward to SAF/MR to approve or disapprove. **(T-1)** Such proposed events should promote meritocracy, camaraderie, and/or esprit de corps.

3.7.3. Observances of a religious nature are not intended to be covered by the prohibitions of this section. Therefore, nothing in this publication will be construed to inhibit the free exercise of religion by civilian employees as protected by law. **(T-0)**

3.7.4. There is no bar to traditional celebrations outside the parameters of race, sex, and ethnicity. For additional guidance on events, celebrations, or observances outside the scope of EEO/AEP (e.g. Domestic Violence Awareness Month, Mental Health Awareness Month, etc.), contact the appropriate functional community with program oversight or the servicing legal office.

3.8. Connect to Care. The DAF AEP is committed to the DAF's "Connect to Care" approach to help ensure civilian Airmen and Guardians are connected to comprehensive and appropriate support services (e.g., EO office, Employee Assistance Program [EAP]) where eligible.

3.8.1. While the DAF AEP is not a direct service provider, MAJCOM/FLDCOM and installation AEPMs will provide referrals/warm hand-offs for DAF civilians, with the DAF civilian's consent, with the most appropriate DAF helping agency to support their needs where eligible. **(T-0)** Refer to DAFI 90-5001 and DAFI 90-6001, *Sexual Assault Prevention and Response (SAPR) Program*, for more information on the Connect to Care.

3.8.2. MAJCOM/FLDCOM and installation AEPMs will immediately facilitate referrals through warm hand-offs that are in-person, virtual, or telephonic, to the installation EO office when a DAF civilian requests information about or is interested in filing an EEO complaint alleging unlawful discrimination. **(T-0)**

Chapter 4

BARRIER ANALYSIS OBLIGATION

4.1. Overview. Pursuant to 29 CFR § 1614.102(a)(3), federal agencies will conduct a continuing campaign to eradicate every form of prejudice or discrimination from personnel policies, practices, and working conditions. Agencies have an ongoing obligation to prevent discrimination on the bases of protected classes pursuant to 29 CFR Part 1614, EEOC MD 110, and EEOC MD 715 and to eliminate barriers that impede free and open competition in the workplace. As part of this on-going obligation, agencies must conduct a self-assessment on at least an annual basis to monitor progress, identify areas where EEO barriers may exist in employment policies, practices, and procedures and develop strategic plans to eliminate identified barriers. These strategic plans must move beyond treating the symptoms and work to cure the root causes of the barriers. Where barriers are identified, the DAF must take measures to eliminate them where appropriate and possible. **(T-0)** The DAF accomplishes the statutory requirement for an agency's strategic plan for the overall DAF through the DAF's annual EEOC MD 715 Report. This process is known as barrier analysis.

4.1.1. Barrier analysis is defined as an investigation of anomalies found in workplace policies, procedures, and practices that limit or tend to limit equal employment opportunities for members of any race, sex, or national origin, or based on an individual's disability status. Barrier analysis identifies the root causes of those anomalies, and if appropriate, eliminates them.

4.2. Addressing Barriers to Equal Employment Opportunity. Pursuant to EEOC MD 715, the barrier analysis process is an examination of anomalies or triggers, found in an agency's employment-related policies, procedures, practices, and conditions. The goal of the examination is to identify the root cause(s) of those anomalies and, if appropriate, develop plans for eliminating the barriers. **Note:** Not all anomalies or triggers identified are necessarily barriers, but may be attributable to mission related objectives and requirements, legal considerations, and/or occupational safety matters.

4.2.1. It is crucial to conduct the full barrier analysis process to make data-driven decisions to determine whether a barrier exists.

4.2.1.1. The identification of a barrier is always a working hypothesis and should be tested throughout the development and implementation of an action plan. Secondary and tertiary effects of those changes should also be taken into consideration when developing and implementing action plans.

4.2.1.2. When conducting barrier analysis, it is important that the scope is focused on barriers to EEO. Ultimately, employment-related decisions (e.g., hiring, promotions, or awards) will be driven by and executed in accordance with merit system principles (5 USC § 2301). **(T-0)**

4.2.1.3. Plans developed to establish, modify, or eliminate certain employment-related policies, practices, or procedures based on an identified barrier(s) should only be made after the determination has been made that a barrier exists.

4.2.2. Employment-related barriers, many times unknowingly, can be imbedded in the organizational and operational structures of an agency that affect the day-to-day procedures

and practices at all levels of the organization. Barriers generally fall within one of three broad categories:

4.2.2.1. Institutional/structural (e.g., routines, traditions, or habits of the agency)

4.2.2.2. Attitudinal (e.g., stereotypes and false assumptions)

4.2.2.3. Physical (e.g., accessible entrances)

4.2.3. Statistical analysis alone is insufficient to determine the existence of workplace barriers. Identifying barriers requires a thorough examination of all relevant circumstances. A comprehensive understanding requires considering quantitative data within the overall context and incorporating qualitative data through a data-driven process.

4.2.4. Identifying possible triggers can be done using a variety of sources such as employee surveys (e.g., Federal Employee Viewpoint Survey, Defense Organizational Climate Survey, exit surveys, etc.), aggregate EEO complaint and general grievance complaint trends and outcomes, focus groups, and inspection/audit/assessment reports (e.g., EEOC reports, DoD Inspector General (IG), DAF IG, GAO, etc.).

4.2.5. Employment policies, practices, and procedures are developed, implemented, and executed at all levels within the DAF. Accordingly, barrier analysis will be accomplished and coordinated at all levels of the DAF with organizations and functionals responsible for or have equities on the identified trigger associated with various aspects of the talent management and employment lifecycle to include but not limited to, civilian personnel policy offices and civilian personnel sections/human resource offices, EEO complaint program (e.g., EO office), integrated primary prevention workforce, leaders and commanders (or civilian equivalent), supervisors/managers, and other community action team (CAT) members**. (T-1)**

4.2.5.1. Any action plans developed to mitigate barriers to EEO should be briefed and elevated, if appropriate, via the CAT and community action board (CAB). Refer to DAFI 90-5001, *Integrated Resilience*, for additional information on the responsibilities and functions of the CAT/CAB.

4.2.6. The DAF will take measures to eliminate barriers where appropriate and possible consistent with laws, regulations, executive orders, and OPM, EEOC, and DoD guidance. **(T-0)** This includes HAF-level organizations (e.g., SAF/MRM, SAF/MRL, AF/A1, SF/S1, SAF/GCA, AF/JAC) and AFPC conducting and supporting barrier analysis (e.g., workforce) to eliminate barriers to support EEO and nondiscrimination. HAF-level organizations (e.g., SAF/MRM, SAF/MRL, AF/A1, and SF/S1) and AFPC will ensure barrier analysis efforts, including action plans and corrective measures or activities, are provided as part of data calls to support the DAF's MD 715 Report. **(T-1)**

4.2.6.1. MAJCOM/FLDCOM and installation commanders will ensure, with support from their respective AEPMs, that barrier analysis is conducted consistent with EEOC MD 715 requirements. **(T-0)** Where barriers are identified at the respective level, MAJCOM/FLDCOM and installation commanders will ensure measures are taken to eliminate them where appropriate and possible consistent with laws, regulations, executive orders, and OPM, EEOC, and DoD guidance. **(T-0)** Refer to EEOC MD 715 Section II, *Barrier Identification and Elimination*, for additional guidance, processes, and types of barriers in conducting barrier analysis.

4.2.6.2. MAJCOM/FLDCOM and installation commanders will ensure to provide support at their respective levels to contribute to the overarching DAF initiatives to eliminate barriers to EEO. **(T-0)**

4.2.6.3. MAJCOM/FLDCOM and installation commanders will ensure barrier analysis efforts, including action plans and corrective measures or activities, are provided as part of data calls to support the DAF's MD 715 Report. **(T-1)**

Chapter 5

DISABILITY PROGRAM (DP)

5.1. Overview. The DAF DP implements federal laws (Title VII of the Civil Rights Act (Title 42 USC § 2000e *et seq*.), the Rehabilitation Act of 1973 [29 USC § 791 *et seq*.] as amended by the Americans with Disabilities Act (ADA) of 1990, the Pregnant Workers Fairness Act [42 USC § 2000gg *et seq*.],), federal regulations (5 CFR Part 720, *Affirmative Employment Programs*, 29 CFR Part 1614, *Federal Sector Equal Employment Opportunity*, 29 CFR Part 1630, *Regulations to Implement the Equal Employment Provisions of the Americans with Disabilities Act*, 32 CFR Part 191, *The DoD Civilian Equal Employment Opportunity (EEO) Program*), EEOC regulations (MD 110, *Federal Sector Complaints Processing Manual*, MD 715, *Model Agency Title VII and Rehabilitation Act Programs*), and DoD policies on establishing affirmative programs of equal employment opportunity, identifying and eliminating discriminatory policies, practices, and procedures, and making available reasonable accommodations and personal assistance services.

5.1.1. The DAF is committed to providing EEO and accessibility for employees and applicants for employment by establishing a comprehensive disability and reasonable accommodation program consistent with DoDD 1440.1, *The DoD Civilian Equal Employment Opportunity (EEO) Program*, and DoDI 1020.06, *Establishing and Maintaining Comprehensive and Effective Reasonable Accommodations Policies and Programs*, ensuring that all employees and applicants are able to fully participate and have equal access to participate in and contribute to the DAF mission. The DAF DP seeks to ensure opportunities are available to all and where necessary identify and eliminate barriers, discriminatory policies, practices, and procedures that prevent the participation in or ability to receive services or access to DAF programs or activities by individuals with disabilities (IWD).

5.2. Nondiscrimination. The DAF will not discriminate on the basis of disability in regard to the hiring, advancement or discharge of employees, employee compensation, job training, or other terms, conditions, and privileges of employment. The standards used to determine whether Section 501 of the Rehabilitation Act has been violated in a complaint alleging employment discrimination shall be the standards applied under the ADA pursuant to 29 USC § 705, 29 USC § 794a, and 29 CFR § 1614.203(b). **(T-0)**

5.3. Model Employer. The DAF will be a model employer of IWD and will give full consideration to the hiring, advancement, and retention of qualified IWD in the DAF workforce pursuant to 29 CFR § 1614.203(c). **(T-0)**

5.4. Affirmative Action Plan. Pursuant to 29 USC § 791(b) and 29 CFR § 1614.203(d), the DAF will implement a plan that provides sufficient assurances, procedures, and commitments to provide adequate hiring, placement, and advancement opportunities for IWD at all levels of federal employment. **(T-0)** This is accomplished through the DAF's annual EEOC MD 715 Report (Part J, *Special Program Plan for the Recruitment, Hiring, Advancement, and Retention of Persons with Disabilities*).

5.4.1. While all personnel actions and employment practices are based on merit and qualifications, the DAF will consider utilizing legal hiring authorities that take disability into account in hiring actions such as Schedule A Hiring Authority (5 CFR § 213.3102(u)) for individuals with intellectual disabilities, severe physical disabilities, or psychiatric disabilities;

Veterans Recruitment Appointment Authority (5 CFR Part 307); and 30% or More Disabled Veteran Authority (5 USC § 3112, 5 CFR § 316.302(b)(4), 5 CFR § 316.402(b)(4)). **(T-0)**

5.5. Reasonable Accommodations and Personal Assistance Services. Pursuant to the Rehabilitation Act, 29 CFR § 1614.203(d)(3), and 29 CFR 1614.203(d)(5), the DAF is required to provide reasonable accommodation (RA) and personal assistance services (PAS) to qualified IWD who are employees or applicants for employment, unless to do so would cause undue hardship to the DAF. **(T-0)** Refer to **Chapters 6** and **Chapter 7** for information on PAS and RA procedures.

5.6. Accessibility. The DAF is committed to meeting or exceeding the accessibility requirements and standards for IWD as part of the DAF's legal obligations under the Rehabilitation Act, as amended, and the Architectural Barriers Act (ABA) of 1968. The DAF will ensure any programs or activities conducted or assisted by the DAF, including facilities and structures owned, leased, or otherwise financially, or contractually supplemented or acquired, do not discriminate against IWD and will ensure IWD have equal opportunity to participate in and benefit from any programs or activities conducted or assisted by the DAF. Refer to **Chapter 10** for information on accessibility compliance and procedures.

5.7. Disability Program Oversight and Collaboration. While the DAF Equal Opportunity (EO) Program (SAF/MRQ) at the higher headquarters (HAF) level provides policy oversight and implements the DAF DP, it requires the commitment, collaboration, and coordination with HAF stakeholders that have equities in the DAF talent management cycle to execute and report on DP strategies, policies, practices, procedures, and other human resource functions. HAF stakeholders may include but are not limited to, SAF/MRM, SAF/MRL, SAF/MRB (SAF/MRBA), SAF/GC (SAF/GCA), AF/JA (AF/JAC), AF/A1 (AF/A1C), and SF/S1 (SF/S1C) as well as applicable servicing operations centers (i.e., AFPC, ETMO, and AFMC).

5.7.1. The DP is implemented across the DAF and requires commitment, collaboration, and coordination of leaders, commanders (or civilian equivalents), supervisors, managers, civilian personnel sections, human resource offices, and any other personnel responsible for employment decisions at all levels. The DAF DP supports the talent management cycle that allows for EEO and nondiscrimination.

5.7.2. The DAF DP requires critical integral development and execution of employment strategies, policies, practices, procedures, and other human resource functions and activities that support IWD across DAF functional communities at all levels to ensure mission readiness and success. This includes assessing all career fields, grade levels (to include SES), and supervisory/non-supervisory roles for barriers to EEO in line with merit system principles (5 USC § 2301).

5.7.3. While the DAF EO Program at the HAF level oversees the DAF DP, MAJCOM/FLDCOM and installation EO offices do not house or execute DP functions that may subsequently disqualify EO functional managers, directors, or practitioners from or may cause a conflict of interest in conducting unbiased execution of their duties and functions outlined in DAFI 36-2710.

5.8. Below HAF Functional Execution of the Disability Program. To ensure effective and efficient execution of the DAF DP at respective levels, MAJCOM/FLDCOM and installation commanders (or civilian equivalents) will appoint MAJCOM/FLDCOM and installation DPM(s). Collateral duty MAJCOM/FLDCOM and installation DPMs will be appointed in writing.

MAJCOM/FLDCOM and installation DPMs appointed full-time to execute roles and responsibilities outlined in this publication do not need a separate appointment letter.

5.8.1. The MAJCOM/FLDCOM DPMs will administer their respective MAJCOM/FLDCOM DP, serve as subject matter experts (SME) and advisors to MAJCOM/FLDCOM senior leaders and stakeholders on DAF DP programming matters, and provide guidance and assistance to their respective installation DPs in executing this publication and relevant statutory and DoD and DAF policies and initiatives affecting the DAF DP. MAJCOM/FLDCOM DPMs will be responsible for coordinating the activities of each installation DPM within their program purview. **(T-1)**

5.8.2. Installation DPMs will administer their respective installation DP, serve as SMEs and advisors to installation senior leaders on DAF DP programming matters, and provide guidance and assistance to installation stakeholders in executing this publication, relevant statutory and DoD and DAF policies and initiatives affecting the DAF DP within their program purview. **(T-1)**

5.8.3. MAJCOM/FLDCOM and installation DP functions and activities will be separate and distinct from EEO complaint processing functions consistent with laws, regulations, and EEOC MD 110, which requires impartiality/neutrality of EO officials both in practice and appearance. **(T-0)** EO officials (e.g., EO directors and practitioners, investigators, and Negotiation and Dispute Resolution (NDR) Program managers and practitioners) will not serve as DPMs as it is inconsistent and presents a conflict of interest with their impartial/neutral roles. **(T-0)**

5.8.4. Although execution of the DP rests with various levels and across different offices of the organization, responsibility for accomplishing DP objectives rests with all levels of DAF leadership. Recruitment mechanisms for achieving DP objectives are primarily located within civilian personnel and human resources servicing organizations, including but not limited to AF/A1, AFPC, USSF, and MAJCOM/FLDCOM and installation civilian personnel activities.

5.8.5. In the absence of an installation DPM, the installation AEPM will serve as an installation DPM to process RA/PAS requests for his/her respective installation. MAJCOM/FLDCOM DPMs and AEPMs will process RA/PAS requests in the absence of an installation DPM or AEPM. Any MAJCOM/FLDCOM or installation DPM appointed by the MAJCOM/FLDCOM and installation commander as an alternate MAJCOM/FLDCOM or installation AEPM will have this documented in an appointment letter. **(T-1)**

5.9. Disability Program Training. To successfully execute respective roles and responsibilities as prescribed in 29 CFR § 1614.203 and DoDI 1020.06, both collateral duty and full-time appointed DPMs will complete SAF/MRQ approved DPM and related training when directed and available. **(T-1)** To be effective in the appointment to DPM roles, training should be arranged as soon as possible upon appointment to the role of DPM. SAF/MRQ maintains discretion on how and where training is met to include utilizing SAF/MRQ approved alternative courses. **(T-1)**

5.10. Connect to Care. The DAF DP is committed to the DAF's "Connect to Care" approach to help ensure civilian Airmen and Guardians are connected to comprehensive and appropriate support services (e.g., EO office, Employee Assistance Program [EAP]) where eligible.

5.10.1. DPMs will provide referrals/warm hand-offs for DAF civilians, with the DAF civilian's consent, with the most appropriate DAF helping agency to support their needs where

eligible. **(T-0)** Refer to DAFI 90-5001 and DAFI 90-6001 for more information on the Connect to Care.

5.10.2. MAJCOM/FLDCOM and installation DPMs will immediately facilitate referrals through warm hand-offs that are in-person, virtual, or telephonic, to the installation EO office when a DAF civilian requests information about or is interested in filing an EEO complaint alleging unlawful discrimination. **(T-0)**

Chapter 6

PERSONAL ASSISTANCE SERVICES

6.1. Overview. As part of federal agencies' obligation to implement the Rehabilitation Act of 1973 (29 USC § 791 *et seq*.) as amended, and under EEOC regulations, federal agencies are required to provide personal assistance services (PAS) to civilian employees who, because of targeted disabilities, require such assistance in order to be at work or participate in work-related travel pursuant to 29 CFR § 1614.203(d)(5).

6.2. Applicability. DAF civilian employees, regardless of type or duration of employment, may request PAS through the process outlined in this chapter. The DAF does not provide PAS to contractor personnel and such individuals should contact their contracting employer to see if it offers PAS.

6.3. Obligation. Consistent with 29 CFR § 1614.203(d)(5)(i), the DAF will provide PAS during work hours and position-related travel provided (1) the DAF employee requires such services because of a targeted disability, (2) provision of such services would, together with any reasonable accommodations (RA) required under the standards set forth in 29 CFR Part 1630, enable the DAF employee to perform the essential functions of his/her position, and (3) provision of such services would not impose undue hardship on the DAF.

6.3.1. When work-related travel is required and results in an employee's inability to rely on his/her usual source of PAS during both work and off-work hours, the DAF is required to provide PAS at all times during that work-related travel, absent undue hardship.

6.4. Definitions.

6.4.1. *Personal Assistance Services (PAS)*. Pursuant to 29 CFR § 1614.203(a)(5), PAS means assistance with performing activities of daily living that an individual would typically perform if he/she did not have a disability, and that is not otherwise required as a RA, including, for example, removing and putting on clothing, eating, and using the restroom.

6.4.1.1. PAS do not help individuals with disabilities perform specific functions of the position (e.g., reviewing documents or answering questions that come through a call-in center).

6.4.1.2. PAS are not reasonable accommodations (RA) pursuant to 29 CFR § 1630.2(o), which assist individuals with disabilities in performing essential functions of their position. PAS differ from services that may be provided as RA which help an individual to perform job-related tasks, such as sign language interpreters who enable individuals who are deaf to communicate with coworkers or readers who enable individuals who are blind or have learning disabilities to read printed text. Refer to **Chapter 7** for additional information on RA.

6.4.2. *Targeted Disabilities*. Pursuant to 29 CFR § 1614.203(a)(9), targeted disability means a disability that is designated as a "targeted disability or health condition" on the Office of Personnel Management's Standard Form 256:

6.4.2.1. Developmental disability;

6.4.2.2. Traumatic brain injury;

6.4.2.3. Deaf or serious difficulty hearing (e.g., benefiting from sign language, Computer Aided Real-Time Transcription (CART), hearing aids, a cochlear implant and/or other supports);

6.4.2.4. Blind or serious difficulty seeing, even when wearing corrective glasses;

6.4.2.5. Missing extremities (e.g., arm, leg, hand, and/or foot);

6.4.2.6. Significant mobility impairment (e.g., benefiting from a wheelchair, scooter, walker, leg brace(s) and/or other supports);

6.4.2.7. Partial or complete paralysis by any cause;

6.4.2.8. Epilepsy and other seizure disorders;

6.4.2.9. Intellectual disability;

6.4.2.10. Significant psychiatric disorder (e.g., bipolar disorder, schizophrenia, post-traumatic stress disorder (PTSD), major depression);

6.4.2.11. Dwarfism;

6.4.2.12. Significant disfigurement (e.g., burns, wounds, accidents, or congenital disorders);

6.4.3. *Undue Hardship*. Pursuant to 29 CFR § 1630.2(p), undue hardship means significant difficulty or expense incurred by a covered entity, when considered considering the factors set forth in 29 CFR § 1630.2(p)(2).

6.5. Requesting Personal Assistance Services. A DAF employee (hereafter referred to as the requestor) may request a PAS orally or in writing at any time to his/her supervisor, a supervisor or manager in the employee's immediate chain of command, or the disability program manager (DPM).

6.5.1. *Requests Made on Behalf of an Employee*. A representative may request a PAS orally or in writing on behalf of an employee, such as a family member, friend, bargaining unit representative, healthcare professional, or other representative. If the DAF receives a request from a representative, the supervisor or installation DPM will confirm the need for a PAS with the employee.

6.5.2. *Information for Personal Assistance Services Requests*. Although there is no required format for PAS requests, certain information may be required to process the PAS request such as employee name, information about the about the targeted disability, why the requested PAS is needed, the specific functional limitations posed by the targeted disability, and an explanation of how PAS will allow the employee to accomplish activities of daily living while at the workplace, to include alternate duty locations and during work-related travel. **(T-1)**

6.6. Written Confirmation of Requests for Personal Assistance Services. While not required, the requestors or his/her representative are encouraged to consider submitting their PAS request via the preferred method of the DAF Reasonable Accommodations Request (RAR) Electronic System, which assists the DAF with timely processing, to include automatic notifications to the respective supervisor to promptly process the request and installation DPM to assist with the proactive engagement in the process.

6.6.1. Using the RAR Electronic System also enables accurate DAF management of records on PAS requests. The RAR electronic form to submit a PAS request is accessible on the Reasonable Accommodation Request SharePoint at: https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx.

6.6.2. If a requestor or his/her representative initially requested PAS orally, the requestor will follow up with his/her supervisor to confirm his/her PAS request in writing. **(T-1)** If the requestor or his/her representative does not use the RAR Electronic System to initiate a PAS or to confirm his/her request in writing (e.g., provides written confirmation via email or hardcopy memorandum to the supervisor), the supervisor will upload the written confirmation into the RAR Electronic System by submitting the request on the individual's behalf. **(T-1)**

6.6.3. If the requestor or his/her representative does not submit his/her PAS request through the RAR Electronic System or makes the PAS request orally, the supervisor will ultimately be responsible for entering the PAS request and uploading relevant documentation into the RAR Electronic System. Regardless of whether or not the requestor makes a PAS request in the RAR Electronic System, all PAS requests will be formally annotated in the RAR Electronic System to ensure accuracy of the data reported. **(T-1)**

6.7. Processing and Timeline of Personal Assistance Services Requests.

6.7.1. While the DPM oversees the overall PAS request process at his/her respective MAJCOM/FLDCOM and installation levels, it will be the ultimate responsibility of a supervisor (or decision authority), with support and guidance from the respective DPM, to process PAS requests. **(T-0)**

6.7.2. The supervisor will be responsible for uploading any documentation received related to the PAS request into the RAR Electronic System. **(T-1)** In extenuating circumstances (e.g., technical issues or errors in the system, etc.), the installation DPM will assist the supervisor by entering data and information and uploading documentation to the RAR Electronic System. **(T-1)**

6.7.3. The installation DPM is responsible for ensuring proper and accurate documenting, tracking, and status updates are provided on all PAS requests in the RAR Electronic System. **(T-1)** This will include engaging with the supervisor when documentation is missing or needed in the RAR Electronic System, ensuring timelines are being met, and supervisors are engaging with the requestor. **(T-1)**

6.7.4. In the absence of an installation DPM, the installation affirmative employment program manager (AEPM) will process PAS requests for his/her installation. **(T-1)** MAJCOM/FLDCOM DPMs and AEPMs will process PAS requests in the absence of an installation DPM or AEPM. **(T-1)**

6.7.5. Supervisors (or decision authorities), with support from installation DPMs, will expeditiously process and provide a PAS decision to the requestor in writing no longer than 30 calendar days from receipt of the PAS request, absent extenuating circumstances. **(T-1)** The timeline will be regardless of whether the requestor or his/her representative makes the PAS request orally or in writing. **(T-0)**

6.7.6. Supervisors (or decision authorities) will ensure that PAS requests are not delayed due to leave, temporary duty, or other absence for those involved in the PAS request processing. **(T-0)**

6.7.7. If the timeline cannot be met, the supervisor, in coordination with the installation DPM, will notify the requestor of the reasons for the delay and an approximate date on which a decision can be expected. The installation DPM will ensure that this is documented in the RAR Electronic System. **(T-1)**

6.7.7.1. In some instances, there may be extenuating circumstances which make timely processing unfeasible and require extending timelines for PAS request processing. Extenuating circumstances are factors that could not reasonably have been anticipated or avoided in advance of a PAS request. The installation DPM will ensure that extenuating circumstances and delayed timelines are documented in the RAR Electronic System. **(T-1)**

6.7.8. After receiving a PAS request, the supervisor will promptly contact the installation DPM to request any required assistance in processing the request. **(T-1)** This can include the supervisor consulting with the installation DPM on effective communication techniques and providing available resources.

6.7.9. After receiving a PAS request, the supervisor will promptly acknowledge receipt of the PAS request and initiate an interactive dialogue with the requestor. **(T-1)** This may require the supervisor, in coordination with or support from the installation DPM, to request certain information from the requestor to process the PAS request such as employee name, information about the targeted disability, why the requested PAS is needed, the specific functional limitations posed by the targeted disability, and an explanation of how PAS will allow the employee to accomplish activities of daily living while at the workplace, to include alternate duty locations and during work-related travel.

6.7.10. When assistance is needed, the supervisor and/or installation DPM will consult with the servicing legal office and/or MAJCOM/FLDCOM DPM in processing a PAS request such as, but not limited to, determining targeted disability status, appropriate PAS, or when considering alternative solutions to PAS different than from what was requested. **(T-1)**

6.7.11. If the same requestor submits multiple PAS requests, the installation DPM will follow up with the requestor's supervisor to determine if the submissions are duplicates. **(T-1)** If it is identified that the PAS requests are duplicates, the installation DPM will annotate the newest submission as "complete" and annotate that it is a duplicate submission. **(T-1)**

6.8. Confirmation of a Targeted Disability. While the supervisor is ultimately responsible (or decision authority), for processing a PAS request to make a decision to approve or deny, the installation DPM will be responsible for reviewing and confirming the existence of a targeted disability when the disability is not obvious based information provided by the requestor or his/her representative. **(T-1)**

6.8.1. When a targeted disability or need for PAS is not obvious, the supervisor, with coordination with the installation DPM in an advisory role, may request medical documentation to help determine whether the requestor has a targeted disability. The supervisor is responsible for engaging with the requestor to obtain the required information and documentation; however, the installation DPM can provide assistance on what types of information can be asked or obtained to ensure compliance with applicable laws. **(T-1)**

6.8.2. Requests for medical documentation will be limited to the nature of the requestor's disability, which may include identifying a targeted disability and functional limitations for which PAS are required and a description of how PAS will allow the requestor to conduct activities of daily living in the workplace, to include alternate duty locations and work-related travel. **(T-0)**

6.8.3. If complex or novel legal issues are raised in determining or confirming a targeted disability, the supervisor, in coordination with the installation DPM, will consult with the servicing legal office prior to making a decision. **(T-1)**

6.9. Modification. It is permissible for the DAF to provide an alternative PAS solution different from the one specifically requested by the requestor if it is effective for the requestor and the DAF. Regardless, the DAF will provide a PAS provider to an employee with an approved PAS. **(T-0)**

6.9.1. A modification to provide an alternative solution other than the one specifically requested will be considered as an approved PAS and not a denial of PAS. **(T-0)**

6.9.2. The employee will be provided written notification that explains the reason for providing an alternative solution from the original PAS requested and why the alternative solution is believed to be effective**. (T-1)**

6.10. Decision and Notifications. In the DAF, the requestor's supervisor will be the decision authority on PAS based on the requestor assignment to him/her (unless elevated to a higher level). **(T-1)** The supervisor has regular and direct communication with the employee and can readily address any concerns or issues that arise during the PAS process. The supervisor is ultimately responsible for ensuring that the approved PAS is provided and implemented. The supervisor (or decision authority) will inform the requestor whether the requested PAS is approved, whether an alternative PAS solution will be provided; or that the request is denied. The notification of decision will be provided in writing. **(T-0)**

6.10.1. In the event a requestor's proposed PAS requires coordination with other DAF entities, the supervisor will engage in writing within three calendar days of receipt (apart from extenuating circumstances) with the appropriate entity to provide the PAS. **(T-1)** The installation DPM, with assistance from or coordination with the servicing legal office, will advise all parties of DAF's legal requirements. Supervisors, in coordination with the coordinating entity and the installation DPM, will route the denial with specific reasons for the denial to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent) for decision as described in paragraphs **6.10.6** through **6.10.6.4**.

6.10.2. The supervisor will ensure timely coordination with appropriate coordinating entity as soon as practicably possible to avoid any DAF liability under the Rehabilitation Act and EEOC regulations for denial of PAS request based on undue delay in responding and providing a decision on the PAS request. **(T-0**)

6.10.3. When a PAS is referred to another appropriate decision authority (e.g. elevated to a higher level), the supervisor, in coordination with the installation DPM, will notify the requestor in writing of why the PAS was referred to another decision authority. The installation DPM will ensure this notification is annotated in the RAR Electronic System to include uploading a copy of the written referral. **(T-1)**

6.10.4. When referring the PAS to another appropriate decision authority, the supervisor, in coordination with the installation DPM, will notify that decision authority of why the PAS request was referred and the timeline to process the PAS request, and provide the installation DPM contact information as a resource. The installation DPM will ensure this notification is annotated in the RAR Electronic System to include uploading a copy of the written referral. **(T-1)**

6.10.5. *Approval of Personal Assistance Services*. When the supervisor (or decision authority) approves the requested PAS solution or an alternative solution, the notification will describe the solution being offered as well as when it will be provided. Approvals will be documented in writing and will be provided to the requestor within 30 calendar days from the date of the PAS request submission, absent extenuating circumstances. **(T-1)**

6.10.6. *Denial of Personal Assistance Services*. When the supervisor (or decision authority) denies a PAS request, it will be documented in writing and will be provided to the requestor within 30 calendar days from the date of the PAS request submission, absent extenuating circumstances. The installation DPM will ensure the denial is annotated in and uploaded into the RAR Electronic System. **(T-1)**

6.10.6.1. A decision to deny PAS at the supervisory level will be considered preliminary and promptly forwarded to the servicing legal office for legal sufficiency review before submission to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), for endorsement before being provided to the requestor. **(T-1)**

6.10.6.2. The installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), will be the final authority for PAS determination on claims of undue hardship to the DAF. **(T-1)**

6.10.6.3. Denials will include specific reasons for the denial and identify the individual and office that made the final decision. **(T-1)**

6.10.6.4. The requestor may contact his/her supervisor (or decision authority) or installation DPM for questions regarding the denial of a PAS request.

6.10.7. *Filing EEO Complaints*. Requestors who meet criteria per 29 CFR Part 1614 have a right to file an EEO complaint if he/she was denied a PAS and believes he/she was unlawfully discriminated against based on a protected class (e.g., disability). The requestor must contact an EO Practitioner within 45 calendar days of the matter allegedly discriminatory (e.g., date of receiving a PAS denial notification). **(T-0)** Refer to DAFI 36-2710, *Equal Opportunity Program*, for additional information on EEO complaint process and DAFI 51-1201, *Negotiation and Dispute Resolution Program*, for alternative dispute resolution.

6.10.7.1. Supervisors will notify the requestor of his/her right to file an EEO complaint regardless of participation in an informal dispute resolution process and will identify and explain available avenues for informal dispute resolution. **(T-0)**

6.11. Implementation or Personal Assistance Services. Pursuant to 29 CFR § 1614.203(d)(5)(ii), the DAF is required to have PAS performed by a PAS provider. Pursuant to 29 CFR § 1614.203(d)(5)(iv), the DAF will give consideration to the employee's preference to the

extent permitted by law when selecting a PAS provider, however, the employee is not entitled to the PAS provider of his/her choice.

6.11.1. When requested, the installation DPM will provide the respective supervisor guidance on how to acquire and implement approved PAS. **(T-1)**

6.11.2. The installation DPM will follow up with the supervisor to ensure the PAS is provided in a timely manner. **(T-1)**

6.12. Closure of Personal Assistance Services Requests. The installation DPM will ensure that a PAS request is officially closed out in the RAR Electronic System and marked as "approved" (i.e., pending delivery or implementation), "complete" (i.e., accommodations have been implemented/provided), or "denied" only after the requestor is provided written notification of the PAS decision and all required information is annotated in and uploaded in the RAR Electronic System. **(T-1)**

6.13. Funding. DAF organizations may utilize Emergency Special Program (ESP) Code (7F) to request reimbursement for costs associated with providing PAS if organizations are unable to fund the PAS locally. **(T-1)**

6.13.1. PAS costs should not delay a supervisor or a final decision authority from making a decision to approve or deny a PAS request. Decisions on PAS requests will be made within 30 calendar days from the date of the PAS request submission. **(T-1)**

6.13.2. The use of ESP Code 7F to request a reimbursement of cost associated with providing PAS is accomplished on a quarterly basis through the appropriate financial point of contact assigned to process reimbursable expenses.

6.14. Personal Assistance Services for Training and Development Opportunity. In the event an employee with a targeted disability requires PAS to attend training or development opportunity, the employee requiring PAS will work with the point of contact that administers the training program to obtain PAS. **(T-1)** The employee may engage his/her supervisor if assistance is needed in requesting PAS. For an employee with an existing PAS request being implemented, this does not require submitting a new PAS request unless additional PAS support is needed not identified in their original request. For submission of a new PAS request, follow guidance outlined in **paragraph 6.5** of this publication.

6.15. Teleworking Employees and Personal Assistance Services. The DAF is required to provide PAS to a teleworking DAF employee if he/she has a targeted disability, he/she requires services because of his/her targeted disability, he/she will be able to perform the essential functions of his/her position without posing a direct threat to safety, and providing PAS will not impose undue hardship on the DAF.

6.16. Commuting to/from Work and Personal Assistance Services. The DAF is not required to provide PAS to help employees commute to/from work. The DAF is only required to provide PAS while the employee is working.

6.17. Records Collection, Management, and Disposition. All PAS information and records will be maintained and safeguarded in accordance with applicable laws, regulations, and policies to include, but not limited to, the Privacy Act of 1974, Freedom of Information Act (FOIA), DoDI 5400.11*, DoD Privacy and Civil Liberties Programs*, DoDI 5200.48, *Controlled Unclassified Information*, DoDI 5015.02, *DoD Records Management Program*, Directive-type Memorandum

(DTM) 22-001, *DoD Standards for Records Management Capabilities in Programs Including Information Technology*, DAFI 16-1403, *Controlled Unclassified Information*, AFI 33-332, *Air Force Privacy and Civil Liberties Program*, AFI 33-322, *Records Management and Information Governance Program*, and AFI 17-130, *Cybersecurity Program Management*. **(T-0)** The installation DPM serves as the custodian of the official records for PAS at his/her respective installation. **(T-1)**

6.17.1. The installation DPM will ensure all information (i.e., records) related to PAS will be properly maintained and disposed of in accordance with AFI 33-322 and the Air Force Records Disposition Schedule, which is in the Air Force Records Information Management System (AFRIMS). **(T-1) Note:** The Air Force Records Disposition Schedule is the list of all National Archives-approved records dispositions for the DAF. This includes hardcopy and electronic records as well as other records other than paper or electronic medium as described in AFI 33-322.

6.17.1.1. The installation DPM will maintain records related to PAS for three years after employee separation from the agency or any appeals are concluded, whichever is later, but longer retention is authorized if required for business use. **(T-1)** Records include, but are not limited to, request; approvals; denials; notice of procedures for filing EEO complaints, alternative dispute resolution, or appeal processes; forms; correspondence; records of oral conversations; medical records; and supporting notes and documentation.

Chapter 7

REASONABLE ACCOMMODATION OF DISABILITY

7.1. Overview. The Rehabilitation Act of 1973 (29 USC § 791 *et seq.*), as amended by the Americans with Disabilities Act (ADA) of 1990 (42 USC § 12101 *et seq.*), as amended, requires the DAF to provide reasonable accommodations (RA) to qualified individuals with disabilities who are employees or applicants for employment, unless to do so would impose undue hardship on the DAF. Reasonable accommodation is, generally, a modification or adjustment to the work environment, or the manner in which activities are customarily performed, that enable an individual with a disability to enjoy equal benefits and privileges of employment as are enjoyed by similarly-situated employees without disabilities, or which allow a qualified applicant for employment with a disability to be considered for the position the qualified person desires. **(T-0)** Providing reasonable accommodation is a case-specific and fact-specific process.

7.2. Applicability. DAF civilian employees, regardless of type or duration of employment, and all applicants for DAF employment may request RA through the process outlined in this chapter. The DAF does not provide RA to contractor personnel and such individuals should contact their contracting employer for RA. In some circumstances, the DAF may have a joint obligation with contracting employers to provide RA to contractor personnel, which may be determined in consultation with the servicing legal office.

7.3. DAF Commitment to Individuals with Disabilities. The DAF is committed to nondiscrimination and equal opportunity to include protecting individuals with disabilities. The DAF will provide RA to qualified individuals with a disability and qualified applicants for employment with a disability in accordance with federal laws, regulations, DoD and DAF policies, and applicable collective bargaining agreements. **(T-0)** The DAF will ensure that:

7.3.1. Disability program managers (DPM) are appointed in writing at the MAJCOM/FLDCOM and installation levels to provide subject matter expertise, provide employees with knowledge about and access to available RA resources, and assist with ensuring supervisors are familiar with, adhere to, and process RA requests (RAR) in a timely manner. **(T-0)**

7.3.2. RA procedures are posted to a DAF Accessibility public website at **https://www.af.mil/Accessibility/** and will be made available to all employees and applicants for employment in written and accessible formats that are easy to understand pursuant to 29 CFR § 1614.203(d)(3)(i). **(T-0)**

7.4. Definitions.

7.4.1. *Reasonable Accommodation*. Pursuant to 29 CFR § 1630.2(o), RA is any modification or adjustment to a job application process that enables a qualified applicant with a disability to be considered for the position such qualified applicant desires; or modifications or adjustments to the work environment, or to the manner or circumstances under which the position held or desired is customarily performed, that enable an individual with a disability who is qualified to perform the essential functions of that position; or modifications or adjustments that enable a covered entity's employee with a disability to enjoy equal benefits and privileges of employment as are enjoyed by its other similarly situated employees without disabilities.

7.4.1.1. Example types of RA request, may include, but are not limited to: making existing facilities used by employees readily accessible to and usable by individuals with disabilities; job restructuring; modifying work schedules; reassignment of a current employee to a vacant position; acquiring or modifying equipment or devices; adjusting or modifying of examinations, training materials, or policies; providing of qualified readers or interpreters; granting breaks or providing leave; altering how, where, or when job duties are performed; moving to or providing a different office space; providing assistive technology, including information technology and communication equipment or specially designed furniture; removing an architectural barrier, including reconfiguring work spaces; providing accessible parking; providing materials in alternative formats; providing an interpreter, a reader, or other type of assistant to enable employees to perform the essential functions of their job, where the accommodation cannot be provided with existing staff; providing telework; or other options identified by the supervisor and employee as part of the interactive process. An employer is not obligated to provide personal use items such as glasses or hearing aids nor required to remove an essential function of the job as an accommodation. An employer does not have to provide an employee with a new supervisor as an RA.

7.4.2. *Essential Functions*. Pursuant to 29 CFR § 1630.2(n), essential functions mean the fundamental job duties of the employment position the individual with a disability holds or desires. The term essential functions do not include the marginal functions of the position.

7.4.3. *Qualified.* Pursuant to 29 CFR § 1630.2(m), qualified with respect to an individual with a disability means that the individual satisfies the requisite skill, experience, education and other job-related requirements of the employment position such individual holds or desires and, with or without reasonable accommodation, can perform the essential functions of such position. Exceptions to this definition are outlined in 29 CFR § 1630.3

7.4.3.1. Whether an individual is a qualified individual with a disability is ultimately a legal issue and when questions arise regarding coverage under the Rehabilitation Act and ADA, supervisors, decision authorities, and installation DPMs should consult with their servicing legal office.

7.4.4. *Undue Hardship.* Pursuant to 29 CFR § 1630.2(p), undue hardship means significant difficulty or expense incurred by a covered entity, when considered considering the factors set forth in 29 CFR § 1630.2(p)(2).

7.4.4.1. Determining whether a RA would create an undue hardship for the DAF will be made on a case-by-case basis with the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), as the final decision authority. **(T-1)**

7.5. Requesting Reasonable Accommodations. Pursuant to 29 CFR § 1614.203(d)(3)(i)(D), a DAF employee or applicant (hereafter referred to as the requestor) may make a RA request (RAR) orally or in writing at any time to his/her supervisor, a supervisor or manager in the employee's immediate chain of command, any agency employee connected with the application process (e.g., civilian personnel section (CPS), human resource offices (HRO), etc.), or installation DPM.

7.5.1. An employee may make an RAR at any time, even if the employee has not previously disclosed the existence of a disability (i.e., on OPM Standard Form 256, *Self-Identification of Disability*).

7.5.1.1. Self-identification of disability on the Standard Form 256 or through other means such as being hired through the use of the Schedule A hiring authority (5 CFR §213.3102(u)) does not constitute notice to the employer that an individual is requesting RA.

7.5.2. Requestors (employee and applicant) are not required to fill out any specific form to initiate an RAR nor identify a particular accommodation before requesting an RA. The RAR does not need to contain any particular words, such as "reasonable accommodation" or "disability" for the request to be processed. However, requestors are encouraged to provide accurate and complete information to support their RAR to avoid delays in processing.

7.5.3. *Requests Made on Behalf of an Employee*. A representative may request an RAR orally or in writing on behalf of an employee, such as a family member, friend, bargaining unit representative, healthcare professional, or other representative. If the DAF receives a request from a representative, the supervisor or installation DPM will confirm the need of an RA with the employee.

7.5.4. *Requests from Applicants*. Prior to the DAF making an offer of employment, an applicant may make an RAR orally or in writing to any DAF employee (e.g., CPS/HRO, interviewing/selecting official) authorized to interact with the applicant in the application process.

7.5.4.1. DAF hiring authorities are permitted pre-offer to ask limited questions about RA if they reasonably believe that the applicant may need accommodation because of an obvious or voluntarily disclosed disability, or where the applicant has disclosed a need for accommodation. **(T-0)**

7.5.4.2. DAF hiring authorities will not ask applicants about the existence, nature, or severity of a disability. **(T-0)** Applicants will only be asked about their ability to perform the essential functions of the position function. An employment offer may be conditioned on the results of a medical examination, but only if the examination is a requirement for all entering employees in the same position category. **(T-0)**

7.5.5. *Reasonable Accommodations for Training and Development Opportunity*. If a DAF employee needs an RA at a training or development opportunity, whether internal or external to DAF, he/she will work with a point of contact providing or hosting the training or development opportunity to make an RAR. The employee may engage his/her supervisor if assistance is needed in making an RAR. When completing Standard Form 182, *Authorization, Agreement, and Certification of Training*, the employe should document the need for special accommodation (Section A, Block 11).

7.5.6. *Requesting Reasonable Accommodations through the DAF Reasonable Accommodations Request Electronic System*. While not required, requestors or his/her representative are encouraged to consider submitting their RAR via the preferred method of the DAF Reasonable Accommodations Request (RAR) Electronic System, which assists the DAF with timely processing, to include automatic and simultaneous notifications to the respective supervisor to promptly process the request and installation DPM to assist with

proactive engagement in the interactive process. Using the RAR Electronic System enables accurate management of RAR records. The RAR electronic form to submit an RA is accessible on the Reasonable Accommodation Request SharePoint at: https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx.

7.6. Written Confirmation of Requests for Reasonable Accommodation. If a requestor or his/her representative initially requested RA orally, the requestor will follow up with his/her supervisor to confirm his/her RAR in writing. **(T-1)** If the requestor or his/her representative does not use the RAR Electronic System to initiate an RAR or to confirm his/her request in writing (e.g., provides written confirmation via email or hardcopy memorandum to the supervisor), the supervisor will upload the written confirmation into the RAR Electronic System by submitting the request on the individual's behalf. **(T-1)** Written confirmation will not be required when an employee needs accommodation on a recurring basis (e.g., assistance of sign language interpreters). In these cases, written confirmation is only necessary upon the first request, but appropriate notice will be given each time the accommodation is needed.

7.7. Reasonable Accommodations Request Electronic System. The RAR Electronic System serves as the DAF's preferred and centralized mechanism to request, process, manage, and report RAR. Regardless of whether or not the requestor makes an RAR in the RAR Electronic System, all RARs will be formally annotated in the RAR Electronic System to ensure accuracy of the data reported. **(T-1)**

7.7.1. If the requestor or his/her representative does not submit his/her RAR request through the RAR Electronic System or makes the RAR orally, the supervisor will ultimately be responsible for entering the RAR and uploading relevant documentation into the RAR Electronic System. **(T-1)** The requestor should follow up to ensure the supervisor received the RAR and is aware of the requirement to initiate the interactive process.

7.7.1.1. The installation DPM will submit the RAR on behalf of another individual in the RAR Electronic System if there are extenuating circumstances (e.g., technical issues or errors in the system, no or limited ability to access the RAR electronic form, etc.) that prevent the supervisor or requestor from submitting the electronic request. The installation DPM will assist the supervisor (or CPS/HRO) concerning applicants for DAF employment) by entering data and information and uploading documentation to the RAR Electronic System. **(T-1)**

7.7.2. Supervisors will begin RAR processing as soon as it is made regardless of whether the RAR was submitted through the RAR Electronic System, made orally, or provided in another written format (e.g., email, handwritten note, etc.). **(T-0)**

7.8. The Interactive Process. The purpose of the interactive process for RA is to allow supervisors (or decision authorities) and employees or applicants to engage in a collaborative dialogue to identify and implement RA that enables the employees or applicants to perform their essential functions (e.g., job duties) as described in 29 CFR § 1630.2(n).

7.8.1. Although there is no defined format for the interactive process, supervisors will take proactive steps to facilitate RAR pursuant to 29 CFR § 1614.203(d)(3)(i)(H). **(T-0)** An employee's or applicant's failure to engage in the interactive process may result in delays or potentially a denial of the RAR.

7.8.2. Engagement in the interactive process is the first step after an RAR is submitted to clarify the specific nature of the disability and functional limitations and identify RA. This will help enable supervisors to make an informed decision about the RAR.

7.8.3. *Initiating the Interactive Process*. To initiate the interactive process, a requestor may make an RAR orally or in writing. After receiving or being notified of an RAR, supervisors will promptly acknowledge receipt of the RAR with the requestor and initiate the interactive dialogue/process and explain the process to the employee within 10 calendar days of receipt of the request. **(T-1)** Supervisors may contact the installation DPM to obtain guidance on timely processing of RAR to include providing status updates and ensuring proper and accurate data entry and uploading of relevant documentation into the RAR Electronic System.

7.8.4. *Supervisor Initiated Interactive Process with an Employee*. As a general rule, the employee with a disability who has the most knowledge about his/her need for RA should inform his/her supervisor that accommodation is needed. However, a supervisor must initiate the RA interactive process without being asked by the employee if the supervisor (1) knows that the employee has a disability, (2) knows, or has reason to know, that the employee is experiencing workplace problems because of a disability, and (3) knows, or has reason to know, that the disability prevents the employee from requesting a RA. **(T-0)** If the employee with a disability states that he/she does not need RA, the supervisor will have fulfilled his/her obligation and should document the employee's declination in writing (e.g., memorandum for the record).

7.9. Processing Reasonable Accommodations Requests.

7.9.1. While the DPM oversees the overall RAR process at his/her respective MAJCOM/FLDCOM and installation levels, it will be the ultimate responsibility of a supervisor (or decision authority), with support and guidance from the respective DPM, to process RAR. **(T-0)**

7.9.2. The DPM is responsible for ensuring proper and accurate documenting, tracking, and status updates are provided on all RAR in the RAR Electronic System. **(T-1)** This will include engaging with the supervisor when documentation is missing or needed in the RAR Electronic System, timelines are not being met, and supervisors are engaging with the requestor. **(T-1)**

7.9.3. In the absence of an installation DPM, the installation affirmative employment program manager (AEPM) will process RAR for his/her installation. **(T-1)** MAJCOM/FLDCOM DPMs and AEPMs will process RAR in the absence of an installation DPM or AEPM. **(T-1)**

7.9.4. For a supervisor (or decision authority) to determine and provide an RA, pertinent information is required in the initial request to include: the nature of the disability and/or functional limitations caused by the disability necessitating the accommodation and how the accommodation(s) (if known) will enable the employee to perform the essential functions of his/her position.

7.9.5. After a thorough initial review of the RAR, the supervisor, in coordination with the installation DPM, will ask the employee to identify the precise position-related limitations imposed by the employee's disability and how those limitations may be overcome with RA in the interactive process. **(T-0)**

7.9.6. An RAR should address how the requested accommodation(s) will enable the employee to perform the essential functions of his/her position. Accordingly, supervisors will identify and document the essential functions of the position. The servicing CPS will provide assistance if the essential functions are not easy to determine. **(T-1)**

7.10. Timely Processing of Reasonable Accommodations Request. It is the DAF's goal to provide RA as quickly as possible as timely processing is key to removing workplace limitations and ensuring individuals with disabilities can fully contribute or participate in the workplace.

7.10.1. Pursuant to 29 CFR § 1614.203(d)(3)(i)(M), supervisors (or decision authorities), with support from installation DPMs, will expeditiously process an RAR in the shortest time practicable but no longer than 30 calendar days from receipt of an RAR, absent extenuating circumstances. **(T-1)**

7.10.2. Supervisors (or decision authorities) will ensure that an RAR is not delayed due to leave, temporary duty, or other absence for those involved in the RAR processing. **(T-0)**

7.10.3. If the timeline cannot be met, the supervisor, in coordination with the installation DPM, will notify the requestor of the reasons for the delay and an approximate date on which a decision can be expected. **(T-1)** The installation DPM will ensure that this is documented in the RAR Electronic System. **(T-1)**

7.10.3.1. In some instances, there may be extenuating circumstances which make timely processing unfeasible and require extending timelines for RAR processing. Extenuating circumstances are factors that could not reasonably have been anticipated or avoided in advance of an RAR. Examples may include, but are not limited to, purchase of equipment, employee working with equipment on a trial basis, facility modifications or improvements. The installation DPM will ensure that extenuating circumstances and delayed timelines are documented in the RAR Electronic System. **(T-1)** Refer to **paragraph 7.11.7** on timeline considerations where supplemental medical information is requested to the requestor.

7.10.4. Pursuant to 29 CFR § 1614.203(d)(3)(i)(Q), supervisors (or decision authorities) will consider temporary measures or interim accommodations until a decision has been made and/or RA is provided to allow the employee to perform some or all the essential functions of his/her position if it is possible to do so without imposing undue hardship on the DAF. **(T-0)** If a supervisor (or decision authority) provides a temporary measure or interim accommodation, the installation DPM will ensure that this is documented in the RAR Electronic System. **(T-1)**

7.10.5. Failure by the installation DPM to ensure timely updates/closure of RARs will result in follow-up and further review by MAJCOM/FLDCOM DPMs and/or AFPC AEP/DP Operation Support. **(T-1)** DPMs will ensure all RAR requests have been appropriately documented to show timely completion/processing of the request and will ensure decision notices for each RAR have been uploaded to the RAR electronic system. **(T-1)**

7.11. Supplemental Medical Documentation. Pursuant to 29 CFR § 1614.203(d)(3)(i)(J), the requestor's supervisor, in coordination with installation DPM, may request supplemental medical information/documentation when information in the initial RAR is insufficient or none was provided (when the disability is not obvious) that explains the nature of the requestor's disability, his/her need for RA, and how the requested accommodation, if any, will assist the individual to

apply for a job, perform the essential functions of a job, or enjoy the benefits and privileges of the workplace. **(T-0)**

7.11.1. Documentation is insufficient if it does not specify the existence of an ADA disability and explain the need for reasonable accommodation. Documentation is sufficient when it describes the impairments, the nature, severity, and duration of the impairment, and the extent to which it limits the requestor's ability to perform the activity or activities. For additional information, refer to the EEOC Enforcement Guidance, *Reasonable Accommodation and Undue Hardship under the ADA* at **https://www.eeoc.gov/laws/guidance/enforcement-guidance-reasonable-accommodation-and-undue-hardship-under-ada**.

7.11.2. The supervisor, in coordination with the installation DPM, may consult with the installation occupational medical service office and/or the servicing legal office to determine the sufficiency of medical documentation.

7.11.2.1. The DAF requires that the medical documentation about the disability and the functional limitations come from an appropriate health care or rehabilitation professional. The appropriate professional in any particular situation will depend on the disability and the type of functional limitation it imposes. Appropriate professionals include, but are not limited to, doctors (including psychiatrists), psychologists, nurses, physical therapists, occupational therapists, speech therapists, vocational rehabilitation specialists, and licensed mental health professionals.

7.11.3. If supplemental medical information is needed, the supervisor, in coordination with or assistance from the installation DPM, will provide a written request to the requestor that explains in specific terms why the initially provided information is insufficient, what supplemental information is needed, and why the supplemental information is needed.

7.11.3.1. Requests will be narrowly tailored to only include supplemental medical information that was not previously provided or that is needed. The written request will be addressed to the requestor and/or their medical provider. **(T-1)**

7.11.3.2. Requests will be limited to what medical information is required to identify his/her disability and/or functional limitations and how the requested accommodation will enable the requestor to perform the essential functions of his/her position. **(T-1)**

7.11.4. Medical information will not be requested if sufficient information was previously submitted for the specific disability and the accommodations requested or the disability is obvious. **(T-1)** For additional guidance, refer to EEOC Guidance, *Disability-Related Inquiries and Medical Examinations of Employees under the Americans with Disabilities Act (ADA)*, at **https://www.eeoc.gov/laws/guidance/enforcement-guidance-disability-related-inquiries-and-medical-examinations-employees#4**.

7.11.5. Supervisors, in coordination with or assistance from installation DPMs, may consult with the servicing legal office when assistance is needed in drafting written correspondence and/or determining sufficiency of medical documentation provided by the requestor prior to requesting supplemental medical documentation.

7.11.6. Pursuant to 29 CFR § 1614.203(d)(3)(i)(K), the DAF has the right to have any provided medical information reviewed by a medical expert at the DAF's choosing and expense.

7.11.7. *Timeline*. Pursuant to 29 CFR § 1614.203(d)(3)(i)(N), the DAF will not be expected to adhere to the established timeline if a requestor or requestor's medical provider fails to provide needed documentation in a timely manner. **(T-0)**

7.11.7.1. In the event that the DAF requests supplemental medical information, the timeframe for processing the RAR will be reasonably extended to account for the time taken by the requestor to obtain and provide the information and will not be counted against the DAF's obligation to issue a decision on an RAR within 30 calendar days of receipt of the request. **(T-0)**

7.11.7.2. The DAF will provide a reasonable timeframe of no less than five calendar days for the requestor to respond to the request for supplemental medical documentation. **(T-1)** The supervisor, in coordination with installation DPM, requesting the supplemental documentation will ensure the individual acknowledges receipt of the request in writing or by using the RAR Electronic System.

7.11.7.3. The requestor will provide the supplemental medial information necessary to allow the supervisor (or decision authority) make a decision on the RAR within 20 calendar days of the request for the supplemental medical information. **(T-1)** The requestor may be granted an extension beyond the 20 calendar days if the requestor has advised that he/she will require additional time to obtain information needed for supervisor (or decision authority) to make a decision on the RAR.

7.11.7.4. If the requestor fails to provide the requested supplemental medical information after multiple requests by the supervisor, in coordination with the installation DPM, to make a determination on the RAR, the DAF may deny the RAR and close out the request in the RAR Electronic System. **(T-1)** The installation DPM will ensure all DAF requests for supplemental medical information are annotated and updated in the RAR Electronic System to include annotating the closure of an RAR where the requestor failed to provide the requested information. **(T-1)**

7.11.7.5. Nothing precludes the supervisor (or decision authority) from offering RA based on the information that has been received even if the requested supplemental medical information to support the request is not provided. Where needed, the supervisor (or decision authority), in coordination with the installation DPM, may consult with the servicing legal office for any legal consideration prior to offering RA in such circumstances.

7.12. Confidentiality. Pursuant to the Rehabilitation Act and 29 CFR § 1614.203(d)(3)(i)(L), the DAF has an obligation to keep medical information confidential that is obtained in connection with an RAR. There are limited circumstances when the DAF can disclose this information.

7.12.1. Supervisors (or decision authorities) and installation DPMs will ensure all information about a requestor's medical condition and RA is treated as confidential. **(T-0)**

7.12.2. Supervisors will ensure any medical documentation and/or information obtained from a requestor in connection with an RAR is collected and maintained separate from the requestor's personnel file. The supervisor will not include in the requestor's personnel file the RAR and decision (e.g., approved or denied) nor information about functional limitations. **(T-0)**

7.12.3. The requestor's medical information, where necessary, will only be disclosed or released to individuals with an official need to know as part of their official duties connected with an RAR such as those directly involved in making the decision (e.g., another decision authority where an RAR is referred or elevated beyond the supervisor) or providing consultation (e.g., installation DPM or human resource specialist). **(T-0)**

7.12.4. When coordinating an RAR for processing (e.g., purchasing team for acquisition of items or civilian engineering for facilities changes/modification), the supervisor, in coordination with the installation DPM, will ensure the requestor's PII (e.g., employee's name) is removed and will only include the RAR number instead where possible. The entity receiving the information will typically only need to know the nature of the request to be able to determine appropriate course of action to provide and implement the accommodation and will typically not need to know the requestor's identity.

7.12.5. Routine disclosures may be made under the routine use exception to the Privacy Act for required statistical and public health reporting, litigation or investigations, security clearances, and other statutory, regulatory, or administrative purposes that are compatible with the purpose for which the information was collected as described in OPM/GOVT-10, *Employee Medical File System Records*. This can include, but not limited to, disclosing medical information as part of a compliance investigation under Section 501 of the Rehabilitation Act, workers' compensation offices, insurance carriers, first aid and safety personnel, and individuals involved in developing emergency evacuation procedures. **(T-0)**

7.12.5.1. RA data will only be provided at an aggregate level and will not include PII unless required by law or regulation. Any data requests outside of routine taskings from HAF will be routed to SAF/MRQ through AFPC AEP/DP Operation Support and MAJCOM/FLDCOM DPM for approval. **(T-1)**

7.13. Decision Authorities. In the DAF, the requestor's supervisor will be the decision authority on an RAR based on the requestor assignment to him/her (unless elevated to a higher level). **(T-1)** The supervisor has regular and direct communication with the employee and can readily address any concerns or issues that arise during the RA process. The supervisor is ultimately responsible for ensuring that an approved RA is provided and implemented.

7.13.1. In the event a requestor's proposed accommodation (as a result of the interactive process) requires coordination with other DAF entities (e.g., facilities, civil engineers), the supervisor will engage in writing within three calendar days of receipt (apart from extenuating circumstances), with the appropriate entity to attempt to resolve whether the accommodation can be supported by the other entity. **(T-1)** For example, the supervisor receives an RAR to reserve an accessible parking space, the request will need to be coordinated with the appropriate facilities personnel to provide the accommodation.

7.13.1.1. Coordinating entities will not assume undue hardship when attempting to resolve whether the accommodation can be supported. The installation DPM, with assistance from or coordination with the servicing legal office, will advise all parties of DAF's legal requirements. Any decision to deny a RAR based on a claim of undue hardship will be considered preliminary and promptly forwarded to the servicing legal office for legal sufficiency before submission to installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent) as the final authority for RAR determination on claims of undue hardship. Supervisors, in coordination with the

coordinating entity and the installation DPM, will route the denial with specific reasons for the denial to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent) for decision as described in paragraphs **7.18.6.2** through **7.18.6.4**. Supervisors may provide temporary measures or interim accommodations as described in **paragraph 7.10.4** or alternative effective accommodations as outlined in **paragraph 7.15** of this publication and will continue engaging in the interactive process.

7.13.1.2. The supervisor will ensure timely coordination with appropriate coordinating entity as soon as practicably possible to avoid any DAF liability under the Rehabilitation Act (e.g., delay or failure to accommodate) in responding and providing a decision on the RAR. **(T-0**) Refer to **paragraph 7.10.1** for timeline considerations.

7.13.2. When an RAR is referred to another appropriate decision authority (e.g. elevated to a higher level), the supervisor, in coordination with the installation DPM, will notify the requestor in writing on why the RAR was referred to another decision authority. The installation DPM will ensure this notification is annotated in the RAR Electronic System to include uploading a copy of the written referral. **(T-1)**

7.13.3. When referring the RAR to another appropriate decision authority, the supervisor, in coordination with the installation DPM, will notify that decision authority of why the RAR was referred and the timeline to process the RAR, and provide the installation DPM contact information as a resource. The installation DPM will ensure this notification is annotated in the RAR Electronic System to include uploading a copy of the written referral. **(T-1)**

7.14. Determining and Selecting Reasonable Accommodations. The DAF will consider the employee's preference for accommodation to the extent permitted by law when selecting and implementing an accommodation that is most appropriate and effective for both the employee and the DAF. **(T-0)** However, the DAF is not required to provide the employee's preferred accommodation and may choose among RAs that enable the employee to perform the essential functions of the position.

7.14.1. Supervisors (or decision authorities) will consult with the installation DPM in determining effective RA when assistance is needed. MAJCOM/FLDCOM DPMs may also assist the installation DPM or the respective supervisor (or decision authority) on effective RA determinations. For complex or novel legal issues that arise when determining effective RAs, supervisors (or decision authorities), in coordination with the installation DPM, will consult with the servicing legal office. **(T-1)**

7.14.2. In circumstances where the employee and the supervisor (or decision authority) disagree on the most appropriate and effective accommodation, the supervisor (or decision authority) will immediately consult with the installation DPM to help facilitate continued discussions in the interactive process to determine effective accommodations. This may also include using the alternative dispute resolution (ADR) process with a neutral third party to assist with the interactive process. **(T-1)** Refer to DAFI 51-1201, *Negotiation and Dispute Resolution Program*, for additional information on ADR.

7.14.3. Performance standards will not be lowered as an accommodation. The supervisor will hold employees with disabilities to the same standards of performance and conduct as similarly situated employees without disabilities. When implementing RA, supervisors will provide the

employee with clear guidance and expectations of work performance, deliverables, and the timelines. **(T-0)**

7.14.4. Changes to the essential functions of the employee's position are not required as an RA, however job restructuring as an RA may be considered and may include modifications such as: reallocating or redistributing marginal job functions that an employee is unable to perform because of a disability; and altering when and/or how a function, essential or marginal, is performed. If changes are needed to marginal functions, supervisors will contact the servicing CPS/HRO for assistance. **(T-1)**

7.14.5. The DAF is not obligated to provide, purchase, or maintain personal use items (e.g., glasses, hearing aids, service animals, etc.) as a RA.

7.14.6. For guidance on approval and usage of electronic medical devices in secure locations, refer to Intelligence Community Directive 124, *Electronic Medical Devices*.

7.15. Modification. It is permissible for the DAF to provide an alternative RA solution different from the one specifically requested by the requestor if it is effective for the requestor and the DAF.

7.15.1. If an alternative RA is approved, this is a modification of accommodation and will be considered as an approved RAR and not as a denial. **(T-0)**

7.15.2. The employee will be provided written notification for modifications that explains the reason for providing an alternative solution from the original RAR and why the modified accommodation is believed to be effective. The installation DPM will ensure the notification to the employee and the RA decision is annotated in and uploaded to the RAR Electronic System. **(T-1)**

7.16. Funding. In general, each respective organization will bear the cost of providing RARs. **(T-1)** Cost of the accommodation should not delay a supervisor or a decision authority from making a decision to approve or deny a RA. Decisions on RAR will be made within 30 calendar days from the date of receipt of the RA. **(T-1)**

7.16.1. DAF organizations may request reimbursement of monies used to provide RA through local financial management points of contact assigned to process reimbursement expenses.

7.16.2. Requests for reimbursement will be initiated using the Emergency Special Program (ESP) Code 7F. Reimbursement of funds is accomplished when funds are available via cash flow procedures from SAF/FM. Organizations will utilize ESP 7F to track all requests for RA costs. **(T-1)** This enables the organization financial managers (at all levels) to properly plan for yearly RA costs.

7.16.3. Where appropriate, DAF organizations will utilize accommodation resources such as the DoD's Computer/Electronic Accommodation Program. **(T-1)**

7.16.4. If a DAF organization is forced to defer other requirements to support an RAR, an unfunded request will be submitted via that organization's established corporate process. **(T-1)**

7.16.5. Pursuant to 29 CFR § 1614.203(d)(3)(ii), when considering whether the cost of a potential accommodation may constitute an undue hardship, the budget of the entire DAF will be considered. **(T-0)** As such, there will be likely limited circumstances that cost will be a basis for denying an RAR. **(T-1)**

7.17. Performance and Conduct Standards.

7.17.1. The Rehabilitation Act does not require employees to ask for RA at any specific time. The DAF is not required to rescind any previous administrative actions or performance evaluation due to not knowing about an employee's disability. Accordingly, employees are encouraged to request an RA before performance issues arise or at least before they become too serious.

7.17.2. In situations where a requestor is on a performance improvement plan, the supervisor will ensure that all requested and approved RA necessary to meet the requirements of the plan are available to the employee. **(T-1)**

7.17.3. The supervisor will hold employees with disabilities to the same standards of performance and conduct as similarly situated employees without disabilities. For additional guidance on performance and conduct standards for employees with disability, refer to EEOC Guidance, *Applying Performance and Conduct Standards to Employees with Disabilities* at **https://www.eeoc.gov/laws/guidance/applying-performance-and-conduct-standards-employees-disabilities**.

7.18. Decision and Notifications. The supervisor (or decision authority) will inform the requestor whether the requested RA is approved, whether an alternative RA will be provided, or that the request is denied. The notification of decision will be provided in writing. **(T-0)** Applicants for DAF employment will receive written notifications of the decision for their RA through AFPC, ETMO, or AFMC, where applicable, and/or servicing local CPS or HRO personnel authorized to interact with applicants in coordination with assigned installation DPM where the vacancy is located. **(T-1)**

7.18.1. Supervisors (or decision authorities) will provide a written decision on the RAR in the shortest time practicable, but no later than 30 calendar days from receipt of the initial request, absent of extenuating circumstances. **(T-1)**

7.18.2. In circumstances where the employee and the supervisor (or decision authority) disagree on the most appropriate and effective accommodation that delays the rendering of an RAR decision, the supervisor (or decision authority), in coordination with the installation DPM, may request ADR through a third party neutral to assist with effective communication and help move the RAR towards consensus. **(T-1)** Refer to DAFI 51-1201 for additional information on ADR.

7.18.3. An individual with a disability is not required to accept an accommodation, aid, service, opportunity or benefit which such qualified individual chooses not to accept. However, if the individual rejects a RA, aid, service, opportunity, or benefit that is necessary to enable the individual to perform the essential functions of the position held or desired, and cannot, as a result of that rejection, perform the essential functions of the position, the individual will not be considered qualified. **(T-0)**

7.18.4. Supervisors (or decision authorities) may use the DAF Reasonable Accommodation Request Decision Notification template to serve as the written notification format when rendering a decision. The notification template is located on MyFSS by searching Reasonable Accommodation Request Decision Notification.

7.18.4.1. The installation DPM will ensure that the supervisor (or decision authority) completes RAR decision notification and that it is uploaded in the RAR Electronic System in order to close out the RAR. **(T-1)** The RAR electronic form to submit an RA is accessible on the Reasonable Accommodation Request SharePoint at: **https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx**.

7.18.5. *Approval of Reasonable Accommodations*. When the supervisor (or decision authority) approves the requested RA or an alternative RA, the notification will describe the accommodation being offered as well as when it will be provided. **(T-0)** Approvals will be documented in writing and will be provided to the requestor within 30 calendar days from the date of the RAR submission, absent extenuating circumstances. The installation DPM will ensure the approval is annotated in and uploaded into the RAR Electronic System. **(T-1)**

7.18.6. *Denial of Reasonable Accommodations*. It is unlawful for DAF not to make reasonable accommodation to the known physical or mental limitations of an otherwise qualified applicant or employee with a disability, unless the DAF can demonstrate that the accommodation would impose an undue hardship to the DAF. **(T-0)** Pursuant to 29 CFR § 1614.203(d)(3)(iii), denials will be documented in writing and will be provided to the requestor within 30 calendar days from the date of the RAR submission, absent extenuating circumstances. **(T-0)** The installation DPM will ensure the denial is annotated in and uploaded into the RAR Electronic System. **(T-1)**

7.18.6.1. If it is determined that an employee is not an individual with a disability, the requested accommodation would not be reasonable due to lack of appropriate supporting medical or other necessary information, there is a lack of available vacant positions for which the employee with a disability is qualified (when seeking a reassignment), or there is a clear case of undue hardship upon the DAF, the DAF will provide written notification. The supervisor (or decision authority) will not communicate the decision to the requestor until all coordination is completed. **(T-1)**

7.18.6.2. A decision to deny RA at the supervisory level will be considered preliminary and promptly forwarded to the servicing legal office for legal sufficiency before submission to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), for endorsement before being provided to the requestor. **(T-1)**

7.18.6.3. The installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), will be the final authority for RAR determination on claims of undue hardship to the DAF. **(T-1)**

7.18.6.4. Denials will include specific reasons for the denial and identify the individual and office that made the final decision. **(T-1)**

7.18.6.5. The requestor may contact his/her supervisor (or decision authority) or installation DPM for questions regarding the denial of an RAR.

7.18.7. *Filing EEO Complaints.* Pursuant to 29 CFR § 1614.203(d)(3)(i)(T), requestors who meet criteria per 29 CFR Part 1614 have a right to file an EEO complaint if he/she was denied a RA and believes he/she was unlawfully discriminated against based on a protected class (e.g., disability). The requestor must contact an EO Practitioner within 45 calendar days of the matter

allegedly discriminatory (e.g., date of receiving an RA denial notification). **(T-0)** Refer to DAFI 36-2710, *Equal Opportunity Program*, for additional information on EEO complaint process and DAFI 51-1201, for ADR.

7.18.7.1. Supervisors will notify the requestor (employee or applicant for DAF employment) of his/her right to file an EEO complaint regardless of participation in an informal dispute resolution process and will identify and explain available avenues for informal dispute resolution. **(T-0)**

7.19. Implementation of Approved Reasonable Accommodations. Not all approved accommodations will produce the desired outcome. Supervisors will monitor the effectiveness of any approved RA once it has been provided to ensure the accommodation is effective. **(T-0)** If the accommodation proves ineffective, the interactive process will begin again to identify other effective accommodations. **(T-0)**

7.19.1. Supervisors may establish a reasonable timeframe to evaluate the effectiveness of an accommodation after it has been implemented to ensure the accommodation provided is effective for both the employee and the DAF. Employees will be responsible for informing the supervisor if there are changes to the employee's disability, the accommodation provided, and/or the accommodation is no longer needed. **(T-0)**

7.19.2. Once an accommodation is implemented and it is determined to be effective, there is no need to reevaluate the effectiveness unless the employee changes positions or the employee's medical condition necessitate changes to the accommodation. In this case, a new RAR may be submitted by the requestor or the requestor's representative, which may require updated and supplemental medical information.

7.20. Closure of Reasonable Accommodations Requests. The installation DPM will ensure that an RAR is officially closed out in the RAR Electronic System and marked as "approved" (i.e., pending delivery or implementation), "complete" (i.e., accommodations have been implemented/provided), or "denied" only after the requestor is provided written notification of the RAR decision and all required information is annotated in and uploaded in the RAR Electronic System. **(T-1)**

7.20.1. Supervisors (or decision authorities) may use the DAF Reasonable Accommodation Request Decision Notification template to serve as the written notification format when rendering a decision. The installation DPM will ensure that the supervisor (or decision authority) completes and uploads the RAR decision notification provided to the requestor in the RAR Electronic System. The installation DPM will share the DAF Reasonable Accommodation Request Decision Notification template as a resource for supervisors (or decision authorities) to use, which is accessible on MyFSS. **(T-1)**

7.20.2. If an RAR is denied, the installation DPM will ensure that the appropriate endorsement of the denial was obtained prior to closing out the RAR in the RAR Electronic System. **(T-1)**

7.21. Telework and Remote Work as Reasonable Accommodations. The DAF will consider tele/remote work as an accommodation when the employee's limitations resulting from the disability prevent the employee from successfully performing the job onsite and the essential functions of the position can be performed in a tele/remote working status without causing an undue hardship to the DAF. **(T-0)**

7.21.1. Supervisors may discuss other types of accommodations that would allow the employee to remain full-time or part-time in the workplace. However, in some situations, working offsite may be the only effective option for an employee with a disability.

7.21.2. An employee may tele/remote work offsite as a RA only to the extent that his/her disability necessitates it and the employee is otherwise eligible for tele/remote work (e.g., the essential functions of the position can effectively be performed in a telework/remote work status and the employee meets all other eligibility found in DoDI 1035.01, *Telework and Remote Work*.), which is determined on a case-by-case basis. This will be determined in the interactive process and/or through medical documentation. **(T-0)** For additional guidance on tele/remote work guidance for employees with disability, refer to EEOC Guidance, *Work at Home/Telework as a Reasonable Accommodation* at **https://www.eeoc.gov/laws/guidance/work-hometelework-reasonable-accommodation**.

7.21.3. Tele/remote work as an RA (e.g., temporary, intermittent, or permanent RA) will only be approved after an individualized assessment of the request is conducted, essential functions of the position are reviewed and there is a determination that RA may be effective in mitigating limitations that prevent the individual from performing the essential functions of their position. **(T-0)**

7.21.4. The employee should make clear in his/her RAR if request is for telework or remote work to assist with expediting a decision on the request.

7.21.5. The DAF may implement alternative accommodations that are effective if the essential functions of the position cannot be performed while tele/remote working.

7.21.6. Decision for tele/remote work as a RA will not be delayed and the decision will be provided within 30 calendar days of receipt of the RAR. **(T-1)**

7.21.7. For additional DAF guidance on tele/remote work, refer to DoDI 1035.01_DAFI 36-143, *Telework Program*.

7.22. Reassignment as Reasonable Accommodations. Reassignment will only be considered as a last resort, absent of undue hardship, to an employee who, because of a disability, can no longer perform the essential functions of the position they hold with or without RA. The employee will not be required to accept a reassignment if there is an accommodation that would allow the employee to remain in his/her current job and does not pose an undue hardship. **(T-0)**

7.22.1. Reassignment is only available to an employee who is qualified for a vacant position. Reassignment is not an appropriate accommodation for applicants.

7.22.2. Reassignment will be considered, even if not specifically requested, as an RA prior to terminating an employee for medical inability to perform the essential functions of his/her current position. **(T-0)**

7.22.3. Before considering reassignment, employers will first consider RA that would enable an employee to remain in his/her current position. **(T-0)**

7.22.4. If a qualified employee, because of a disability, is unable to perform the essential functions of his/her position, the DAF has an obligation to reassign that qualified employee to a vacant position that is equivalent in terms of grade, status, pay, or other relevant factors for which the employee qualifies where a vacant position is available. **(T-0)**

7.22.4.1. An employee will be considered as qualified if they (1) satisfy the requisite skills, experience, education, and other job-related requirements of the position, and (2) can perform the essential functions of the position with or without RA. **(T-0)**

7.22.5. Reassignment will be made only to existing positions within the DAF that are vacant or that the DAF has reason to believe will become vacant within a reasonable time (e.g., over a period of 60 business days) after the initiation of a reassignment search. **(T-0)**

7.22.5.1. Determining a reasonable time for a vacancy will be on a case-by-case basis that considers relevant factors, such as whether the employer can anticipate that an appropriate position will become vacant within a short period of time.

7.22.5.2. A position is considered vacant even if DAF has posted a notice or announcement seeking applications for that position.

7.22.5.3. The DAF will not be required to create a new position or move other employees from their positions to create a vacancy as a RA. **(T-0)**

7.22.5.4. An employee qualified for a vacant position can be reassigned to the position as an RA without having to compete for the identified position.

7.22.5.5. The DAF will focus first on vacant positions that are equivalent to the employee's current position in terms of pay, status, and other relevant factors. If there is no equivalent vacant position, the DAF may consider vacant lower grade positions for which the employee is qualified. Refer to paragraphs **7.23** through **7.25** for additional information on change to lower grades.

7.22.5.6. Reassignment may be made to a vacant position outside of the employee's commuting area, if the employee is willing to relocate at his/her own expense. Refer to **paragraph 7.24.1** concerning limitations to relocation pay coverage. **(T-1)**

7.22.5.7. If more than one vacant position is available for reassignment, the employee may indicate preference, however, the DAF will have final discretion to fill positions based on the needs of the organization. **(T-0)**

7.22.6. The DAF will complete the reassignment search within 60 business days, absent of extenuating circumstances, to find a suitable vacant position that the employee is qualified. If a suitable vacant position is identified, this concludes the RA process and is not considered a denial of RA. The installation DPM will ensure this is annotated in and uploaded in the RAR Electronic System. **(T-1)**

7.23. Change to Lower Grade (CLG) as Reasonable Accommodation. CLG will only be considered if no appropriate RA is available in the requestor's current position or if the only effective RA would impose undue hardship on the DAF. CLG will only be available to DAF employees and not applicants for DAF employment. **(T-0)**

7.23.1. When it is determined that no appropriate RA is available, the requestor's supervisor, in coordination with the DPM, will explain to the requestor why they could not be accommodated and determine the requestor's preference with respect to CLG. **(T-0)** While the DAF is not required to search for lower graded positions, the DAF will do so to demonstrate good faith effort to retain the employee at the employee's request. **(T-1)**

7.24. Considerations for Reassignment/CLG. Positions appropriate for consideration for reassignment/CLG will include: (a) all vacant DAF positions at the same grade or at a lower grade in the commuting area or any geographic areas to which the requestor indicates he/she is willing to move at his/her own expense and for which the requestor is qualified, and (b) any planned positions which appropriate officials can reasonably assume will become available over a period of 60 business days for which the requestor is qualified at the same or lower rate of pay. **(T-0)**

7.24.1. Subject to provisions of applicable laws or collective bargaining agreements, the DAF will not pay for the relocation to the new duty location outside the requestor's current commuting area unless a paid move would normally be offered because of a recruiting incentive or other circumstances. **(T-1)**

7.24.2. The DAF will not displace any current employee from their position to provide another employee with a reassignment to the same or a lower grade position as a RA. **(T-0)**

7.24.3. The search for a reassignment will last no longer than 60 business days unless there are extenuating circumstances (e.g. reduction in force, hiring freeze, etc.). The 60 business days will begin at the point in time that management has sufficient information to officially determine that the employee cannot be accommodated in their current position. **(T-1)**

7.24.4. RA will not include placement of an employee to a higher-grade position. Promotions and re-promotions will not be authorized as an acceptable form of RA. Reassignment will not include promotion to a vacant position or automatic promotion. Pay retention is authorized if the employee accepts a lower graded position to accommodate a disabling condition. **(T-0)** For additional information, refer to AFI 36-128, *Pay Setting and Allowances*.

7.25. Processing Reassignments/CLG. The employee's servicing CPS or HRO will be responsible for overseeing the reassignment process in accordance with DAFMAN 36-203, *Staffing Civilian Positions*, and will designate a personnel specialist to work the reassignment process that includes conducting an initial assessment of qualification requirements. However, the applicable servicing operation center (i.e., AFPC, ETMO, or AFMC) will have responsibility for final qualifications determination and review of available vacant position options for the employee. **(T-1)**

7.25.1. The employee's servicing CPS or HRO will begin the search for reassignment/CLG only after there is a determination that the requestor cannot be accommodated in their current position. **(T-0)**

7.25.2. The supervisor, in coordination with the installation DPM, will identify the series and grade of positions and geographic area for which the employee requests to be considered. The supervisor, in coordination with the installation DPM, will ask the employee to provide to him/her an updated resume in order for the supervisor to provide it to the CPS or HRO. **(T-1)**

7.25.3. The employee's servicing CPS or HRO will assist with the vacant position search within five business days of being notified by the supervisor that a DAF reassignment is being considered as part of an RAR. **(T-1)**

7.25.4. The employee's servicing CPS or HRO will facilitate the search after a review of the requestor's qualifications has been completed. **(T-1)**

7.25.4.1. The employee's servicing CPS or HRO will coordinate with AFPC or USSF where applicable, for assistance in final determinations on qualifications and advise the employee of the determination for the available vacant position(s). **(T-1)**

7.25.4.2. The employee's servicing CPS or HRO will ensure the employee is able to perform essential functions of the vacant position with or without RA after reviewing the employee's resume and essential functions of the position. **(T-1)**

7.25.5. If no vacant positions are available locally that meet the employee's qualifications, the employee may request the position search be expanded to MAJCOM/FLDCOM and DAF-wide. The servicing CPS or HRO, with assistance from the MAJCOM/FLDCOM DPM and MAJCOM/FLDCOM A1/S1, will conduct MAJCOM/FLDCOM-wide searches. **(T-1)**

7.25.6. Coordination of DAF-wide search for vacancies will be accomplished by the MAJCOM/FLDCOM DPM with assistance by the MAJCOM/FLDCOM A1, with assistance provided by the servicing organization, AFPC, or USSF, utilizing available vacancy reports that capture available and future vacancies that are, or can reasonably assume will become available.

7.25.7. The employee's servicing CPS or HRO, in coordination with the installation DPM, will ensure the CPS or HRO at any gaining installation fully considers the request and, if qualified, places the employee. If a position for potential placement is identified, the gaining and losing servicing CPS or HRO will coordinate placement. **(T-1)**

7.25.7.1. If there is more than one vacancy for which the employee is qualified, the employee will be placed in the position that aligns closest to the employee's current position in terms of grade, status, pay, or other relevant factors for which the employee qualifies. If it is unclear which position aligns the closest to the employee's current position, the employee's servicing CPS or HRO, in coordination with the installation DPM, should consult with the employee about his/her preference before determining the position to which the employee will be reassigned. **(T-1)** While the DAF will consider the employee's preference, the DAF will have final discretion to fill positions based on the needs of the organization. **(T-0)**

7.25.8. Final qualifications determinations will be accomplished by AFPC, ETMO, or AFMC where applicable, in coordination with the gaining CPS or HRO. **(T-1)**

7.25.9. The installation commander (or civilian equivalent) or designee not below the grade of O-6 (or civilian equivalent), will be the final decision authority for determination for RA reassignment when there is a claim of undue hardship to the DAF. **(T-1)**

7.26. Refusal of Reassignment. Requestors will not be compelled to accept any RA against their will and can turn down reassignment/CLG. However, if a requestor declines a valid accommodation offer, the DAF's RA obligation will be fulfilled once the offer was made. **(T-0)**

7.26.1. If the requestor declines a suitable position/offer after all documented good faith efforts to provide RA have been exhausted, this is not considered a RA denial, but rather the exhaustion of the accommodation process. In this case, the CPS personnel or human resource specialist will proceed with the appropriate separation action. **(T-1)**

7.26.2. The installation DPM will ensure that all documented good faith efforts to provide RA and any requestor declinations are annotated in and uploaded in into the RAR Electronic System. **(T-1)**

7.27. Disability Retirement. If it is determined that the employee can no longer perform the essential functions of his/her position and an accommodation cannot be made to include reassignment /CLG, the employee will be assisted by his/her respective CPS or HRO in applying to OPM for disability retirement if he/she so chooses. **(T-1)**

7.27.1. Such a determination will be coordinated with the servicing CPS or HRO, in coordination with the installation DPM, and the servicing legal office before the employee is notified and aided in applying for disability retirement. **(T-1)**

7.27.2. Under the disability retirement procedures promulgated by OPM, reassignment to a lower grade will be considered prior to applying for disability retirement. Accordingly, prior to notifying and assisting an employee in applying for disability retirement, DAF will make efforts to reassign the employee to a vacant position within the DAF at the same grade within the commuting area. OPM will not approve an application for disability retirement if the employee refuses a reasonable offer of reassignment. **(T-0)**

7.27.3. An employee may decline an offer of a position at a lower grade or pay level or a position of lesser tenure without affecting his/her eligibility for disability retirement. However, the employee will be advised that voluntary acceptance of a position at a lower grade or pay level stops consideration for disability retirement. **(T-1)** The OPM is the approval authority for a disability retirement. For additional information, refer to OPM Handbook, *Civil Service Retirement System (CSRS) and Federal Employee Retirement System (FERS) Handbook for Personnel and Payroll Offices* (Chapter 60, Disability Retirement) at **https://www.opm.gov/retirement-center/publications-forms/csrsfers-handbook/**.

7.27.4. Additional information on disability retirement is located on MyFSS by searching Civilian Disability Retirement.

7.27.5. MAJCOM/FLDCOM DPMs will provide quality control oversight to ensure all closed RARs have all appropriate documentation annotated and uploaded into the RAR Electronic System within 30 calendar days of receipt of an RAR. **(T-1)**

7.28. Records Collection, Management, and Disposition. All RA and Pregnant Workers Fairness Act (PWFA) information and records will be maintained and safeguarded in accordance with applicable laws, regulations, and policies to include, but not limited to, the Privacy Act of 1974, FOIA, DoDI 5400.11, DoDI 5200.48, DoDI 5015.02, DTM 22-001, DAFI 16-1403, AFI 33-332, AFI 33-322, and AFI 17-130. **(T-0)** The installation DPM serves as the custodian of the official records for RA at his/her respective installation. **(T-1)**

7.28.1. The installation DPM will ensure all information (i.e., records) related to RA and PAS will be properly maintained and disposed of in accordance with AFI 33-322 and the Air Force Records Disposition Schedule, which is in the Air Force Records Information Management System (AFRIMS). **(T-1) Note:** The Air Force Records Disposition Schedule is the list of all National Archives-approved records dispositions for the DAF. This includes hardcopy and electronic records as well as other records other than paper or electronic medium as described in AFI 33-322.

7.28.1.1. The installation DPM will maintain records related to RA and PWFA for three years after employee separation from the agency or any appeals are concluded, whichever is later, but longer retention is authorized if required for business use. **(T-1)** Records include, but is not limited to, request; approvals; denials; notice of procedures for filing EEO complaints, alternative dispute resolution, or appeal processes; forms; correspondence; records of oral conversations; medical records; and supporting notes and documentation.

7.29. Reasonable Modification. Reasonable modification of facilities or structures (e.g., addition of a ramp) is considered a RA subject to demonstration of undue hardship upon the DAF. Responsible organizations will ensure denials of requests for reasonable modification are based on demonstration of undue hardship on the DAF per DoDD 1020.1, *Nondiscrimination on the Basis of Handicap in Programs and Activities Assisted or Conducted by the Department of Defense*. **(T-0)**

7.29.1. Commands should route requests for building modifications though the chief of civil engineering at the installation and/or MAJCOM/FLDCOM prior to routing the request to installation commander for final determination of undue hardship.

7.29.2. Through command channels, AFPC AEP/DP Operation Support, AF/A4, SAF/IE, and SAF/MRQ will be notified when requests for reasonable modification cannot be met. **(T-1)**

7.30. Service Animals. While Title III of the ADA requires service animals to be permitted in public access areas, Title I concerning employment, only requires employers to make RA for employees with disabilities and request for service animals. Individuals with disabilities do not have an automatic right to have their service animal in the federal workplace. The DAF will implement Title I of ADA that requires a requestor (employee and applicant for DAF employment) who needs a service animal to submit an RAR and engage in the interactive process. **(T-0)**

7.30.1. Service animal means any dog that is individually trained to do work or perform tasks for an individual with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability.

7.30.1.1. Other species of animals, whether wild or domestic, trained or untrained, are not service animals. **Note:** See **paragraph 7.30.5** for ADA regulations concerning miniature horses.

7.30.2. The work or task performed by a service animal must be directly related to the individual's disability. Examples of work or tasks include, but are not limited to, assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people of sounds, pulling a wheelchair, assisting an individual who is having a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities, and helping persons with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors.

7.30.2.1. Service animals are working animals and not pets. The work or task a dog has been trained to provide must be directly related to the person's disability. Dogs whose sole function is to provide comfort or emotional support do not qualify as service animals under the ADA. The crime deterrent effects of an animal's presence and the sole function and

provision of emotional support, well-being, comfort, or companionship do not constitute work or tasks.

7.30.3. When processing an RAR for a service animal, the supervisor may inquire about the nature of the individual's disability where authorized if the disability is not obvious. **(T-0)** DAF personnel connected to the RAR will not be allowed to request any documentation for the dog (e.g., certified, trained, or licensed), or require that the dog demonstrate its task. **(T-0)**

7.30.4. Service dogs cannot be banned or prohibited based on the breed or size and are not required to be certified as service animals, however service dogs are not exempt from local animal control (local dog license and registration) or public health requirements (e.g., vaccinations).

7.30.5. While miniature horses are not included in the definition of service animal, ADA regulations now have a separate provision about miniature horses that have been individually trained to do work or perform tasks for individuals with disabilities. Accordingly, the DAF will make reasonable modifications to permit the use of a miniature horse by individuals with disabilities if the miniature horse has been individually trained to do work or perform tasks for the benefit of the individuals with disabilities. **(T-0)**

7.30.5.1. The DAF will assess four assessment factors to assist in determining whether miniature horses can be accommodated in their facility that include: (1) whether the miniature horse is housebroken, (2) whether the miniature horse is under the owner's control (3) whether the facility can accommodate the miniature horse's type, size, and weight, and (4) whether the miniature horse's presence will not compromise legitimate safety requirements necessary for safe operation of the facility. **(T-0)**

7.30.6. Individuals with disabilities requiring service animals are responsible for the costs of acquiring, training, and maintaining a service animal.

7.30.7. *Assistance Animals*. Assistance animals are different from service animals and is a broad term that can refer to, but is not limited to, support animals, emotional support animals, therapy, or companion animals and can vary by any species. Assistance animals could be any species and not limited to dogs. Assistance animals may be used to mitigate the effects of a physical or mental disability, but because they are not trained to perform a task related to an individual's disability, they do not qualify as service animals under the ADA.

7.30.8. *Use of Service Animals in DAF Facilities*. Individuals with disabilities, whether employees, applicants for DAF employment, or other individuals visiting or using DAF facilitates, may bring their service animals into all areas of DAF facilities where members of the public, program participants, clients, customers, or invited guests are allowed. A service animal may be excluded from a facility if its presence interferes with the legitimate safety requirements of the facility (e.g., surgery or burn unit in a hospital in which a sterile environment is required).

7.30.8.1. The service animal handler (e.g., an individual with a disability or a third party who accompanies the individual with a disability) is responsible for caring for and supervising the service animal, which includes toileting, feeding, and grooming and veterinary care. The DAF is not obligated to supervise or otherwise care for a service animal.

7.30.8.2. The service animal handler is required to have the service animals under his/her control at all times. The service animal will be harnessed, leashed, or other tethered, unless the these devices interfere with the service animal's work or tasks or the individual's disability prevents use of these devices. In these cases, the service animal will be under the handler's control through voice, signals, or other effective means to maintain control of the animal. **(T-0)**

7.30.8.3. If the service animal is not housebroken or is out of control and the handler is not able to control it, the DAF will request that the animal be removed from the premises. **(T-0)**

7.30.8.4. Establishments that sell or prepare food will generally allow service animals in public areas even if state or local health codes prohibit animals on the premises. **(T-0)**

7.30.8.5. Individuals with disabilities who use service animals will not be isolated from other patrons, treated less favorably than other patrons, or charged fees that are not charged to other patrons without animals. If an entity requires a deposit or fee to be paid by patrons with pets, charges will be waived for service animals. **(T-0)**

7.30.8.6. If a service animal is excluded from a DAF facility, because its presence interferes with legitimate safety requirements of the facility, the individual with disabilities will be offered the opportunity to obtain goods, services, and accommodations without having the service animal on the premises. **(T-0)**

7.31. Pregnant Workers Fairness Act. The Pregnant Workers Fairness Act (PWFA) (42 USC § 2000gg *et seq.*, as implemented in 29 CFR Part 1636) requires the federal government to provide RA to qualified employee's or DAF employment applicant's known limitations related to, affected by, or arising out of pregnancy, childbirth, or related medical conditions, unless the accommodation will cause the employer an undue hardship.

7.31.1. While PWFA only applies to accommodations, other federal laws such as Title VII of the Civil Rights Act and Rehabilitation Act, prohibit discrimination against an employee or applicant on the basis of sex (including but not limited to pregnancy) and the Rehabilitation Act, as amended by the ADA, prohibits discrimination against an employee or applicant on the basis of a disability (disability related to a pregnancy) .

7.31.2. While pregnancy itself is not a disability under the ADA, some pregnant workers may have one or more impairments related to pregnancy that qualify as a disability under the ADA. Accordingly, an employer may have to provide that pregnant worker with an RA for the pregnancy-related disability.

7.31.3. *Definitions.*

7.31.3.1. The PWFA adopts the Rehabilitation Act and ADA definitions for reasonable accommodation, undue hardship and interactive process.

7.31.3.2. Pregnancy and childbirth refer to the pregnancy or childbirth of the specific employee or applicant and include, but not limited to, current pregnancy, past pregnancy, potential or intended pregnancy (which can include infertility, fertility treatment, and the use of contraception), labor, and childbirth.

7.31.3.3. Related medical conditions means medical conditions relating to the pregnancy or childbirth of the specific employee or applicant identified. Examples of conditions that

are, or may be related medical conditions include, but are not limited to, miscarriage, still birth; preterm labor; pelvic prolapse; nerve injuries; maternal cardiometabolic disease; gestational diabetes; preeclampsia; HELLP (hemolysis, elevated liver enzymes and low platelets) syndrome; hyperemesis gravidarum; anemia; endometriosis; sciatica; lumbar lordosis; carpal tunnel syndrome; chronic migraines; dehydration; hemorrhoids; nausea or vomiting; edema of the legs, ankles, feet, or fingers; high blood pressure; infection; anxiety, depression, or psychosis (during pregnancy or postpartum); frequent urination; incontinence; loss of balance; vision changes; varicose veins; changes in hormone levels; and lactation and conditions related to lactation.

7.31.3.4. Known limitation means physical or mental condition related to, affected by, or arising out of pregnancy, childbirth, or related medical conditions that the employee or employee's representative has communicated to the employer that they need an adjustment or change in her working conditions due to the limitation.

7.31.3.4.1. A limitation can be an impediment or problem that is minor or modest and can be episodic (e.g., migraines or morning sickness); that the employee or applicant needs to take actions for her health or the health of her pregnancy (e.g., not being around certain chemicals; not working in the heat; or limiting or avoiding certain physical tasks, for example lifting, bending, walking, standing, or running; or that the employee needs to attend health care appointments for the pregnancy, childbirth, or related medical condition itself. This list is not exhaustive.

7.31.4. *Qualified*. An employee or applicant is considered qualified under the PWFA in two ways:

7.31.4.1. An employee or applicant who can perform the essential functions of the position with or without a RA is qualified.

7.31.4.2. If an employee cannot perform the essential functions of the position with or without an RA, an employee can be qualified even if he/she cannot do the essential functions of their position as long as: (1) the inability to perform an essential functions is for a temporary period; (2) the essential functions could be performed in the near future, because they could perform the essential function(s) within generally 40 weeks of its suspension and (3) the inability to perform the essential functions can be reasonably accommodated. As outlined in 29 CFR § 1636.3(f)(2)(iii), this may be accomplished by temporary suspension of the essential function(s) and the employee performing the remaining functions of their position or, depending on the position, other arrangements, including, but not limited to: the employee performing the remaining functions of their position and other functions assigned by the covered entity; the employee performing the functions of a different job to which the covered entity temporarily transfers or assigns the employee; or the employee being assigned to light duty or modified duty or participating in the covered entity's light or modified duty program.

7.31.5. *Reasonable Accommodations under PWFA*.

7.31.5.1. PWFA RAs may include suspension of one or more essential functions if the suspension is temporary and not open-ended, if the employee will be able to perform the essential functions in the near future as outlined in 29 CFR § 1636.3(f)(2)(i) and 29 CFR § 1636.3(f)(2)(ii), and if the ability exists to make modifications or adjustments that permit

the temporary suspension of essential functions. An example of a temporary suspension of essential functions includes, but is not limited to, temporarily removing lifting requirements or reassigning those functions.

7.31.5.2. PWFA RAs may include, but not limited to, modifications widely known to be needed during an uncomplicated pregnancy and are generally considered reasonable such as carrying or keeping water or food near for drinking and eating; taking additional, longer, or more flexible breaks to drink water, eat, rest, or use the restroom; sitting for those whose work requires standing and standing for those whose work requires sitting; changing a uniform or dress code or providing safety equipment that fits; changing a work schedule, such as having shorter hours, part-time work, or a later start time; etc.

7.31.5.3. The application process may be modified or adjusted to enable a qualified applicant with a known limitation under the PWFA to be considered for the position. For example, a modification may include adjusting the interview schedule with the applicant.

7.31.5.4. An employee may need different accommodations at different times during the pregnancy or after childbirth.

7.31.6. *Obligation*. The DAF will meet obligations under the PWFA by **(T-0)**:

7.31.6.1. Providing modifications or adjustments in the work environment or to the manner or circumstances under which the position held is customarily performed, that enables a qualified employee with a known limitation to perform the position functions. For example, this may include exceptions to policies on work schedules, telework, light duty, leave or breaks; reserved parking; job restructuring; or acquiring or modifying equipment, uniforms, or devices.

7.31.6.2. Ensuring individuals covered under PWFA enjoy equal benefits and privileges of employment as are enjoyed by DAF's other similarly situated employees without disabilities or known limitations. Benefits and privileges of employment include access to spaces available to all employees such as cafeterias, break rooms, employer-sponsored training, and employer-sponsored social events.

7.31.7. *Supporting Documentation*. Supporting and reasonable documentation may be requested under limited circumstances to the extent sufficient to confirm the physical or mental condition and that it is related to, affected by, or arising out of pregnancy, childbirth, or related medical conditions, and describe the adjustment or change needed due to the limitations. In most cases, a discussion with the employee or applicant may be sufficient and supporting documentation will not be needed.

7.31.7.1. The employee or applicant will not be required to be examined by a healthcare provider to determine if they require a PWFA RA. **(T-0)** When it is reasonable under the circumstances to seek supporting documentation, the DAF may require that the reasonable documentation comes from a health care provider, which may include, but is not limited to: doctors, midwives, nurses, nurse practitioners, physical therapists, lactation consultants, doulas, occupational therapists, vocational rehabilitation specialists, therapists, industrial hygienists, licensed mental health professionals, psychologists, or psychiatrists. The health care provider may be a telehealth provider. The DAF may not require that the health care provider submitting documentation be the provider treating the condition at issue. The DAF

may not require that the employee seeking the accommodation be examined by a health care provider selected by the covered entity as outlined in 29 CFR § 1636.3(i)(3). **(T-0)**

7.31.7.2. It is usually not considered reasonable to request medical documentation when the employee or applicant provides self-confirmation of the pregnancy or related condition and the accommodation needed is obvious or the supervisor (or decision authority) has sufficient information to determine whether the employee has a physical or mental condition related to, affected by, or arising out of pregnancy, childbirth, or related medical conditions (a limitation) and needs an adjustment or change at work due to the limitation.. Documentation of the related medical condition or how an RA addresses a related medical condition may be needed in limited circumstances pursuant to 29 CFR 1636.3(l).

7.31.7.3. An employee may provide a self-confirmation for the need for an accommodation when the employee is pregnant and seeks to be allowed to carry or keep water near and drink, as needed; to take additional restroom breaks, as needed; to sit and stand, as needed or to take breaks to eat and drink, as needed, due to a physical or mental condition related to, affected by, or arising out of pregnancy; or when the reasonable accommodation is related to a time and/or place to pump at work, other modifications related to pumping at work, or a time to nurse during work hours (where the regular location of the employee's workplace makes nursing during work hours a possibility because the child is in close proximity). **(T-0)**

7.31.8. *Processing a PWFA Reasonable Accommodations*. When a supervisor (or other decision authority) is informed by an employee or applicant that she is in need of an adjustment or change in their working conditions due to a known limitation arising out of, or affected by pregnancy, childbirth, or a related medical condition, the supervisor (or other decision authority) will engage in an interactive process with the employee or applicant to process a PWFA RA. **(T-0)** See paragraph **7.8.3** and **7.8.4** for guidance on the interactive process.

7.31.8.1. The supervisor (or other decision authority) will respond promptly to accommodation requests. If it does not cause an undue hardship to the DAF, the supervisor (or other decision authority) generally has to provide a RA—either what the employee or applicant requests or another effective accommodation. **(T-0)**

7.31.9. *Denial of PWFA Reasonable Accommodations*. Pursuant to 29 CFR § 1614.203(d)(3)(i)(M), supervisors (or decision authorities), with support from installation DPMs, will expeditiously process an PWFA request in the shortest time practicable but no longer than 30 calendar days from receipt of an RAR, absent extenuating circumstances. **(T-1)** Denials of PWFA requests will be documented in writing and will be provided to the employee within 30 calendar days from the date of receipt of the request, absent extenuating circumstances. Denials will include specific reasons for the denial and identify the individual and office that made the final decision. **(T-1)** See paragraph **7.20** through **7.20.2** for documenting and annotating closure of PWFA requests.

7.31.9.1. A decision to deny PWFA RA at the supervisory level will be considered preliminary and promptly forwarded to the servicing legal office for legal sufficiency before submission to the installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), for endorsement before being provided to the requestor. **(T-1)**

7.31.9.2. The installation commander (or civilian equivalent), or designee not below the grade of O-6 (or civilian equivalent), will be the final authority for PWFA requests for determination on claims of undue hardship to the DAF.

7.31.10. *Filing EEO Complaints*. Supervisors will inform the employee or applicant who meet criteria per 29 CFR Part 1614 of her right to file an EEO complaint if she was denied a RA and believes she was unlawfully discriminated against based on a protected class (e.g., sex or disability related to pregnancy, childbirth, or related medical conditions as appliable). The supervisor will notify the employee or applicant that she must contact an EO practitioner within 45 calendar days of the matter allegedly discriminatory (e.g., date of receiving a RA denial notification) as well as the availability of an informal dispute resolution process (i.e., ADR). **(T-0)** Refer to DAFI 36-2710 for additional information on EEO complaint process and DAFI 51-1201 for ADR.

Chapter 8

REASONABLE ACCOMMODATION REQUEST ELECTRONIC SYSTEM

8.1. Overview. The Reasonable Accommodations Request (RAR) Electronic System serves as the DAF's preferred and centralized mechanism to request, process, manage, and report RAR and personal assistance services (PAS) in the DAF. While the RAR Electronic System is not required to be used to initiate a request, it is available to an employee seeking to request a reasonable accommodation (RA) and/or PAS that captures relevant information related to his/her disability and functional limitation, accommodations needed to perform the essential functions of his/her job or assistance with performing activities of daily living because of a targeted disability as well as enables secure uploading of medical or other relevant documentation which may be required to determine the need for the RA and/or PAS. The RAR Electronic System allows supervisors and disability program managers (DPM) to receive automatic notification to process to a RAR and/or PAS as well as provides DPMs with the ability to manage, update, and track the RAR and/or PAS in a timely and streamlined manner.

8.1.1. The RAR electronic form to submit an RA or PAS is accessible on the Reasonable Accommodation Request SharePoint at: **https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx**.

8.2. System Access. All MAJCOM/FLDCOM and installation DPMs will be appointed by their respective MAJCOM/FLDCOM and installation commanders in writing to execute their DPM roles and responsibilities prior to gaining access to the RAR Electronic System. **(T-1)** DAF employees will not need system access to submit requests or upload documents. Applicants may request RAR verbally or in writing and the request will be submitted via use of the RAR electronic form by the DAF employee authorized to interact with the applicant (e.g. the human resources staffing or civilian personnel specialist). Supervisors will not need system access to process requests and/or upload documentation associated with RA and/or PAS.

8.2.1. Upon appointment, DPMs will promptly register as a DPM and request access to the RAR Electronic System through the DAF Reasonable Accommodations SharePoint. **(T-1)** This includes DPMs uploading their appointment letters as part of their registration as a DPM.

8.2.1.1. Registration via the Reasonable Accommodations Request SharePoint ensures DPMs are identified to process RAR and PAS requests and listed on the DAF's DPM master listing on the Air Force Portal. Registration enables proper and timely routing of a RAR to the respective DPM to process and manage.

8.2.1.2. RAR Electronic System access instructions are available on the Reasonable Accommodations Request SharePoint at: **https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx**.

8.2.1.3. DAF's DPM master listing is on the Air Force Portal by installation and MAJCOM/FLDCOM and can be found by searching "Find a Disability Program Manager."

8.2.2. Prior to initial access to and annually thereafter to maintain access to the RAR Electronic System, DPMs will successfully complete DoD or DAF approved trainings on cyber

awareness, safeguarding personally identifiable information (PII), or other SAF/MRQ approved training when directed and available. **(T-1)** SAF/MRQ, in coordination with AF/A1X, maintains discretion on training requirements to access the RAR Electronic System. **(T-1)**

8.2.2.1. After completing required training, DPMs will complete applicable request form(s) to gain access to the RAR Electronic System. **(T-1)** Form(s) are accessible on the Reasonable Accommodation Request SharePoint at: **https://usaf.dps.mil/teams/ReasonableAccommodationRequestPublicTeam/SitePages/Reasonable-Accommodation-Request-and-DPM-AEPM-Site.aspx**. Additional guidance on gaining access to the RAR Electronic System is available on the Reasonable Accommodation Request SharePoint site.

8.2.3. MAJCOM/FLDCOM DPMs will assist installation DPMs with documenting and processing RARs if an installation DPM encounters issues with gaining access to the RAR Electronic System, or until the installation DPM is able to gain access. **(T-1)**

8.2.4. MAJCOM/FLDCOM and installation DPMs or their supervisors will promptly notify AFPC AEP/DP Operation Support to have their system access terminated when they are no longer serving as or preforming the duties as a DPM. AFPC AEP/DP Operation Support will also remove these DPMs from the DPM master listing. **(T-1)**

8.2.5. Access to the RAR Electronic System will not be granted to individuals or organizations outside the DAF DP without explicit written approval from AFPC AEP/DP Operation Support with concurrence from SAF/MRQ. **(T-1)** This ensures that system access is limited to those with an official need to know to maintain the privacy and confidentiality of civilian Airmen and Guardians.

8.2.6. The RAR Electronic System access will be granted and managed by AFPC AEP/DP Operation Support, in coordination with AF/A1X. AFPC AEP/DP Operation Support, in coordination with AF/A1X, will ensure newly appointed DPMs are promptly granted system access. **(T-1)**

8.2.6.1. AFPC AEP/DP Operation Support will review DPM registration requests to verify that official appointment letters are uploaded, DPMs have completed required trainings as described in **paragraph 8.2.2**, and completed applicable access request form(s). **(T-1)**

8.2.6.2. Once verified, AFPC AEP/DP Operation Support will validate the DPM's access request with assistance being provided by AF/A1X to grant system access. AF/A1X will then provide DPMs system access to RAR Electronic System. **(T-1)**

8.3. Data Entry. Installation DPMs will ensure and validate all required data and information is entered or uploaded into the RAR Electronic System. **(T-1)** This will include, but is not limited to, ensuring supervisors acknowledge the RA and/or PAS request, documenting the date of the RAR interactive process (as appropriate), requesting assistance from MAJCOM/FLCOM DPMs to reassign actions, identifying when more information is needed and following up, and closing out the RAR or PAS request when a decision is made on the request and appropriate decision is uploaded to the RAR Electronic System.

8.3.1. Installations DPMs will not track RA of PAS requests outside of the RAR Electronic System to ensure proper safeguards on sensitive information protected under federal laws. **(T-0)**

8.3.2. Data and information entered or uploaded into the RAR Electronic System will be updated promptly (e.g., upon receipt) to ensure timely processing and tracking of RAR and PAS requests. **(T-1)**

8.3.3. The supervisor will upload all documentation he/she received related to the RAR and/or PAS request into the RAR Electronic System. **(T-1)**

8.3.3.1. In extenuating circumstances (e.g., technical issues or errors in the system, no or limited ability to access the RAR electronic form, verbal request, etc.), the installation DPM will assist the supervisor (or civilian personnel section (CPS)/human resource office (HRO)) concerning applicants for DAF employment) by entering data and information and uploading documentation to the RAR Electronic System. **(T-1)** The installation DPM will submit the RAR or PAS request on behalf of another individual in the RAR Electronic System. **(T-1)**

8.3.3.2. When requested, the installation DPM will assist the requestor in entering data and information and uploading documentation to the RAR Electronic System. **(T-1)** The installation DPM will submit the RAR or PAS request on behalf of another individual in the RAR Electronic System. **(T-1)**

8.3.3.3. If the same requestor submits multiple RAR or PAS requests, the installation DPM will follow up with the requestor's supervisor to determine if the submissions are duplicates. **(T-1)** If it is identified that the RAR or PAS requests are duplicates, the installation DPM will annotate the newest submission as "complete" and annotate that it is a duplicate submission. **(T-1)**

8.4. Data Quality Control Reviews. Data quality control reviews will be conducted at the installation, MAJCOM/FLDCOM, and Air Force Personnel Center (AFPC) levels to ensure data integrity and enable the DAF to leverage data that is accurate, complete, thorough, up-to-date, consistent, and appropriately formatted to timely process and track RAR and PAS requests. **(T-1)**

8.4.1. AFPC AEP/DP Operation Support will conduct quality control reviews at least quarterly, throughout the year, and before any aggregate data is submitted to SAF/MRQ or higher headquarters. **(T-1)** This quality control review will include the RAR and PAS dashboards within the RAR Electronic System to ensure appropriate record keeping is being accomplished. **(T-1)**

8.4.2. AFPC AEP/DP Operation Support will coordinate changes or enhancements to dashboard functionality through SAF/MRQ to assist with compliance reviews and ensuring adherence with applicable laws, regulations, executive orders, directives, and DoD and DAF policies. **(T-1)**

8.5. System Technical Issues and Assistance. Installation DPMs, through their MAJCOM/FLDCOM DPMs or MAJCOM/FLDCOM AEPM in absence of a DPM or AEPM for the installation, will immediately report any system errors or issues, especially issues that have a prolonged negative effect in RAR and PAS request processing, to AFPC AEP/DP Operation Support to report to AF/A1X for troubleshooting and resolution. **(T-1)** Where technical assistance

is needed, installation DPMs may request this assistance to the AFPC AEP/DP Operation Support through their MAJCOM/FLDCOM DPM.

8.6. Safeguards to Information and Confidentiality. Installation DPMs will keep confidential and only disclose or release RAR and PAS request information to individuals with an official need to know as part of their official duties only when disclosure or release is authorized in writing by the employee, appropriate decision authority, or where permissible or required by law or regulation. **(T-0)** The information in the RAR Electronic System is considered personally identifiable information (PII) and will be safeguarded consistent with applicable laws, regulations, directives, and DoD and DAF policies. **(T-0)**

8.6.1. Pursuant to the Americans with Disabilities Act (ADA) of 1990 (42 USC § 12101 *et seq*.), the following are exceptions to the confidentiality requirements apply: (1) supervisors and managers may be told about necessary limitations on the work or duties of the employee and about necessary accommodations; (2) first aid and safety personnel may be told if the disability might require emergency treatment; and (3) government officials investigating compliance with the ADA must be given relevant information on request.

8.6.2. Requests to disclose or release disability data in the RAR Electronic System not covered by the exemptions outlined in **paragraph 8.6.1** or not previously approved by SAF/MR through SAF/MRQ, will be routed to SAF/MRQ through AFPC AEP/DP Operation Support for approval. **(T-1)**

8.6.3. Installation DPMs, supervisors, or those with access to information obtained (verbally or in writing) or otherwise accessed via use of the RAR Electronic System may be held liable for any unauthorized disclosure of information when such disclosure or release is to individuals who are not authorized to access the information or do not have a need to know. **(T-0)** Disclosures that an employee is receiving a RA and/or PAS will constitute as an unauthorized disclosure that an individual has a disability. **(T-0)**

8.7. Records Collection, Management, and Disposition. All DAF RA and PAS information and records will be maintained and safeguarded in accordance with applicable laws, regulations, and policies to include, but not limited to, collection and/or maintenance of information protected by the Privacy Act of 1974, Freedom of Information Act (FOIA), DoDI 5400.11, DoDI 5200.48, DoDI 5015.02, DTM 22-001, DAFI 16-1403, AFI 33-332, AFI 33-322, and AFI 17-130, *Cybersecurity Program Management*. **(T-0)** The installation DPM serves as the custodian of the official records for the DP, to include RA and PAS, at his/her respective installation. **(T-1)**

8.7.1. The installation DPM will ensure all information (i.e., records) related to RA and PAS will be properly maintained and disposed of in accordance with AFI 33-322 and the Air Force Records Disposition Schedule, which is in the Air Force Records Information Management System (AFRIMS). **(T-1) Note:** The Air Force Records Disposition Schedule is the list of all National Archives-approved records dispositions for the DAF. This includes hardcopy and electronic records as well as other records other than paper or electronic medium as described in AFI 33-322.

8.7.2. The installation DPM will maintain records related to RA and PAS for three years after employee separation from the agency or any appeals are concluded, whichever is later, but longer retention is authorized if required for business use. **(T-1)** Records include, but is not limited to, request; approvals; denials; notice of procedures for filing EEO complaints,

alternative dispute resolution, or appeal processes; forms; correspondence; records of oral conversations; medical records; and supporting notes and documentation.

Chapter 9

AFFIRMATIVE EMPLOYMENT AND DISABILITY PROGRAM REPORTING REQUIREMENTS

9.1. Overview. The DAF is required to report EEO activities and data to Congress, Equal Employment Opportunity Commission (EEOC), Office of Personnel Management (OPM), Department of Defense (DoD), and other identified agencies to meet applicable statutory and policy reporting requirements. **Table 9.1** provides an overview of multiple, but not all inclusive, above DAF reporting requirements with DAF EEO programs (i.e., Affirmative Employment Program [AEP] and Disability Program [DP]) equities as either the DAF office of primary responsibility (OPR) or as a support role as an office of coordinating responsibility (OCR).

9.2. DAF Reporting Requirements. AFPC AEP/DP Operation Support, MAJCOM/FLDCOM AEP managers (AEPM) and DP managers (DPM), and installation AEPMs and DPMs will comply with all data calls, request for information, and other-directed tasks to support DAF reporting requirements identified in **Table 9.1** and other relevant EEO reporting requirements with DAF equities. **(T-1)** SAF/MRQ (OPR) will request input from, to include but not limited to, SAF/MRM, SAF/MRL, AF/A1, and SF/S1 on accomplishment and plans to comply with reporting requirements. The DAF DP and AEP will compile the final agency reports for submission as identified in **Table 9.1**.

9.2.1. While MAJCOM/FLDCOM and installations do not have separate MD 715, FEORP, or DVAAP reporting requirements, MAJCOMs/FLDCOMs and installations commanders (or civilian equivalents) will ensure data and input is provided to support the overall DAF reporting requirements. This will include coordinating and receiving input from their respective, and where appropriate, civilian personnel sections (CPS), human resource offices (HRO), MAJCOM/FLDCOM equal opportunity (EO) functional managers, installation EO directors, integrated primary prevention workforce, MAJCOM/FLDCOM and installation NDR program managers, commanders (and civilian equivalents), supervisors/managers, and other key DAF stakeholders on data calls or reports.

9.3. *EEOC Management Directive 715 (MD 715), Model Agency Title VII and Rehabilitation Act Program*. Consistent with Title VII of the Civil Rights Act, the Rehabilitation Act of 1973, as amended, and instructions outlined in MD 715 Section III, *Reporting Requirements and Line-by-line Instructions*, the DAF will submit a MD 715 Report each fiscal year to the EEOC. **(T-0)** While SAF/MRQ is OPR for consolidating the DAF MD-715 Report, at minimum, higher headquarters (HAF) level offices (i.e., SAF/MRM, SAF/MRL, SAF/MRB, SAF/GC, AF/JA AF/A1, SF/S1, etc.) and AFPC will provide oversight and/or input on matters concerning civilian personnel, EEO formal complaints, alternative dispute resolution, etc. **(T-1)**

9.4. *Federal Equal Opportunity Recruitment Program (FEORP) Report*. Consistent with 5 CFR Part 720, Subpart B, the DAF will submit a FEORP Report each fiscal year through DoD to OPM. **(T-0)** OPM then submits a report to Congress on the implementation and operation of the program on a government-wide basis that includes assessments of agencies' progress, or lack of progress, in meeting the objectives of the program. While SAF/MRQ is OPR for consolidating the DAF FEORP Report, at minimum, HAF level offices (i.e., SAF/MRM, SAF/MRL, AF/A1, SF/S1, etc.) will provide oversight and/or input on matters concerning civilian personnel, specifically

recruitment strategies and activities covering the various organizations levels and geographic locations within the DAF. **(T-1)**

9.5. ***Disabled Veterans Affirmative Action Program (DVAAP) Report.*** Consistent with 5 CFR Part 720, Subpart C, the DAF will submit a DVAAP Report each fiscal year through DoD to OPM. (T-0) OPM then submits a report to Congress pursuant to 38 USC § 4214, on the implementation and progress of the program that includes assessments of agencies' progress or lack of progress in meeting the objectives of the program to promote Federal employment and advancement opportunities for qualified disabled veterans. **(T-0)**

Table 9.1. Above DAF Reporting Requirements.

Report	Summary	Requirement	Frequency	Report To	DAF Oversight OPR/OCR[1]
EEOC MD 715, Model Agency Title VII and Rehabilitation Act Program	Report on status of EEO activities undertaken pursuant to Title VII of the Civil Rights Act and Rehabilitation Act.	P.L. 88-352 § 717; P.L. 93-112 § 501; 42 USC § 2000e16	Annual- FY	EEOC	OPR: SAF/MRQ OCR: AF/A1C; AF/A1Z; SF/S1C; SAF/MRBA; SAF/MRM; SAF/MRL; SAF/GC AF/JA
Federal Equal Opportunity Recruitment Program (FEORP)	Report on equal opportunity recruitment program plan covering recruitment for positions at various organizational levels and geographic locations within the agency consistent with Title VII of the Civil Rights Act.	P.L. 88-352 § 717; 5 USC § 7201; 5 CFR Part 720, Subpart B	Annual- FY	Congress, OPM, DoD	OPR: SAF/MRQ OCR: SAF/MRM; SAF/MRL; AF/A1C; SF/S1C
Disabled Veterans Affirmative Action Program (DVAAP)	Report on agency's efforts and accomplishments to promote Federal employment and job advancement opportunities for qualified disabled veterans.	5 USC § 7201; 29 USC § 791; 38 USC § 4214; 5 CFR Part 720, Subpart C	Annual- FY	Congress, OPM, DoD	OPR: SAF/MRQ OCR: AF/A1C; SF/S1C; SAF/MRM; SAF/GCA AF/JA

[1] This column identifies higher headquarters OPRs and OCRs with policy oversight equities; however, this may not be all inclusive of other relevant higher headquarters and below higher headquarters stakeholders (e.g., Air Force Personnel Center, MAJCOM/FLDCOM, field operating agencies, etc.) that will be tasked to provide information/data.

Chapter 10

ACCESSIBILITY COMPLIANCE - REHABILITATION ACT 1973 AND ARCHITECTURAL BARRIERS ACT (ABA) OF 1968

10.1. Overview. The Department of the Air Force (DAF) is committed to meeting or exceeding the accessibility requirements and standards for individuals with disabilities (IWD) consistent with the Architectural Barriers Act (ABA) of 1968 (42 USC § 4151 *et seq.*), the Rehabilitation Act of 1973 (29 USC § 794 *et seq.)*, as amended, 32 CFR Part 56, *Nondiscrimination on the Basis of Handicap in Program and Activities Assisted or Conducted by the Department of Defense,* 36 CFR Part 1191, *Americans with Disabilities Act (ADA) Accessibility Guidelines for Buildings and Facilities; Architectural Barriers Act (ABA) Accessibility Guidelines* (also known as the *ABA Accessibility Standards)*, Department of Defense (DoD) Memorandum, *Access for People with Disabilities*, DoD Directive (DoDD) 1020.1, *Nondiscrimination on the Basis of Handicap in Programs and Activities Assisted or Conducted by the Department of Defense,* and other applicable laws, regulations, executive orders, and policies. The DAF will ensure any programs or activities conducted or assisted by the DAF, including facilities and structures owned, leased, or otherwise financially, or contractually supplemented or acquired, do not discriminate against IWD and will ensure IWD have equal opportunity to participate in and benefit from any programs or activities conducted or assisted by the DAF. The DAF will ensure facilities, structures, and physical infrastructures are sufficiently accessible and useable by IWD.

10.1.1. The ABA requires that buildings or facilities that were constructed or altered by or on behalf of the United States, or leased or financed in whole or in part by the United States, after 12 August 1968, be accessible to individuals with physical disabilities.

10.1.2. The Rehabilitation Act sets forth provisions regarding the rights of IWD in their interactions with the federal government, whether through direct contact with federal agencies that receive federal financial assistance. Sections 501, 504 and 508 of the Rehabilitation Act prescribe provisions for compliance and avenues for redress.

10.1.2.1. Section 501 (29 USC § 791) prohibits employment discrimination against applicants or employees of the federal government who are IWD. Governing provisions for filing and resolving Section 501 complaints (employment related complaints) can be found in 29 CFR Part 1614, *Federal Sector Equal Employment Opportunity*.

10.1.2.2. Section 504 (29 USC § 794) requires that no IWD, solely by reason of his/her disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination under any program or activity (including facilities and structures) receiving federal financial assistance or under any program or activity conducted by a federal agency.

10.1.2.3. Section 508 (29 USC §794d) requires IWD have access to and use of information and data that is comparable to the access and used by Federal employees or members of the public seeking information to those who are not IWD, unless an undue burden upon the agency. Federal agencies are required to ensure information and communication technology (ICT) supplies and services meet the applicable accessibility standards in 36 CFR Part 1194

10.2. Accessibility Barriers Reporting Avenues. Individuals who have encountered or are aware of an accessibility barrier at a DAF building, facility, or structure have the right to report such the existence of barriers. Regardless of reporting avenue used, DAF civilian employees are encouraged to promptly report barriers as early as possible to help ensure better and timely resolution. **(T-1)**

10.2.1. *Filing an Equal Employment Opportunity (EEO) Complaint with the DAF.* If the alleged accessibility barrier is related to an individual's federal employment, DAF civilian employees, former employees, and applicants for employment who meet criteria per 29 CFR Part 1614 may file an EEO complaint within 45 calendar days of the matter alleged to be discriminatory (e.g., on the basis of disability as a protected class) as described in DAFI 36-2710, *Equal Opportunity Program*. For additional information, visit **https://www.af.mil/Equal-Opportunity/**, call the DAF Unlawful Discrimination and Harassment Hotline at 1-888-231-4058, or contact the servicing installation equal opportunity office.

10.2.2. *Filing ABA Complaint with U.S. Access Board*. Individuals may file an ABA complaint directly with the U.S. Access Board if he/she has encountered or is aware of an accessibility barrier at a DAF building or facility covered by the ABA that he/she believes does not meet ABA Accessibility Standards described at **https://www.access-board.gov/aba/**. The U.S. Access Board is an independent federal agency that enforces accessibility standards that apply to federally funded facilities under the ABA. An ABA complaint can be filed online at **https://access-board.force.com/**, via email at **enforce@access-board.gov**, by fax at (202) 272-0081, or by mail at U.S. Access Board, 1331 F Street, NW, Suite 1000, Washington, DC 20004. While ABA complaints cannot be filed by phone, and an individual is unable to file online or by e-mail due to a disability, an individual can call (202) 272-0050.

10.2.3. *Filing Section 504 of the Rehabilitation Act or ADA Non-Employment Related Complaint with the Department of Justice's (DOJ) Civil Rights Division*. Individuals may file a complaint for non-employment related matters under Section 504 or ADA if he/she believes that he/she has been discriminated against (e.g., on the basis of disability) in having access to DAF programs, activities, facilities, and structures owned, leased, or otherwise financially or contractually supplemented or acquired pursuant to 29 CFR Part 1640, *Procedures for Coordinating the Investigation of Complaints or Charges of Employment Discrimination Based on Disability Subject to the Americans With Disabilities Act and Section 504 of the Rehabilitation Act of 1973*. A complaint can be filed online at **https://www.ada.gov/file-a-complaint/#filing-an-ada-complaint-with-the-department-of-justice-civil-rights-division** or by mail at U.S. Department of Justice Civil Rights Division, 950 Pennsylvania Avenue, NW Washington, DC 20530.

10.2.4. *Filing Section 504 of the Rehabilitation Act or ADA Employment Related Complaint with the Equal Employment Opportunity Commission (EEOC)*. Individuals may file a complaint for employment related matters arising under Section 504 or ADA if he/she believes that he/she has been discriminated against (e.g., on the basis of disability) in having access to DAF facilities and structures owned, leased, or otherwise financially or contractually supplemented or acquired pursuant to 29 CFR Part 1640. A complaint can be filed online at **https://www.eeoc.gov/filing-charge-discrimination**.

10.2.5. *Section 508 of the Rehabilitation Act Complaint*. Individuals who believes that DAF's information and communication technology (ICT) does not allow him/her to have access to and use of information and data that is comparable to access and use by individuals without disabilities, or that the alternative means of access provided by the DAF does not allow the individual to use the information and data, may seek assistance from or file a complaint via email at **DAF.Section.508@us.af.mil** or with a DAF 508 coordinator by accessing **https://www.section508.gov/tools/program-manager-listing/**. A Section 508 complaint should be filed within 180 calendar days of the alleged discrimination or within a longer period of time if an extension is granted for good cause. **Note:** SAF/CN has oversight for DAF Section 508 compliance and complaint processing. For additional information, visit **https://www.compliance.af.mil/Resources/Section-508-Compliance/**.

10.3. Processing ABA Complaints from the U.S. Access Board to DAF.

10.3.1. The DAF will process ABA complaints concerning accessibility barriers and access to DAF facilities and structures owned, leased, or otherwise financially or contractually supplemented or acquired consistent with 36 CFR Part 1191, and where applicable, under DoDD 1020.1. **(T-0)**

10.3.2. *Complaint Notification to DAF*. When an ABA complaint identifies the DAF as the possible responsible agency, the U.S. Access Board will forward it to the SAF/MR through the DAF Disability Program (SAF/MRQ) along with the U.S. Access Board Questionnaire for DAF completion and submission to determine complaint jurisdiction and whether to issue a violation letter if the accessibility standard(s) was not met.

10.3.2.1. Upon receipt of the ABA complaint and U.S. Access Board Questionnaire, SAF/MRQ, AF/A4 (or Space Force equivalent), and SAF/IE will convene and verify whether the complaint is within the DAF's jurisdiction. AF/A4 (or Space Force equivalent) will provide a single point of contact to serve as a subject matter expert on facilities and structures policies and support complaints from start to closure of the complaints, to include attendance at DAF meetings with U.S. Access Board. **(T-1)**

10.3.2.2. If the complaint is not within DAF jurisdiction, SAF/MRQ will notify U.S. Access Board to decline the complaint. **(T-1)**

10.3.2.3. If the complaint is within DAF jurisdiction, SAF/MRQ will task the complaint and questionnaire to responsible MAJCOM/FLDCOM to complete and submit the questionnaire to SAF/MRQ within 30 calendar days of the date tasked. AF/A4 (or Space Force equivalent) will be responsible for responding to MAJCOM/FLDCOM questions concerning the complaint. **(T-1)**

10.3.2.4. When the MAJCOM/FLDCOM completes the questionnaire, AF/A4 (or Space Force equivalent) will review, validate, and provide concurrence before submitting to SAF/MRQ. If AF/A4 (or Space Force equivalent) identifies issues, deficiencies, and incompleteness, AF/A4 (or Space Force equivalent) will directly engage with the MAJCOM/FLDCOM to resolve and finalize before submitting the questionnaire to SAF/MRQ. **(T-1)**

10.3.2.5. SAF/MRQ will submit the completed questionnaire to U.S. Access Board for determination on jurisdiction and that may result in the issuance of a violation letter if any violations are identified by U.S. Access Board. **(T-0)**

10.3.3. *Complaint Determination by U.S. Access Board*. Upon receipt of an ABA questionnaire from the DAF, the U.S. Access Board determines whether the facility identified in the complaint is covered by the applicable law, and if covered, determines the jurisdiction and applicable accessibility standard to verify whether the facility meets the standard. If the accessibility standards were not met, the U.S. Access Board then notifies the responsible agency and requests a plan and schedule to remove the barrier(s).

10.3.3.1. If the U.S. Access Board does not issue a violation letter to the DAF, there is no complaint to resolve.

10.3.3.2. If the U.S. Access Board issues a violation letter to the DAF due to an accessibility standard(s) not being met, SAF/MRQ will task the violation letter and complaint to responsible MAJCOM/FLDCOM to process and resolve. AF/A4 (or Space Force equivalent) will be responsible for responding to MAJCOM/FLDCOM questions concerning the complaint. **(T-1)**

10.3.3.3. MAJCOM/FLDCOM and installation disability program managers (DPM), equal opportunity (EO) directors and practitioners, and affirmative employment program managers (AEPM) will not serve as the point of contact for or assigned duties to process and resolve ABA complaints as this is outside the scope of their roles and functions. **(T-1)**

10.3.4. *Timely Processing of ABA Complaints by DAF*. The DAF will ensure prompt resolution and closure of the ABA complaints to the greatest extent possible. **(T-0)**

10.3.4.1. SAF/MRQ will task the responsible MAJCOM/FLDCOM to provide at least quarterly progress updates on actions taken to resolve the matter and identified challenges or delays until the complaint is resolved, or when a status update is requested for reporting purposes to U.S. Access Board. AF/A4 (or Space Force equivalent) will be responsible for responding to MAJCOM/FLDCOM questions concerning the complaints. **(T-1)**

10.3.4.1.1. These progress updates are separate from, but reliant on respective facilities board's requirement to review, track, and monitor to completion reasonable modification and structural compliance complaints as outlined in DAFI 32-1015, *Integrated Installation Planning*. This includes AF/A4 (or Space Force equivalent) and responsible MAJCOM/FLDCOM monitoring complaints related to installed equipment, facilities, structures, properties, museums, and historic buildings under the ABA accessibility guidelines as described in 36 CFR Part 1191. **(T-1)**

10.3.4.2. When the MAJCOM/FLDCOM provides progress updates, AF/A4 (or Space Force equivalent) will review, validate, and provide concurrence before submitting to SAF/MRQ. If AF/A4 (or Space Force equivalent) identifies issues, deficiencies, incompleteness, and/or barriers to resolution (e.g., lack of or delays in construction funds, timeliness, etc.), AF/A4 (or Space Force equivalent) will directly engage with the MAJCOM/FLDCOM to resolve and finalize before submitting progress updates to SAF/MRQ. **(T-1)**

10.3.4.2.1. If structural changes are determined to be necessary, AF/A4 (or Space Force equivalent) will ensure that the responsible MAJCOM/FLDCOM take appropriate actions to make the changes to move toward compliance. **(T-0)** AF/A4 (or Space Force equivalent) will monitor progress of these efforts. **(T-1)**

10.3.4.2.2. If reasonable modification and structural compliance cannot be met due to conflicts with other laws, regulations, executive orders, DoD/DAF policies, or other extenuating circumstances, the responsible MAJCOM/FLDCOM will notify AF/A4 (or Space Force equivalent) with justification for not being able to meet compliance and seek guidance on how best to attempt to resolve the complaint. AF/A4 (or Space Force equivalent) will notify SAF/MRQ for awareness within five calendar days prior to a DAF meeting with the U.S. Access Board. **(T-1)**

10.3.4.3. SAF/MRQ will provide progress updates on all complaints to the U.S. Access Board. **(T-0)**

10.3.5. *Request for ABA Complaint Closure*. When ABA complaint is resolved and ready for closure with the U.S. Access Board, the responsible MAJCOM/FLDCOM will submit to AF/A4 (or Space Force equivalent) an official memorandum along with documented proof to support the complaint closure. The official memorandum will include details of how the complaint(s) has been addressed and the final remedial action(s) taken to resolve the barrier(s) to bring the DAF into compliance. Documented proof of the actions taken can include, but not limited to, before and after floor plans, work or task orders, photographs, training dates and number of employees trained, etc. **(T-0)**

10.3.5.1. AF/A4 (or Space Force equivalent) will review, validate, provide concurrence, and ensure that the MAJCOM/FLDCOM official memorandum includes details of how the complaint(s) has been addressed and the final remedial action(s) taken to resolve the barrier(s) to bring the DAF into compliance and the provision of documented proof. **(T-0)** AF/A4 (or Space Force equivalent) will submit an endorsement memorandum on top of the lower-level official memorandum to indicate concurrence for complaint closure. If AF/A4 (or Space Force equivalent) identifies issues, deficiencies, and incompleteness, AF/A4 (or Space Force equivalent) will directly engage with the MAJCOM/FLDCOM to resolve and finalize before submitting the complaint closure request to SAF/MRQ. **(T-1)**

10.3.5.2. Upon receipt of the complaint closure request with all required documentation from AF/A4 (or Space Force equivalent), SAF/MRQ, in coordination with SAF/IE, will submit the AF/A4 (or Space Force equivalent) and MAJCOM/FLDCOM memoranda and documented proof to U.S. Access Board requesting official DAF complaint closure. **(T-0)**

10.3.5.3. Upon receiving U.S. Access Board response, SAF/MRQ will notify AF/A4 (or Space Force equivalent) and the responsible MAJCOM/FLDCOM on whether the complaint was closed or if additional actions are required. **(T-0)**

10.4. Processing Section 504 of the Rehabilitation Act and ADA Complaints Referred to DAF.

10.4.1. The DAF will process Section 504 of the Rehabilitation Act and ADA complaints concerning accessibility barriers and access to DAF programs, activities, facilities and structures owned, leased, or otherwise financially or contractually supplemented or acquired consistent with 29 CFR Part 1640 and DoDD 1020.1. **(T-0)**

10.4.2. Upon receipt of a complaint from the DOJ's Civil Rights Division or EEOC through the DoD, SAF/MR through SAF/MRQ will verify whether the complaint is within the DAF's jurisdiction in coordination with appropriate DAF higher headquarters organizations overseeing programs, activities, or facilities that may be identified in the complaint. **(T-1)**

10.4.3. If the complaint is within DAF jurisdiction, SAF/MRQ will forward the complaint to the DAF responsible department official (RDO) overseeing programs, activities, or facilities that are identified in the complaint to process and resolve the complaint consistent with 29 CFR Part 1640 and DoDD 1020.1, to include providing written notification to the complainant within 180 calendar days of receipt of the complaint providing the complaint disposition. **(T-0)** The DAF RDO will ensure the written notification is written, or endorsed with an official memorandum, at the HAF level and provide SAF/MRQ a copy of the written notification. **(T-1)**

10.4.3.1. The DAF RDO will maintain case records, track, monitor, and provide status updates until complaint resolution to SAF/MR through SAF/MRQ. **(T-1)** This will include the DAF RDO, or delegated representative, participating in and providing updates on DAF ABA complaints, in coordination with SAF/MRQ and SAF/IE, in U.S. Access Board hosted meetings. **(T-1)**

10.4.3.2. If the DAF RDO tasks or delegates the complaint for processing and resolution to a MAJCOM/FLDCOM or installation commander or functional community point of contact, the DAF RDO will be the single point of contact to provide complaint updates and complaint disposition to SAF/MRQ. **(T-1)** MAJCOM/FLDCOM and installation DPMs, EO directors and practitioners, and AEPMs will not serve as the point of contact for or assign duties to process and resolve these complaints as this is outside the scope of their roles and functions or presents a conflict of interest. **(T-1)**

10.4.4. If a complaint disposition identifies DAF or a DAF recipient as noncompliant, the DAF RDO will attempt to effect compliance in accordance with DoDD 1020.1, to include the DAF, or considering requiring the DAF recipient, take remedial action to resolve the matter. **(T-0)**

10.5. Accessibility Assurance and Compliance. AF/A4 or SF/COO will require MAJCOM/FLDCOM and installation commander to file written assurances that their facilities, programs, or activities are conducted in accordance with DoDD 1020.1, DAFI 32-1015, *Integrated Installation Planning*, and this publication. **(T-0)** AF/A4 or SF/COO working with respective MAJCOM/FLDCOM or installation commanders are to designate a point of contact such as a chief civil engineer or facilities board coordinate compliance requirements and implementation of any necessary supplementary remediation to ensuring adherence to laws, regulations, executive orders, and DoD and DAF policies that protect IWD from unlawful discrimination. **(T-1)**

BRIAN SCARLETT, SES, DAF
Principal Deputy Assistant Secretary of the
Air Force for Manpower and Reserve Affairs

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 USC § 551, *Definitions*

5 USC § 552a, *Records maintained on individuals* (Privacy Act of 1974, as amended), and 571, *et. seq*.

5 USC § 571 (3), *Definitions*

5 USC § 2105 (c), *Employee*

5 USC § 2301, *Merit system principles*

5 USC § 3112, *Disabled veterans; noncompetitive appointment*

5 USC § 7201, *Antidiscrimination policy; minority recruitment program*29 USC § 206(d), *Prohibition of Sex Discrimination*

10 USC § 9037, *Judge Advocate General, Deputy Judge Advocate General: appointment; duties*

29 USC § 791, *Employment of individuals with disabilities*

29 USC § 794, *Nondiscrimination under Federal grants and programs*

38 USC § 4214, *Employment within the Federal Government*

42 USC § 1320d, *Definitions*

42 USC § 4151, *"Building" defined*

42 USC § 2000e-16, *Employment by Federal Government*

42 USC § 2000gg, *Definitions*

42 USC § 12101 et seq, *Findings and Purpose*

42 USC § 12102(l), *Definition of disability*

5 CFR § 213.3102(u), *Entire Executive Civil Service* [*Appointment of persons with intellectual disabilities, severe physical disabilities, or psychiatric disabilities]*

5 CFR, Part 307, *Veterans Recruitment Appointments*

5 CFR § 316.302(b)(4), *Noncompetitive term appointment*

5 CFR § 316.402(b)(4), *Noncompetitive temporary appointments*

5 CFR, Part 720, *Affirmative Employment Programs*

29 CFR § 1602.14, *Preservation of records made or kept*

29 CFR, Part 1611, *Privacy Act Regulations*

29 CFR, Part 1614, *Federal Sector Equal Employment Opportunity*

29 CFR § 1614.101 *et seq*., *General Policy*

29 CFR § 1614.102(a)(3), *Agency Program*

29 CFR § 1614.102(b)(4), *Agency Program*

29 CFR § 1614.110, *Final action by agencies*

29 CFR § 1614.203, *Rehabilitation Act*

29 CFR, Part 1630, *Regulations to Implement the Equal Employment Provisions of the Americans with Disabilities Act*

29 CFR § 1630.2, *Definitions*

29 CFR § 1630.3, *Exceptions to the definitions of "Disability" and "Qualified Individual with a Disability."*

29 CFR § 1636.3(i)(3), *Definitions—specific to the PWFA*.

29 CFR § 1636.3(f)(2)(ii), *Definitions-specific to the PWFA*.

29 CFR, Part 1640, *Procedures for Coordinating the Investigation of Complaints or Charges of Employment Discrimination Based on Disability Subject to the Americans with Disabilities Act and Section 504 of the Rehabilitation Act of 1973*

32 CFR Part 56, *Nondiscrimination on the Basis of Handicap in Program and Activities Assisted or Conducted by the Department of Defense*

32 CFR Part 191, *The DoD Civilian Equal Employment Opportunity (EEO) Program*

36 CFR, Part 1191, *Americans with Disabilities Act (ADA) Accessibility Guidelines for Buildings and Facilities; Architectural Barriers Act (ABA) Accessibility Guidelines*

36 CFR, Part 1194.1, *Information and Communication Technology Standards and Guidelines*

Public Law (P.L.) 88-352, *The Civil Rights Act of 1964*, 2 July 1964, as amended

P.L. 90-480, *Architectural Barriers Act of 1968*

P.L. 93-112, *Rehabilitation Act of 1973*, 26 September 1973, as amended

P.L. 101-336, *Americans with Disabilities Act of 1990*, 26 July 1990, as amended

P.L. 117-328, *Pregnant Workers Fairness Act*

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OPM Memorandum, *Merit Hiring Plan*, 29 May 2025

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DAFI 90-5001, *Integrated Resilience*, 23 July 2024

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Adopted Forms

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SF 182, *Authorization, Agreement, and Certification of Training*

SF 256, *Self-Identification of Disability*

Abbreviations and Acronyms

ABA—Architectural Barriers Act

ADA—Americans with Disabilities Act

ADR—Alternative Dispute Resolution

AEP—Affirmative Employment Program

AEPM—Affirmative Employment Program Manager

AETC—Air Education and Training Command

AF—Air Force

AFI—Air Force Instruction

AFPC—Air Force Personnel Center

AFMAN—Air Force Manual

AFMC—Air Force Materiel Command

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

CAB—Community Action Board

CART—Computer Aided Real-Time Transcription

CAT—Community Action Team

CFR—Code of Federal Regulations

CLG—Change to Lower Grade

CPS—Civilian Personnel Section

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DAFLC—Department of the Air Force Learning Committee

DAFMAN—Department of the Air Force Manual

DAFPD—Department of the Air Force Policy Directive

DEOMI—Defense Equal Opportunity Management Institute

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

DOJ—Department of Justice

DP—Disability Program

DPM—Disability Program Manager

DRU—Direct Reporting Unit

DVAAP—Disabled Veterans Affirmative Action Program

EAP—Employee Assistance Program

EEO—Equal Employment Opportunity

EEOC—Equal Employment Opportunity Commission

EO—Equal Opportunity

ESP—Emergency Special Program

ETMO—Enterprise Talent Management Office

FEORP—Federal Equal Opportunity Recruitment Program

FLDCOM—Field Command

FOIA—Freedom of Information Act

GAO—Government Accountability Office

HAF—Headquarters Air Force

HAFMD—Headquarters Mission Directive

HELLP—Hemolysis, Elevated Liver Enzymes and Low Platelets Syndrome

HRO—Human Resources Office

ICT—Information and Communication Technology

IG—Inspector General

IWD—Individuals with Disabilities

MAJCOM—Major Command

MD—Management Directive

MEO—Military Equal Opportunity

NAF—Nonappropriated Funds

NDR—Negotiation and Dispute Resolution

OCR—Office of Coordinating Responsibility

OPM—Office of Personnel Management

OPR—Office of Primary Responsibility

PAS—Personal Assistance Services

PII—Personally Identifiable Information

PL—Public Law

PTSD—Post-Traumatic Stress Disorder

PWFA—Pregnant Workers Fairness Act

RA—Reasonable Accommodation

RAR—Reasonable Accommodation Request

RDO—Responsible Department Official

SAV—Staff Assistance Visits

SES—Senior Executive Service

SME—Subject Matter Expert

USC—United States Code

USSF—United States Space Force

Office Symbols

AF/A1—Deputy Chief of Staff for Manpower, Personnel and Services

AF/A1C—Directorate of Civilian Force Management

AF/A1X—Directorate of Plans and Integration

AF/A1Z—Integrated Resilience Directorate

AF/A4—Deputy Chief of Staff, Logistics, Engineering and Force Protection

AF/A4C—Directorate of Civil Engineers

AF/JA—Judge Advocate General

AF/JACL—Air Force Civil Law and Litigation Directorate

AF/RE—Chief, Air Force Reserve

AFPC/CC—Air Force Personnel Center Commander

AFPC/DPP—Air Force Personnel Center Directorate of Personnel Programs

AFPC/DPPCM—Air Force Personnel Center Civilian Force Management Branch

AFPC/DSY—Air Force Personnel Center Systems Support

SAF/CN—Chief information Office

SAF/GC—General Counsel of the Department of the Air Force

SAF/GCA—Deputy General Counsel for Fiscal, Ethics and Administrative Law

SAF/IE—Assistant Secretary of the Air Force for Energy, Installations, and Environment

SAF/IG—The Department of the Air Force Inspector General

SAF/IGI—Inspections Directorate

SAF/MR—Assistant Secretary of the Air Force, Manpower and Reserve Affairs

SAF/MRB—Director, Air Force Review Boards Agency

SAF/MRBA—Air Force Civilian Appellate Review Office

SAF/MRL—Director, Senior Executive Management

SAF/MRM—Deputy Assistant Secretary for Force Management Integration

SAF/MRQ—Director, Department of the Air Force Equal Opportunity Program

SAF/PA—Director of Public Affairs

SF/COO—Deputy Chief of Space Operations for Operations, Cyber and Nuclear

SF/S1—Deputy Chief of Space Operations for Personnel

SF/S4O—Mission Sustainment Division

Terms

Accessibility—For the purpose of this publication, individuals with disabilities have equal access to the same information, services, and environments as individuals without disabilities to include physical spaces (facilities and structures) and electronic and information technology (also referred to as information and communication technology) in relation to the Architectural Barriers Act of 1968 and Section 504 and 508 of Rehabilitation Act of 1973, as amended.

Affirmative Employment—For the purpose of this publication, proactive steps taken by Federal agencies to ensure equal employment opportunity for all their employees and applicants for employment. This means that agencies must work to proactively prevent potential discrimination before it occurs and establish systems to monitor compliance with Title VII of the Civil Rights Act of 1964, as amended.

Affirmative Employment Program Manager—For the purposes of this publication, a civilian employee who is appointed (full time or collateral duty) and in their official capacity provides program management and administers their respective MAJCOM/FLDCOM or installation affirmative employment program in accordance with applicable laws, regulations, executive orders, directives, DoD and DAF policies, and this publication. This includes serving as subject matter expert and advisor to the MAJCOM/FLDCOM or installation commander, other commanders (or civilian equivalents), and MAJCOM/FLDCOM or installation stakeholders on affirmative employment program related matters as described in this publication.

Agency—Pursuant to 5 USC § 551, agency means each authority of the Government of the United States, whether or not it is within or subject to review by another agency but does not include (A) the Congress; (B) the courts of the United States; (C) the governments of the territories or possessions of the United States; (D) the government of the District of Columbia. For the purposes of this publication, the use of the term the Agency refers to the DAF.

Airman—For the purpose of this publication, Airman collectively refers to uniformed members of the United States Air Force, Air Force civilian employees, DAF civilian employees, and members of the Civil Air Patrol when conducting missions for the DAF as the official Air Force Auxiliary, unless otherwise stated.

Alternative Dispute Resolution—A series of techniques or methods used to resolve issues in controversy by mutual agreement of the parties, including but not limited to conciliation, facilitation, mediation, fact-finding, minitrials, advisory arbitration, and the use of ombuds, or any combination thereof (5 USC § 571(3)). ADR proceedings utilize the services of a neutral third party to assist the parties in resolving their dispute.

Applicant for Employment—For the purpose of this publication, an individual who has asked to be considered for a job with the DAF. An applicant may be a current employee of the DAF, an employee of another agency, or a person who is not currently employed by any agency.

Attitudinal Barriers—Attitudinal barriers involve actions or beliefs that inhibit progress for one or more groups in the agency's workforce. These barriers often result from stereotypes or false

assumptions, which can be the most difficult barriers to identify. Good diagnosis, however, is useful in developing meaningful solutions to problems hindering effective EEO programs.

Barrier—An agency policy, principle, practice, or condition that limits or tends to limit employment opportunities for members of any protected class pursuant to 29 CFR Part 1614, EEOC MD 110, and the laws within the EEOC's jurisdiction.

Barrier Analysis—An investigation of anomalies found in workplace policies, procedures, and practices that limit or tend to limit equal employment opportunities for members of any race, sex, or national origin, or based on an individual's disability status. Barrier analysis identifies the root causes of those anomalies, and if appropriate, eliminates them.

Basis (Civilian)—For the purpose of this publication, the term basis is the statutory source upon which the aggrieved individual or complainant believes he or she been discriminated against, or the alleged motivation for the employment action being challenged, or reprisal for opposing any practice made unlawful, or for participating in any stage of the complaint process under those statutes.

Civilian—For the purpose of this publication, DAF civilian employees, former employees, and applicants for employment who meet the criteria outlined in 29 CFR 1614.

Collateral Duty—For the purpose of this publication, any duties performed by civilian employees other than normally assigned duties and/or other than during their normally scheduled work period.

Controlled Unclassified Information—Pursuant to 32 CFR § 2002.4, controlled unclassified information (CUI) is information the Government creates or possesses, or that an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Government-wide policy requires or permits an agency to handle using safeguarding or dissemination controls. However, CUI does not include classified information or information a non-executive branch entity possesses and maintains in its own systems that did not come from, or was not created or possessed by or for, an executive branch agency or an entity acting for an agency. Law, regulation, or Government-wide policy may require or permit safeguarding or dissemination

Decision Authority (Reasonable Accommodation)—The requestor's immediate supervisor is the decision maker whenever possible. Commanders may designate another decision authority, if the immediate supervisor is unavailable, if the decision authority is within the immediate chain of command. Requests for reasonable accommodation from applicants will be handled by the installation CPS/HRO. Denial of an accommodation request must be reviewed and endorsed by the installation commander (or civilian equivalent), or designee, not below the level of O-6 (or civilian equivalent).

Disability—Pursuant to 42 USC § 12102(1), with respect to an individual, the term "disability" means the individual has a physical or mental impairment that substantially limits one or more major life activities of such individual; the individual has a record of such an impairment; or the individual is regarded as having such an impairment. **Note:** The term "Individual with a Disability" does not include individuals currently engaging in the use of illegal drugs when an employer acts based on such use; and tests for illegal drugs are not subject to the restrictions on medical examinations imposed by the Rehabilitation Act of 1973. The term disability does not include behaviors or disorders as outlined in 42 USC § 12211. Individuals who are only "regarded as" having a disability are not entitled to reasonable accommodation.

Disability Program Manager—For the purposes of this publication, a civilian employee who is appointed and in their official capacity provides program management and administers their respective installation disability program, to include personal assistance services and reasonable accommodations, in accordance with applicable laws, regulations, executive orders, directives, DoD and DAF policies, and this publication. This includes serving as subject matter expert and advisor to the installation commander, other commanders (and civilian equivalents), and installation stakeholders on disability program related matters, to include personal assistance services and reasonable accommodations, as described in this publication.

Equal Employment Opportunity (Civilian)—Pursuant to DoDD 1440.1, the right of all DoD employees to apply, work, and advance on the basis of merit, ability and potential, free from unlawful discrimination and discriminatory harassment based on a protected class or other unlawful factors.

Federal Financial Assistance—Pursuant to DoDD 5500.11, term federal financial assistance includes: grants and loans of Federal funds; the grant or donation of Federal property and interests in property; the detail of Federal personnel; the sale and lease of, and the permission to use (on other than a casual or transient basis), Federal property or any interest in such property without consideration or at a nominal consideration, or at a consideration, or at a consideration which is reduced for the purpose of assisting the recipient, or in recognition of the public interest to be served by such sale or lease to the recipient; and any Federal agreement, arrangement, or other contract which has as one of its purposes the provision of assistance. For the purposes of this publication, recipients of financial assistance provided by the DAF in programs and activities conducted or assisted by the DAF are subject to the DAF nondiscrimination policy as described herein.

Former Employee (Civilian) —For the purpose of this publication, a former employee is an individual who previously worked for the DAF as an appropriated fund or non-appropriated fund employee who no longer holds a position with the DAF.

Guardian—For the purpose of this publication, Guardian collectively refers to uniformed members of the USSF and USSF civilian employees, unless otherwise stated.

Harassment (Civilian) —Pursuant to DoDI 1020.04, behavior that is unwelcome or offensive to a reasonable person and that creates conditions that interfere with work performance or creates an intimidating, hostile, or offensive work environment. Per DAFI 36-2710, the DAF EO Program handles discriminatory harassment based on a protected class. Refer to DAFI 36-147 in handling non-EEO prohibited harassment.

Nonappropriated Funds—Funds generated by DoD military and civilian personnel and their dependents and used to augment funds appropriated by the Congress to provide a comprehensive, morale-building welfare, religious, educational, and recreational program, designed to improve the well-being of military and civilian personnel and their family members.

Negotiation and Dispute Resolution (NDR) Practitioner—An individual designated to assist affected parties in resolving one or more workplace disputes. A NDR practitioner may be a military member or civilian employee of the federal government or any other individual, including a contractor, hired to provide services as a neutral. Anyone serving as an NDR practitioner in a DAF workplace dispute must not have an official, financial, or personal conflict of interest in any issue

in controversy, unless such interest is fully disclosed in writing to all parties and all parties agree that the NDR practitioner may serve.

Personal Assistance Services—Pursuant to 29 CFR § 1614.203(a)(5), assistance with performing activities of daily living that an individual would typically perform if he or she did not have a disability, and that is not otherwise required as a reasonable accommodation, including, for example, assistance with removing and putting on clothing, eating, and using the restroom.

Physical Barriers—Physical barriers result from the inaccessibility of agency facilities or programs to one or more groups of employees or applicants.

Protected Class—A group of people with a common characteristic who are legally protected from employment discrimination based on that common characteristic. Protected classes are not limited to only minorities or underrepresented groups; members of all races, sexes, national origins, or religions are protected by the law.

Reasonable Accommodation—Pursuant to 29 CFR § 1630.2(o), reasonable accommodation means any modification or adjustment to a job, employment practice, the work environment, or the way things are usually done that allows a qualified individual with a disability to apply for a job, perform job functions, or enjoy equal access to benefits available to other individuals in the workplace. Reasonable accommodation may include but is not limited to: (1) making existing facilities used by employees readily accessible to and usable by individuals with disabilities; (2) job restructuring, modifying work schedules, or reassignment of a current employee to a vacant position; and (3) acquiring or modifying equipment or devices, adjusting or modifying examinations, training materials, or policies, and providing qualified readers or interpreters. Reasonable accommodations are not limited to items that permit the employee to perform the essential functions of the job. An employer is not obligated to provide personal use items such as glasses or hearing aids. An employer is not required to remove an essential function of the job as an accommodation. See EEOC Notice 915.002, *Enforcement Guidance on Reasonable Accommodation and Undue Hardship under the Americans with Disabilities Act* for additional information.

Responsible Department Officials—For the purpose of this publication with respect to any program or activity (including facilities and structures) conducted or assisted by the DAF receiving Federal financial assistance, means the official of the Department at the higher headquarters level who by law or by delegation has the principal authority within the Department for the administration of a law extending Federal financial assistance. It also means any officials designated by due delegation of authority to act in such capacity with regard to any program or activity (including facilities and structures) outlined in this publication.

Senior Executive Service—Positions as defined by 5 USC § 3132(a)(2).

Targeted Disability—Pursuant to 29 CFR § 1614.203(a)(9), a disability that is designated as a "targeted disability or health condition" on the Office of Personnel Management's Standard Form 256 or that falls under one of the first 12 categories of disability listed in Part A of question 5 of the EEOC's Demographic Information on Applicants form.

Trigger—A trend, disparity, or anomaly that suggests the need for further inquiry into a particular employment policy, practice, procedure, or condition to determine whether there is a barrier to equal employment opportunity.

Unlawful Discrimination (Civilian)—Pursuant to Title VII of the Civil Rights Act of 1964, Age Discrimination in Employment Act of 1967 (ADEA), Rehabilitation Act of 1973, Americans with Disabilities Act of 1990 (ADA), Equal Pay Act of 1963, Title II of the Genetic Information Nondiscrimination Act of 2008 (GINA), and the Pregnant Workers Fairness Act of 2023, an unlawful employment practice occurs when an employer fails or refuses to hire or promote, discharges, or otherwise discriminates against any individual with respect to compensation, terms, conditions, or privileges of employment on the basis of a protected class pursuant to 29 CFR Part 1614 and EEOC MD 110; and the laws within the EEOC's jurisdiction; limits, segregates or classifies employees or applicants for employment in any way that deprives or tends to deprive any individual of employment opportunities or otherwise adversely affects their status as an employee because of a protected class.

Unlawful Discriminatory Harassment (Civilian)—Pursuant to Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act of 1967 (ADEA), Rehabilitation Act of 1973, and the Americans with Disabilities Act of 1990 (ADA), Equal Pay Act of 1963, and Title II of the Genetic Information Nondiscrimination Act of 2008 (GINA), a form of employment discrimination consisting of behavior that is unwelcome or offensive to a reasonable person and that creates conditions that interfere with work performance or creates an intimidating, hostile, or offensive work environment based on being a member of a protected class.

Warm Hand—off Approach ("Connect to Care" Approach)—A collaborative process DAF has socialized as "Connect to Care" that directs helping agencies across the DAF to work together to ensure personnel are taken care off and are connected to appropriate services; a warm hand-off between Airmen, Guardians, their family members, DAF Civilians, and referral services can occur in person, virtually, or telephonically depending on their preference and consent to ensure a comprehensive system of care and support. Note: This implements the DAF's approach of DoD's "No Wrong Door."